



EMPLOYMENT TRIBUNALS

BETWEEN

Claimant: Ms P M C Lopez-Bondi

Respondents: (1) Lascaux Partners Limited (2) Luke Stovell
(3) Luke Williams (4) Holly Butterworth

Heard at: in public in person

On: 13, 14, 20, 21, 24, 25, 26 March 2025,
16, 17 April, 13, 16, 17 June, 7 July 2025

Before: Employment Judge Adkin

Appearances

For the claimant: Mr P Gilroy KC, Counsel

For the respondent: Ms J Stone KC, Counsel

JUDGMENT

(1) The following claims are well founded and succeed against the **First Respondent**:

- a. Complaint of unfair dismissal pursuant to sections 94 and 98 of the Employment Rights Act 1996 ("ERA") (conceded);
- b. Complaint of harassment relating to sex pursuant to section 26(1) EqA in relation to the "lactating" comment (allegation 7.12);
- c. Complaint of victimisation pursuant to section 27 of the Equality Act 2010 ("EqA") in relation to:
 - i. the dismissal (allegation 13.1.2);
 - ii. dismissing Claimant's claim that the allegations against her had never been made against her prior to her dismissal (allegation 14/{4.25.12});
 - iii. finding that Mr Poole's comments in Madrid did not upset the Claimant at the time (allegation 14/{4.25.21});

- iv. dismissing the Claimant's appeal against dismissal (allegation 14/{4.25.22});
- v. failing to deal with the Claimant's allegations of discrimination/harassment at the meeting on 1 November and grievance of 3 November 2023 (allegation 13.1.1/{7.20}).

(2) The following complaints are well founded and succeed against the **Second Respondent Mr Luke Stovell**:

- a. the dismissal (allegation 13.1.2);
- b. complaint of victimisation pursuant to section 27 of the Equality Act 2010 ("EqA") in relation to failing to deal with the Claimant's allegations of discrimination/harassment at the meeting on 1 November 2024 (allegation 13.1.1/{7.20}).

(3) The following complaints are well founded and succeed against the **Third Respondent Mr Luke Williams**:

- a. the dismissal (allegation 13.1.2);
- b. complaint of victimisation pursuant to section 27 of the Equality Act 2010 ("EqA") in relation to failing to deal with the Claimant's allegations of discrimination/harassment at the meeting on 1 November 2024 and 3 November 2024 (allegation 13.1.1/{7.20});
- c. finding that Mr Poole's comments in Madrid did not upset the Claimant at the time (allegation 14/{4.25.21});
- d. dismissing C's claim that the allegations against her had never been made against her prior to her dismissal (allegation 14/{4.25.12});
- e. dismissing the Claimant's appeal against dismissal (allegation 14/{4.25.22}).

(4) All claims against the **Fourth Respondent** are dismissed.

(5) All claims in relation to events occurring before **24 May 2023** are out of time and it was not just and equitable to extend time. These claims are dismissed.

(6) The following are not well founded and are dismissed:

- a. Complaint of direct race discrimination pursuant to section 13 and 39 of the Equality Act 2010;
- b. Complaint of direct sex discrimination pursuant to section 13 and 39 of the Equality Act 2010;
- c. Complaint of harassment related to race pursuant to section 26 and 40 of the Equality Act 2010;
- d. All other allegations in the complaint of harassment related to sex pursuant to section 26 and 40 of the Equality Act 2010;
- e. All other allegations of victimisation pursuant to section 27 of the Equality Act 2010;
- f. Denial of the right to be accompanied under section 10 of the Employment Relations Act 1999.

REASONS

The Claims

1. The Claims are as follows:
 - 1.1. Claim number 2210205/2023 (the “First Claim”) issued on 22 December 2023 is a claim for unfair dismissal, direct race discrimination, direct sex discrimination, harassment on the grounds of race, harassment on the grounds of sex, victimisation, and denial of the right to be accompanied.
 - 1.2. Claim number 2221307/2024 (the “Second Claim”) issued on 4 June 2024 is a claim for direct race discrimination, direct sex discrimination, harassment on the grounds of race, harassment on the grounds of sex and victimisation
2. Aside from the complaint of unfair dismissal (conceded by the First Respondent) and the denial of the right to be accompanied the number of allegations is:
 - 2.1. Direct race discrimination – 46 separate allegations;
 - 2.2. Direct sex discrimination – 44 separate allegations;
 - 2.3. Harassment relating to race – 83 separate allegations;
 - 2.4. Harassment relating to sex – 81 separate allegations;
 - 2.5. Victimisation – 52 separate allegations of detriment.
 - 2.6. In total that makes 306 separate allegations, which are pursued in different combinations against the 4 different Respondents.

Summary

3. The First Respondent is a recruitment business which places individuals or teams of individuals (“**candidates**”) with clients in the finance sector, in particular with hedge funds.
4. The Second Respondent Luke Stovell and Third Respondent Luke Williams are the joint owners and statutory directors of the First Respondent business. The owners were informally referred to within the business as “the Lukes” or in formal organisation charts as “**Partners**” rather than directors, which was a level below them in the structure.

5. The Fourth Respondent Holly Butterworth had the title “Director” and was since 1 January 2023 Chief Operating Officer, with oversight of Human Resources. She had the title Director.
6. I have referred to the Second, Third and Fourth Respondents collectively as the “individual Respondents”.
7. The Claimant was a recruitment consultant employed by the First Respondent. Initially, at the commencement of her employment on 17 February 2020 her title was “Associate”. Subsequently she was promoted to “Senior Associate” in approximately July/August 2022. As a recruiter who placed a relatively large number of candidates with clients of the First Respondent, the Claimant was extremely successful in her role. She earned the First Respondent substantial professional fees and received herself substantial bonuses, particularly for her performance in 2022.
8. The Claimant was dismissed with effect on 6 November 2023 and her internal appeal against that decision was not upheld.
9. The Claimant says that she directly discriminated and harassed because of her sex and race as someone of Mexican heritage. Her Canadian nationality is not relied upon. She contends that she was thwarted in her ability to progress to Director level, notwithstanding her high performance because of her sex and/or race.
10. Many of the complaints were made to the Tribunal out of time. I have extended as far back as events on 24 May 2023 (the first day of a work trip to Madrid) but not earlier.
11. The First Respondent has realistically and appropriately conceded the complaint of unfair dismissal, in view of the absence of proper process. This is on procedural grounds. I find that the dismissal was substantively and procedurally unfair.
12. I find that the decision to dismiss the Claimant with effect on 6 November 2023 was influenced in part by the making of protected acts (allegations of discrimination and harassment) by the Claimant. It follows that the decision to dismiss the Claimant (and some other linked treatment) was victimisation within the meaning of section 27 of the Equality Act 2010 (“EqA”), as was the failure to deal with the Claimant’s allegation on 1 November 2023 and the dismissal of the Claimant’s internal appeal against her dismissal.
13. The successful complaint of harassment relating to sex in relation to the comment about lactating under section 26(1) EqA should not be confused with a complaint of “sexual harassment” (e.g. making of sexual overtures) under section 26(2).

Procedure

Hearing and panel composition

14. Due to a lack of available judges at London Central Employment Tribunal and also of tribunal members who were able to sit on a long case, this hearing, which was due to start on 10 March 2025, did not start until 13 March 2025 and it was not possible to sit 17, 18, 19 March 2025.
15. The Tribunal was faced with relisting the matter in Spring 2026 which would not have been ideal or alternatively a staggered series of part-heard hearings which was suboptimal but better than a very long delay. This was less than ideal but I am grateful to the parties and the stenographers for fitting in with this timetable.
16. Although this had been listed as a case for a panel, I made the assessment that the lack of availability of members and the unacceptable delay that would have been caused in postponing the entire hearing so that it could be listed with members was reason to consider again the question of panel composition. It was my view that it was in the interests of justice to proceed with a judge sitting alone. Neither party opposed this approach.
17. The parties had provided a stenographer and I received daily transcripts of the hearing and a consolidated transcript at the conclusion of the evidence for which I was grateful, in particular because of the fact that hearing was unavoidably part heard twice.

Submissions

18. I was grateful for oral and written submissions from leading counsel, together with various appendices and authorities bundles.

Chronology

19. I was provided with a summary three page chronology.

Evidence

Documentary evidence

20. The Tribunal was provided with an agreed bundle of 3,787 pages, an additional bundle of 155 pages, a witness bundle containing 10 witness statement of in total 237 pages and a supplementary witness statement from Holly Butterworth dated 20 December 2024.
21. A very large amount of the evidence presented is of various private “chats” on WhatsApp and Telegram, a similar messaging service. It is not always clear which platform the exchanges take place on, although that itself does not seem to be material. I have in many cases just referred to messaging in a generic way. What is useful is that the specific dates and times are usually recorded. It is usually possible to see various emoticons such as smiley faces, crying with

laughter faces and the like. Images or video clips are not rendered in the tribunal bundle which means that sometimes the context of the exchange is not entirely clear. I recognise that the disclosure of all this documentation, much of which is on private exchanges is to some extent an intrusion into these individual's privacy, albeit that many of these exchanges were taking place during working hours and some of the time colleagues were using their work computers to access WhatsApp rather than using their private mobile telephones. Having said that the messages are useful evidence of the workplace dynamics and relationships and they are relevant to the issues in dispute. Had these not been disclosed I would have drawn inferences that they had been suppressed.

22. I was referred to literally hundreds of lines of such communications as part of cross examination. I have tried to quote fairly selectively. It seems to me that many of the messages referred to are likely to be embarrassing for the sender and recipients out of proportion to the probative value in deciding the case. This applies to witnesses on both sides of the dispute.

Anonymised identities

23. In this case I received a witness statement and oral evidence from Employee A, whose identity was anonymised upon the application of the Respondents.
24. Another of the First Respondent's former employees was neither a witness nor a party. There were allegedly comments about her body which might reasonably be thought to objectify her sexually and be significantly embarrassing in a public forum. The Claimant and Mr Poole each accused the other of having done this. There was no application before me to another this person's identity, but on my own initiative I have labelled this Employee N. The parties will understand from the context who is being referred to.

Reliability

25. It is natural that witnesses in a pressurised hearing, which this was, being questioned closely and quite forcefully by leading counsel will be fallible. No witness has perfect recollection. It is only natural for witnesses to give a version of events that is somewhat self-serving and there is naturally an element of filling in the gaps in recollection. I felt that generally speaking witnesses were most of the time trying their best to assist the Tribunal.
26. I felt that Charles Medhurst, witness for the Claimant was careful not to overstate his evidence and made appropriate concessions.
27. I have to accept some of the Respondents' submissions about the reliability of the Claimant's evidence. There were points on which she was unable to give a straightforward answer without any good reason, for example acknowledging that she at one time reported to Mr Poole. I found this was objectively the case and the Claimant knew it was the case and was still unable to give a straightforward answer on that point.

28. I found the Claimant attributed words said to others which were in reality, a blend of things that were actually said together with her conjecture or interpretation of those comments. There was a degree of exaggeration in her evidence. Where there was not separate corroboration of the Claimant's account of words said I have treated her evidence with some circumspection.
29. On the other side, there have been two instances where the Respondents have attributed swear words to the Claimant which I find were not used by her at the time.

Individual witnesses

30. I received witness statements and oral evidence from the following witnesses.
31. For the Claimant
 - 31.1. The Claimant herself;
 - 31.2. Siyu Tian, formerly employed as Recruitment Associate of the First Respondent;
 - 31.3. Theo Williams, formerly employed as Director and Head of Equities of the First Respondent. Generally described in these reasons as "Theo Williams" (in full) to differentiate him from Luke Williams the Third Respondent. On his own account he started dating the Claimant in January 2024;
 - 31.4. Charles Medhurst, formerly employed as Recruitment Associate of the First Respondent;
32. For the Respondents:
 - 32.1. The Second Respondent Luke Stovell, Director and owner of the First Respondent;
 - 32.2. The Third Respondent Luke Williams, Director and owner of the First Respondent;
 - 32.3. The Fourth Respondent Holly Butterworth, Director of the First Respondent, COO, with responsibility for Human Resources;
 - 32.4. William Poole, Director in the Fixed Income, Currencies and Commodities division;
 - 32.5. Victoria Courteney-Harris, previously Associate, now Head of Operations;
 - 32.6. Noelle van Wyke, Solicitor, employed by the Respondents' solicitor;
 - 32.7. Employee A, Associate.

Findings of fact

33. Findings are made on the balance of probabilities based on my impression of the oral and written evidence of the witnesses, the contemporaneous documents and my assessment of what is inherently most likely. I was referred during the hearing to a large number of documents, including a large number of WhatsApp and Telegram. In the interests of brevity in these long reasons I have not referred to every document or piece of evidence, but all of this evidence has helped to form an overall impression of the general workplace and individual interpersonal dynamics at the First Respondent.

Claimant's background

34. The Claimant moved to the UK from Canada in September 2019. She was working in the UK under the terms of a Skilled Worker immigration visa. She is a Canadian national of Mexican heritage.

Commencement of employment

35. The Claimant entered into a contract of employment with the First Respondent on 10-11 February 2020.
36. She commenced employment as an Associate on 17 February 2020 reporting to Mungo Strachan focusing on Fixed Income and Commodities, until the resignation of Mr Strachan in March 2021. They appear to have got on well.

Bonus calculation

37. The Claimant received an annual performance bonus which was assessed on a discretionary basis by the owners of Second and Third Respondents.
38. The Respondents say that the Claimant wrongly understood that it was a commission based bonus. It is clear that the level of successful placement of candidates with clients resulting in revenue factored heavily in the assessment the bonus, but this was not a precise arithmetic exercise and other factors were considered. In the case of the Claimant this resulted in the First Respondent awarding the Claimant very substantial bonuses, particularly in 2022.

Reporting line after Mr Strachan

39. After Mr Strachan left, the Claimant reported for a period to Roxanne Chou, a Director.
40. At a meeting early in 2022 the Claimant raised with the Second and Third Respondents that she was unhappy working with Ms Chou.
41. Luke Stovell's account is that the Claimant said that Roxanne was evil, and had dark energy and she sucked the life out of people and described her as a "fucking Nazi". The Claimant says "fucking Nazi" allegation "morphed" when she requested detail following her dismissal to "fucking terrorist". Ms Butterworth's evidence was that the Claimant's use of that latter phrase was reported to her by a different colleague.

42. I find it likely that the Claimant did express her unhappiness about working with Ms Chou and her dislike of Ms Chou in hyperbolic and unprofessional language, principally because that the way that the Claimant tended to express herself generally and the Claimant's attitude to Ms Chou evidently stuck in Luke Stovell's mind, albeit that there is some inconsistency as to whether this was "fucking Nazi" or "fucking terrorist".
43. No action was taken against the Claimant for comments made at this stage, although surprisingly this formed part of the rationale for dismissal (or at least the background to the rationale for dismissal) in November 2023.
44. A decision was taken that the Claimant should not continue to work for Ms Chou.

William Poole hired as director

45. In September 2021 William Poole joined the First Respondent as a Director.
46. I accept the Claimant's evidence that this recruitment decision was the source of resentment internally given that Mr Poole did not have direct experience of the recruitment consultant business and that he had been hired as a University friend of the Second Respondent Mr Stovell. It was perceived by various employees, principally the Claimant herself, that this was unfair and unmeritocratic. The Claimant's frustration with the decision to recruit Mr Poole directly into the role of Director, as contrasted with her own situation as a highly successful associate then senior associate who nevertheless was not promoted to Director was something that plainly caused her ongoing frustration throughout the remainder of her employment.
47. The perspective of the Second and Third Respondent was that Mr Poole had experience of the finance sector and experience of sales having managed a large team. What he brought to the First Respondent was that experience and the experience of working in a larger company with more professional processes and systems. This was the direction that they were trying to take the First Respondent business.

Drinks & "hen do" comment September 2021

48. One of the features of this litigation is that various allegations are made about things said in bars when colleagues were drinking. This allegation raised a claim form over two years after it is alleged to have occurred. This has requested witnesses to cast their minds back to things said in the context of work social made a couple of years earlier.
49. At around the time of Mr Poole being recruited, there was a company drinks on or around 22 September 2021.
50. It is difficult for the Tribunal to make findings with any degree of confidence or precision. This is one of the reasons why I have found that was not just and equitable to extend time to events in 2021 and 2022, for reasons given below.

51. I accepted Mr Stovell's account that there were around 10 female Lascaux employees and two male Lascaux employees at the bar. The Respondents deny that he made a speech welcoming Mr Poole, but Mr Stovell accepts that he made a comment that the group present resembled a hen do given the gender ratio and jokingly said that they did not have enough men at the company. He says that he did not recall it causing any offence at the time but that he had reflected on it and could see that he should not have said this, and that it was in poor taste.
52. The Claimant goes further. In her written evidence she alleges that Mr Stovell said that the business "needed a white male in his mid-30s like Will to be taken seriously by clients".
53. In her oral evidence she said that:
- "Luke Stovell explicitly said that the real reason for hiring Will [Poole] is that there was not enough fucking men in the company and that the current company resembled a hen do and that he needed white males in their mid-thirties like William Poole to be taken seriously by clients."
- [word inserted]
54. It was put to her in cross examination that no one said "Here's Mr Poole, were hiring him because he's a white man". She maintained that Mr Stovell did say that to a group of employees.
55. I found the Claimant's version of the words said implausible for several reasons. First, these are events being recalled years after the event. Second, people were drinking which impairs both the making of memories and the recall of it. Third, the allegation in these terms did not feature in the Claimant's grievance of 3 November 2023 which was extremely detailed and in which she did not hold back in levelling allegations of discrimination at Mr Stovell.
56. She also said that he said
- "we need to hire Will for more testosterone in the room and, you know, we need to hire more top shaggers"
57. It seems altogether more plausible that Mr Stovell did make a comment about testosterone or "top shaggers", since this was a running joke (in his mind at least), but it is difficult to be precise about the words.

"Top shagger"

58. Mr Luke Stovell on a number of occasions used the expression "top shagger" in the context of discussions about potential recruits for the First Respondent's own workforce. He says that this was an impersonation of Mungo, the Claimant's first line manager. His take was that this was "ridiculous" and merely a funny impersonation.

59. This joke aside, Mr Stovell believed that Mungo was confident, gregarious and a good salesman. Mungo was or had been a rugby player and who had used or at least embodied this expression. Mr Stovell used this phrase as a jokey short hand for self-confident employees, like Mungo, who could sell. On his account, he had in mind the sort of person who would be good sports team player, but maintained that could equally be man or woman. He used the example of an actual named female employee of the First Respondent who was recruited and who fit that confident, sporty, team player mould. Whether there was that degree of nuance behind the expression seems doubtful. It was a crass joke and plainly open to misinterpretation by others, particularly when Mr Stovell had expressed the view about wanting more male employees in a predominantly female workforce. It was evident that he did hold a view about wanting to recruit some more male employees.
60. Ultimately however I accepted that “top shagger” was no more than a joke, since it did not reflect the reality of the First Respondent’s recruitment practice. They continued to hire female employees. The Claimant admitted that two male employees recruited during her employment with the First Respondent did not fit the rugby playing stereotype. In her oral evidence she explained that her complaint about the “top shagger” comment was not about recruitment decisions but the way that existing employees were treated.

Middle class white boys

61. On 12 October 2021 the Fourth Respondent Holly Butterworth had the following unguarded message exchange with Ms Roxanne Chou, a Director of the business. At that time Ms Butterworth was “Head of Research”. The exchange was seemingly about recruitment and diversity among male colleagues:

[12/10/2021, 17:55:19] Holls: they just want to get simple, white middle class boys who are bold and will pick u teh phone

[12/10/2021, 17:55:20] Roxanne Chou: at least someone is taking it off your hands

RC [8 crying with laughter emoticons and 4 eye rolling emoticons]

[12/10/2021, 17:55:33] Roxanne Chou: ok

[12/10/2021, 17:55:39] Roxanne Chou: PLB [i.e. the Claimant] brought this up

[12/10/2021, 17:55:39] Holls: They want someone who will basically talk to you about the birds they've shagged in the interivew

[12/10/2021, 17:55:42] Holls: was the long and short of it

[12/10/2021, 17:55:53] Roxanne Chou: which was embarrassing

[12/10/2021, 17:55:52] Holls: (and apparently what Mungo did in his first round)

[12/10/2021, 17:55:59] Holls: She mentioned this to me

[12/10/2021, 17:56:00] Roxanne Chou: with girls they have a lot of diversity

[12/10/2021, 17:56:00] Holls: so I said that

[12/10/2021, 17:56:12] Holls: I said your girls are quite diverse but you only want to recruit a certain type of boy

[12/10/2021, 17:56:14] Roxanne Chou: but why with guys they only hire middle class guys only

[12/10/2021, 17:56:15] Roxanne Chou: LOL

[12/10/2021, 17:56:19] Holls: and he was like yeah, absolutely

[12/10/2021, 17:56:21] Holls: of course we do

[12/10/2021, 17:56:56] Roxanne Chou: [female face plant emoticon]♀

[12/10/2021, 17:56:59] Roxanne Chou: no fucks given

[12/10/2021, 17:57:00] Roxanne Chou: LOL

[12/10/2021, 17:57:15] Roxanne Chou: 🤔

[12/10/2021, 17:57:20] Roxanne Chou: ewwwwwwww

[12/10/2021, 17:59:00] Holls: zero

[12/10/2021, 17:59:16] Holls: i mean i do get that mungo was bold, would just sell to anyone and didn't care

[12/10/2021, 17:59:25] Holls: but it doesn't nec have to be a middle class guy that can do this

[12/10/2021, 17:59:45] Holls: Beyond gross. LS said it must have been because he identified Luke as another 'top shagger'

[12/10/2021, 17:59:47] Holls: KILL ME

62. A week latter Ms Butterworth added:

[18/10/2021, 14:47:19] Holls: I must have been oblivious / working on my grad hires (aka how to hire cocky men)

Curious redaction

63. A point was made by Mr Gilroy that the word "white" had been redacted in the hearing bundle in the exchange set above. This was surprising in the context of a complaint of race discrimination. The unredacted version had apparently been properly provided to the Claimant earlier in the litigation, so the Tribunal was not mislead, but this plainly should not have happened.

Comments about Mexicans

64. On the evening of 11 November 2021, in a private exchange on WhatsApp Roxanne Chou, Victoria Courteney Harris and the Fourth Respondent Holly Butterworth were discussing the Claimant's attitude to Luke Stovell. Ms Chou started off the exchange with a suggestion that the Claimant hated Luke Stovell, which participants in the WhatsApp group seemed to be in agreement with. In response to a suggestion that it was something to do with the recent recruitment of Will Poole, Ms Chou wrote:

No it's more that Stovell calling her stupid and **Mexican cartel**. She has no respect towards him and she's super angry

She thinks Stovell is stupid and just trying to make himself more superior

Roxanne Chou: She hates him for it

Roxanne Chou: Her dad was like why are you working for a guy who doesn't respect you

[emphasis added]

Roxanne Chou's comments at Christmas party 2021

65. The following month on 13 December 2021 Roxanne Chou was messaging Holly Butterworth and Victoria Courteney-Harris with some choice words and observations about "Irish boys", which seems more likely than not to have been blowing off steam about a personal relationship difficulty.
66. The thread segued into discussion of a night out, which I infer may have been the Christmas where Luke Williams (and possibly also Luke Stovell) were taken to task for alleged sexism and racism including the existence of a penalty "jar" for sexism and racism. From Ms Butterworth's account Mr Williams listened to a variety of complaints and comments from a number of junior employees, including half an hour from Employee N which Ms Chou stated was "absolute nonsense". Ms Chou herself took Mr Williams to task, however for discrimination. Ms Butterworth offered the view that "everyone" talked to Mr Williams that evening and he was all "touched out" i.e. exhausted.
67. The Respondents highlight that there were no negative comments for Ms Chou of making these suggestions given that she continued working for the First Respondent as a Director until October 2023.

Discrimination jar

68. There was a discrepancy between two of the Respondents' witnesses' evidence as to whether this was an actual physical jar (per the evidence of Ms Courteney-Harris), or as Employee A understood this was just a running joke but with no actual physical jar.

69. I have not needed to resolve that discrepancy. It is beyond doubt that there was a joke in 2021 among some colleagues about a sexism/racism jar.

Reporting to Mr Poole

70. The Respondents say that as of February 2022 the Claimant's reporting line changed to Mr Poole. Although this was agreed on her behalf by her legal team it became clear during the course of the hearing that the Claimant asserted that she never reported to Mr Poole, but rather worked with him and supported him in learning the ropes in the recruitment industry. He for his part accepts that they worked together as more of a team, but states that technically the Claimant was reporting to him. She denies that she trained him, but says that she did provide him with assistance in understanding the business as did various others e.g. Theo Williams and Charles Medhurst.
71. It was curious that there was a dispute of fact as to the reporting line, given that this is nearly always capable of verification and agreement in employment law disputes.
72. Ultimately I find that Mr Poole was senior to the Claimant and worked within the FICC (Fixed Income Currencies and Commodities) grouping. This is clear from an organisation chart dated August 2022, which shows Mr Poole as Director, then directly underneath him the Claimant as Senior Associate and then immediately underneath her Employee N, Associate.
73. I find that a WhatsApp exchange 7 – 9 March 2022 between the Claimant and Mr Poole strongly supports the Respondents' case on reporting line. On 7 March the Claimant asks Mr Poole for permission to go slightly early. Two days later he is checking that she will put some bullet points down to send to the Lukes in relation to her focus area by the end of the week.
74. There is an exchange on 5 December 2022 which again supports that Mr Poole is running the desk on which the Claimant works, albeit she is not happy about it. She refers to him being paid for her commodity.
75. The Claimant on a number of occasions on private WhatsApp communications asserted that she did not report to Mr Poole. It would be a curious statement to make unless it was a response or a reaction to something. On balance I find that the comments made by the Claimant were a reaction to the formal reporting line which was that she did report to Mr Poole and she knew this. That structure evidently smarted from the Claimant's perspective, leading to her various references to it.

Zermatt trip

76. In February 2022 there was a work ski trip to Zermatt.
77. On that trip Mr Stovell admits showing to colleagues, including Siyu Tian, a Chinese national, a YouTube video clip of Ronnie Chieng, a Malaysian stand up comedian of Chinese heritage making jokes on the theme "Chinese people love money".

78. Theo Williams gave evidence in his witness statement that on this trip both Luke Williams and Luke Stovell made a joke about the Claimant's Mexican father who works in the poultry industry comparing him to a character in Breaking Bad who works for the Mexican drug cartel under the pretence of running a chicken fast food chain. He says that the subtext to this joke was that Mexicans were all part of drug cartels. He says that Holly Butterworth was also present and openly laughed at the joke, despite the fact that the Claimant was visibly upset by this comment.
79. That this joke had been made was supported by Siyu Tian, another colleague. Her evidence was that Luke Stovell repeatedly referred to Paloma's Mexican heritage and made jokes about this in particular when she first joined Lascaux at a company drinks. She joined in January 2021. She said that he on bringing up that the Claimant's father was a chicken farmer in Mexico, and made comments that her family was Mexican and therefore part of a cartel and dangerous. Her evidence was that these "jokes" were made openly in front of others and the Claimant was upset and hurt by this.
80. This allegation is not mentioned by the Claimant at all either in her grievance, not in her witness statement despite the fact that she was, according to Theo Williams, upset about it. The most significant event in Zermatt as regards matters relevant to discrimination in the Claimant's mind related to Employee N, not herself.

Zermatt - black/white/brown comment

81. Also on the Zermatt trip a junior colleague Employee N stated that she was "not a black or white kind of person", referring to her general approach to life. Employee N has Indian heritage. Luke Stovell responded: "[N] you aren't black or white, you are brown". While it appears that this was intended as a joke, Mr Stovell realised that this had caused offence and apologised then and at a later stage back in London.
82. At around that time the Claimant had a private WhatsApp exchange with Holly Butterworth, the Fourth Respondent on 2 February 2022. In it, she made fun of Employee N alleging that there were no ciabattas or cutlery for Indians. The Claimant related it back to an earlier allegation made by Employee N that a taxi driver had been racist. She joked that she found it "hilarious" and said that she was encouraging it (i.e. Ms Srivastava's belief that she had experienced racism). The underlying tone is to treat matters of discrimination lightly and contained a clear implication that the Claimant believed that Employee N was alleging racism with no foundation and perhaps that she was deluded.
83. In a long gossipy WhatsApp exchange on 7 February 2022 among different colleagues after the ski trip the Claimant commented:
- "Guys [Employee N] cannot read people - she is delusional"
84. The context of this comment somewhat difficult to make out since there are various images in the exchange, omitted from the tribunal bundle which are provide much of the source of the humour.

Theo Williams – relationship with the Claimant

85. Theo Williams on his own version of the timeline started dating the Claimant in January 2024.
86. There is ample evidence in the bundle to suggest that he had a close relationship with the Claimant while they were both employees during 2022 and 2023. It is not necessary for the Tribunal to make a finding as to when this became a romantic relationship or formal “dating” but it is clear that the two of them regarded each other as confidants. They shared thoughts about the workplace and the Lukes and had contemplated a shared professional future in copious idle messaging exchanges hour by hour during 2023.
87. By October 2023 Ms Butterworth regarded Theo Williams as being “in a relationship with” the Claimant. I find that this was closer to the reality than Theo William’s version.

Zermatt - dating black men comment

88. Theo Williams, one of the Claimant’s witnesses, gave evidence that Mr Stovell had made a comment to him in Zermatt about the Claimant’s large “arse” and stated in witness statement that “she has a large arse, she’s probably into black guys” or in oral evidence “I bet she’s into black guys”. It is the Claimant’s case that at a later stage Theo Williams told her about this.
89. Theo Williams suggested that this was motivated to get a reaction from him because Mr Stovell believed that Theo Williams was attracted to the Claimant.
90. The Tribunal is again faced with the difficulty of trying to reconstruct events at work trip, first raised years after the event with no contemporaneous supporting evidence.
91. It is not in dispute that a version of this allegation was repeated by the Claimant in a meeting on 1 November 2023, which was approximately 20 months after the comment was alleged made. On that occasion Mr Stovell stated that this allegation was “categorically false”, which was his position in the Tribunal hearing. The Claimant’s understanding reproduced in her grievance document two days later on 3 November in which she said that Mr Stovell had “implied to” Theo Williams and Will Poole that she must date “Black Men”.
92. I find that the Claimant did believe that such a comment had been made. This allegation emerged among other things at the meeting on 1 November 2023. The Claimant knew that this meeting was being recorded. I have considered but rejected the possibility that she simply made this up. On the balance of probabilities I find that she was told that these comments had been made by Mr Stovell by Theo Williams. I have considered but rejected the possibility that Theo Williams made this up purely for devilment or some other reason. Although he plainly was a witness who sought to support the Claimant’s case and also had a very negative view of the Second and Third Respondents, I found that at root this was an allegation based on fact.

93. On balance I accept that Mr Stovell made an inappropriate joke to Theo Williams about the Claimant at that time, to get a rise out of him. It is impossible to be precise about exactly what was said.

March 2022 – Luke Stovell's career guidance to the Claimant

94. In a private message exchange between the Claimant and Theo Williams on 7 March 2022 they joke about their colleague Roxanne being a lesbian. This was purely because she touched the Claimant's back. This does not appear to be a comment on her actual sexuality.
95. They then move on to a discussion about the ongoing performance round and elements taken into account in evaluation of the bonus. Mr Williams makes it clear that there is a discretionary part of bonus for "helping people", and encourages the Claimant to say nice things about him.
96. The Claimant responds with a comment about guidance that she'd been given by Luke Stovell (and possibly also Luke Williams). She reported that she'd been told to "walk the walk" and summarises the management feedback that she has received as:

"Luke and luke think I'm good at the job but to be promoted I need to be more corporate

I'm too much of a clown"

97. A little later in the exchange she says:

"It's fine he didn't say it in a mean way

But yea luke s thinks I'm strange what's new

He said that since I have made so many hires

I need to stop down playing myself

People like RC up play themselves

And I downplay myself and act like a clown

And I was like no to be clear I don't act like a clown I am a clown

98. This was in the context of a personal exchange with Theo Williams. This is an unguarded summary by the Claimant of the appropriate attempts of Luke Stovell to offer her guidance for career progression. It is evident that she understood that both Lukes saw her as being a strong performer and that Luke Stovell was encouraging her to behave in a more professional way and not to undersell herself.

Comments on colleague's breasts – summer 2022

99. The Claimant alleges that Mr Poole inappropriately asked her to look at her Instagram page to look at photographs of a colleague N and made the observation that her breasts were “large for an Indian woman”. Mr Poole says that the Claimant herself initiated this discussion and made the observation that N had “massive” breasts when at university but now they were smaller.
100. It is not in dispute, that the Claimant and Mr Poole had a discussion in which the size of N’s breasts was being discussed. It is not in dispute that the images which the basis for discussion were on the Claimant’s mobile telephone. She had the phone in her hand and she accepts that she was scrolling i.e. she was in control of the images that they were looking at.
101. The Claimant relies on her text to Theo Williams “Dude he always asked about N boobs” on 30 May 2023. That text was sent in the days after the trip to Madrid during which Mr Poole had made the comment about the Claimant lactating. There was a conversation when Mr Poole commented in the open office about bra advertisements on the underground, referred to in the hearing as the “Boobs on the Tube” incident.
102. It is difficult to put much weight on the text “always asked”, which appears likely to be an exaggeration. The Claimant’s case now is not that he was “always” asking about N’s boobs, but rather that this happened on a particular occasion.
103. I accepted Mr Poole’s evidence that the noteworthy thing about the bras was that there were male as well as female models. That was unusual. The connection between the bra advert and Employee N is fairly tenuous.
104. These factual disputes are particularly difficult when there is no direct corroborative evidence at the time.
105. On balance I accepted Mr Poole’s evidence that this was a conversation that was initiated by the Claimant herself for the following reasons. She had a relaxed and fairly uninhibited relationship with Mr Poole as demonstrated by her other WhatsApp communication with him at that time, pre-Madrid. I note that these conversations contain far more communication from her and that Mr Poole is fairly reticent in his responses. She herself latter made inappropriate comments about the attractiveness of a female colleague e.g. Employee A. The Claimant was not objective in her evidence when it came to the topic of Mr Poole. She would not admit that she reported to him. She was overwhelmingly preoccupied by the idea that Mr Poole got the job of Director unmerited whereas she did not. I bear in mind that she did not mention this Employee N breasts incident in the formal grievance of 3 November 2023.
106. While I concluded that the Claimant initiated this conversation, I find that Mr Poole participated in it. He ought to have shut it down.

EM women or “EM girls”

107. The Claimant says that Luke Williams would openly joke about how women in the office were “EM Women” (i.e. emerging market women). She says that this was a humiliating term which he only used for the non-white and non-British women in the office.
108. Siyu Tian’s evidence was that it was a term used regularly by Luke Stovell (rather than Luke Williams). Mr Stovell strongly denies this.
109. Charles Medhurst says that on the return from Zermatt Luke Williams had joked about the “EM girls”, EM in meaning “Emerging Market”. He says that this comment was aimed at Employee N, Siyu Tian and the Claimant, all three of whom are non-white and junior employees. Roxanne Chou was also there, but from Mr Medhurst’s recollection he did I do not think she had been included in that joke, just the junior female staff.
110. There is evidence that Ms Chou used this term and that Mr Luke Williams did not like this term and told one of the employees not to use it. The Claimant nevertheless contends that Mr Williams had initiated this joke.
111. On balance I accepted Mr Williams’ evidence that Roxanne Chou had originally originated this expression and that Mr Luke Williams made it clear that did not like it.

April 2022 lateness

112. It was noted that the Claimant and Employee N were 12 minutes late on 4 April 2022 and in the view of Victoria Courteney-Harris, Luke Stovell was not happy about it.

May 2022

113. In a long private messenger exchange between Theo Williams and the Claimant on 11 May 2022 Mr Williams intimates that he is being given guidance from the Second and Third Respondent that they have concerns about a few things. The Claimant accurately guesses that these concerns include “not respecting Will [Poole]” and “being on time etc”. This supports that timekeeping was a concern of the Second and Third Respondents.

Claimant’s reaction to gentle reminder about work

114. On the morning of 20 June Victoria Courteney-Harris sent a message to the Claimant, Siyu Tian and Employee N:

“Just a gentle reminder that work starts at 8.30am!”
115. Ms Courteney-Harris had a message exchange a few minutes later with Luke Williams in which she mentioned “Just having some trouble with Paloma” “She’s going to complain because I sent a don’t be late email this morning I think”.

Claimant's extreme reaction to gentle reminder about lateness

116. Following on from a “gentle reminder” about lateness in June 2022, which the Claimant interpreted as being an official warning, Ms Courteney-Harris and Ms Butterworth had the following exchange about her surprising reaction to it:

[22/06/2022, 09:47:03] Holls: she is so mental

[22/06/2022, 09:47:19] Victoria Courteney-Harris: I genuinely can't tell if she's hungover/coming down and over reacting OR she's just mental

[22/06/2022, 09:47:29] Victoria Courteney-Harris: It literally said 'gentle reminder'

117. On 22 June 2022 there was a message exchange between Holly Butterworth and Roxanne Chou. The content suggested that although Ms Chou tried to stay out of the Claimant's way, Ms Butterworth thought that she was “so upset” and formed the view that the Claimant had “f*cked over” Ms Chou.

118. There had been a meeting on that day (22 June) where the Claimant had been “super emotional” “in a very frenzied way rather than crying” which Luke Williams had found odd. Ms Butterworth queried whether Mr Williams had seemed “weary of it all”. She had been asked to keep an eye on the Claimant. She also noted that the Claimant had taken her colleagues Employee N then Theo Williams out to chat about it.

119. Later that day Luke Williams was reassuring, supportive and appropriately acknowledged the Claimant's success:

[22/06/2022, 17:38:56] luke williams: relax, don't worry about hypothetical situations. I'm not in the office now til Tuesday, we'll sit down then and go through some proper plans for growth. Maybe have a drink this evening and reflect on having done extremely well so far this year

[22/06/2022, 17:38:56] Paloma Lopez Bondi: Thanks Luke appreciate it & see you next week

120. Given the Claimant's apparently extreme reaction to a gentle warning about timekeeping, I find it unsurprising that there is limited documented evidence as her timekeeping became more of an issue later in 2023.

Comments about Mexicans – June 2022

121. The Claimant's case is that Mr Stovell said to her in June 2022:

“The only way Mexicans can afford to be in London if they're not cleaners is if they're drug lords”.

122. She is of says that this was in relation to the staff who cleaned the office, who was speaking Spanish between themselves. But she said this was a direct reference to her Mexican heritage and offensive to her.
123. The grievance of 3 November 2023 contains these words, although she does not specify that it was in June 2022. I find that something along these lines was said to the Claimant by Mr Stovell.

Comments about Mexicans generally

124. The Claimant also alleges in her witness statement Luke Stovell and Luke Williams “were offensive to her because of my Mexican heritage, as they would regularly make offensive comments about my father front of other employees”.
125. There is no reference at all in the grievance dated 3 November 2022 to Luke Williams making offensive comments about her father in front of other employees, whereas in relation to Mr Stovell she refers to “constant jokes to everyone in the officer about my father being a drug cartel member”.
126. That is significant because the grievance set out specific details of why she considered why Mr Luke Williams was individually racist. Instead she refers to comments she recalls Mr Luke Williams making about various other colleagues. This suggests to me that at the time of writing the grievance in November 2023 the Claimant was perfectly happy to make direct and controversial allegations directed at Mr Luke Williams, but constant jokes about her father and Mexican heritage was apparently not something in her mind.
127. This is a significant escalation by the Claimant from the content of her grievance. I find it improbable that the Claimant would be regularly subject to offensive comments about her father by both Partners in the business in front of others with there being no comment in the voluminous message exchanges, or there being some reaction from her.
128. Charles Medhurst's evidence was that between August and November 2021, Luke Williams made a joke suggesting the Claimant parents would have to buy a lot of carpets to dispose of all the bodies. He says he believes that Mr Williams he made this joke about “cartels” because of Claimant's Mexican heritage. He says that the Claimant brushed it off at the time. The Claimant does not refer to this either in her grievance or specifically in her witness statement, although there is a general allegation about comments about her father. This suggests a joke was made by Mr Williams in 2021.
129. Siyu Tian's evidence was that Luke Stovell had made jokes about the Claimant's father being a chicken farm in Mexico and because her family was Mexican they were part of a cartel dangerous. Her evidence was that the Claimant was upset and hurt by this.
130. Theo Williams says that a comparison to a chicken farmer character working for a Mexican drug cartel in a television series was made in Zermatt (February 2022) by both Luke Williams and Luke Stovell.

131. Ms Chou's text about "Mexican cartel" made in November 2021, albeit that this is multiple hearsay and on her own account in the text written when she had been drinking, does support that comment had been made about the Claimant's Mexican heritage by Mr Stovell which had upset the Claimant.
132. The Claimant relies in support of these allegations that she refers to "discrimination on being Mexican" on 29 June 2023 (i.e. a year later) and exchange with Siyu Tian and a suggestion by her in a message exchange with Theo Williams three months later on 26 September 2022 "They think I'm a mad Mexican".
133. The evidence about the Partners making comments about the Claimant's Mexican heritage contains slight discrepancies, although inevitably individuals' recollection of such matters will naturally vary.
134. The Claimant's account about "regularly" offensive comments about her father made by Messrs Williams and Stovell is, I find, an overstatement, particularly in relation to Mr Williams. I did however form the conclusion that in 2021 and 2022 there had been joke (in the minds of the Partners at least) made on more than one occasion comparing the Claimant's father to a character in Breaking Bad based on the fact that he was a chicken farmer in Mexican. The Claimant knew that this was meant as a joke, particularly because she knew that Mr Williams and Mr Stovell held her in high esteem professionally at that time. The element of repetition by Mr Stovell and the reference to her nationality meant that from her perspective this she did not find this funny and she was annoyed by the repetition of it.

Reporting line

135. The Claimant messaged Theo Williams on 28 June 2022.

[Employee N] and i now work for Will [2651]

Mr Stovell's frustration with Claimant

136. The exchange between Ms Butterworth and Ms Chou carries on a couple of weeks later about Luke Williams having to manage the Claimant:

"[04/07/2022, 10:40:11] Roxanne Chou: Think he and LSs agreement was that Lw manages plb

[04/07/2022, 10:40:33] Roxanne Chou: Ls was pissed off at her and called her crazy I think even subtly in her face

[04/07/2022, 10:40:42] Roxanne Chou: Hence the meltdown and emotions I think as well

[04/07/2022, 10:40:53] Holls: He just thinks she's like a hormonal teenager (who also takes waaaaay too many drugs) so for some reason he's way more patient with her

137. It seems quite clear that over a year before her dismissal the Claimant was regarded internally as volatile and disruptive. The comment about he (presumably Luke Williams) being “way more patient”, suggests that the Claimant was given more latitude with her behaviour than other colleagues, most likely because she was so successful as a recruiter. There is evidence that suggests that she was frequently hungover at work. Drinks with potential candidates after work was a feature of the role of a recruiter more generally which may have made this something of an occupational hazard.

Promotion

138. The following month, in July 2022 the Claimant was promoted to Senior Associate which precipitated a candidate exchange between a couple of colleagues about her behaviour:

[02/08/2022, 08:45:54] Victoria Courteney-Harris: But she is a total mess 😂 **I think this is as far as they can promote her**

[02/08/2022, 08:46:20] Holls: lol it was probably also to placate her craziness a little bit

[02/08/2022, 08:46:31] Holls: keep her quiet for another year or so

[02/08/2022, 08:46:50] Holls: so so true, especially with which is why LW will always have a soft spot for her too

[02/08/2022, 09:10:02] Victoria Courteney-Harris: She’s on par with Rox for the most placements this year. Tbh I’ll give her credit for that but it’s hard for them to promote her further, **she’s not manager material**

[emphasis added]

139. I find that this unguarded and rather unprofessional exchange nevertheless captured an honest view of the Claimant held by her colleagues at the time. She was extremely successful in her role as a recruiter of candidates, which was reflected in her substantial bonus for the year 2022. Viewed from this perspective she was a star performer. In other respects however she was not a good “corporate citizen” which was a phrase used to describe other colleagues who were less successful but followed the rules a little more. She was plainly regarded as something of a maverick.
140. This exchange is significant. First this is a private discussion between two female colleagues, not members of the “Boys Club” posited by the Claimant. Second, Ms Courteney-Harris’s comment was “as far as they **can** promote her”, not *will* promote her.

Messaging

141. Most of the key characters in the office who are the protagonists in this litigation used messaging platform WhatsApp and also in some cases Telegram. Mostly these were being used on smartphones. In some cases employees sent and

received WhatsApp messages from their work computers as well. The bundle contains literally thousands of pages of these messages. Some are exchanges between two individuals. Sometimes there is a group.

142. The tone of much of this communication is gossipy and irreverent. Fun is sometimes being poked of someone who is not on the group, and in particular people in management positions.
143. The tone of the Claimant in many of her communications is sarcastic, and particularly irreverent about management and some of her other colleagues. There is a lot of swearing. Both she and Theo Williams were irreverent with a subversive sense of humour and undermined management by encouraging junior colleagues to have a dim view of management and not to trust the Partners. The Claimant was at times arrogant and insensitive in her attitude to less well performing colleagues.
144. These messages were sent in the expectation that these would be private. In the main it seems to me that the vast majority of these messages are irrelevant to the issues that I need to determine. There are however some messages which indicate views and concerns on the part of the Claimant, the individual respondents and various other protagonists in this claim. It seems to me that those messages are relevant insofar as they support or undermine the cases that have been put forward in this litigation.
145. There are certain repeated themes. One of them is where the Claimant feels that she has not been productive and such is not got much work done. Another theme is the Claimant and others saying that they feel hungover having overindulged the night before. There are some references which suggest the drugs are being taken on nights out.
146. Another theme is the Claimant and Theo Williams who later became her boyfriend, sometimes just as a pair, or in discussion with others reflecting negatively on the firm and its management and talking about the possibility of leaving. The Claimant's case is that irrespective of what she may have said in those messages in fact due to restrictive covenants and also immigration Visa restrictions she was limited in her ability to follow through on the various threats to leave.

Culture

147. One of the Claimant's witnesses Charles Medhurst, a former employee of the First Respondent, who was an associate and junior to the Claimant, when he was asked to reflect on various text messages that during this period "I wasn't a nice version of myself". He also commented that "Everyone [was] making fun of everyone in that office".
148. He explained that there was a fairly cut-throat culture and people could be unpleasant. There is abundant evidence in the bundle that colleagues spoke about each other in a disrespectful way using bad language. Mostly this was behind the back of the person they were speaking about although not always.

149. In the grand scheme of the various communications Mr Medhurst's were at the milder end. He was quite candid in his evidence that although he had resented some management actions while he worked for the First Respondent, with the benefit of hindsight he accepted that some criticisms made of him were fair. I felt that he was comparatively even-handed and balanced in the evidence that he gave in the Tribunal.
150. I accepted his evidence that the aggressive culture generally made him uncomfortable.

More men / recruitment – October 2022

151. On 3 October 2022 Luke Stovell and Will Poole had the following exchange about recruitment:

[03/10/2022, 08:33:00] Luke: Just get the best "lad"

[03/10/2022, 08:33:01] Will Poole: Yeah I think so

[03/10/2022, 08:33:10] Luke: rugby playing confident

[03/10/2022, 08:33:22] Will Poole: Yeah

Requirements for Director

152. Mr Theo Williams messaged the Claimant on 12 July 2022 explaining why he was not going to be promoted to Director later on that year:

"That I'm openly making fun of them in the office

Theo Williams: Which in fairness

Theo Williams: I do tend to

[laughing with tears emoji]

Paloma Lopez Bondi: Such babies

153. This delay in promotion notwithstanding, Theo Williams was subsequently promoted to Director six months later on 1 January 2023.

Denmark

154. On 18-19 October 2022 the Claimant went on the first of two business trips to Denmark. Both Lukes and Will Poole also went on this trip.

Late

155. On 4 December 2022 Victoria Courteney-Harris emailed the Claimant:

Gentle reminder that work starts at 8.30am. Do let us know if you are running late!

Claimant's performance 2022

- 156. The Claimant's evidence is that she made 17 placements of candidates in 2022, which was the highest number of placements made by recruiters within the business.
- 157. It is not in dispute that the Claimant was considered to have performed very strongly and received a large bonus performance for 2022 of £440,000, which was paid partly in December 2022 and partly in March 2023.

Jokes

- 158. Mr Williams denied calling a colleague Euan a "fascist Nazi". He does accept that he called him a Nazi. He said this was in the context of a jokey exchange where Euan called him a communist.
- 159. Mr Williams was candid that certain things have been said that were inappropriate.
- 160. His joke about "fucking Greeks always being in fucking Greece" he said was light hearted. He said that this was not a generalisation about Greek people, but a specific, light hearted comment about two particular Greek clients who were difficult to get hold of and often on holiday.

Birthday invite

- 161. On 30 March 2023, the Claimant invited her then manager Will Poole and his wife to her birthday. The WhatsApp exchange in which she invited him is chatty and friendly and encouraging. It seems that she is excited about the venue the DJ and some of the other details. Most of the messages in this exchange come from her rather than Mr Poole. At that time she thought that Mr Poole was "nice".

Handbook

- 162. The Fourth Respondent Ms Butterworth had begun to take over responsibility for HR matters from the beginning of 2023.
- 163. By 13 April 2023 she notified all employees of the updated Company Handbook. The Claimant had spotted this document on the shared drive the previous week and had notified Theo Williams and Charles Medhurst about it. Her cynical take was that there were three pages enabling the First Respondent's management to fire employees.

Denmark (second trip)

- 164. In April 2023 the Claimant accompanied both Luke Williams and Luke Stovell to on the second trip to Denmark. This coincided with her birthday.
- 165. Will Poole did not attend that trip, but whilst on that trip the Claimant had a long and chatty exchange with him by WhatsApp. They are chatting about people she is looking at in Denmark and whether or not they are good-looking. Most

of the communication volunteered by the Claimant. Mr Poole's comments are at the level of polite chit chat and no more. Based on this exchange at least it is not possible to identify an obsessive interest which the Claimant alleged he had in her romantic life.

- 166. Mr Poole warns her in a friendly way at one stage when she mentions going out for drinks with Luke and Luke "don't drink too many...". This was good advice which the Claimant did not follow.
- 167. She comments that Mr Poole should have come to her birthday.

Claimant and Luke Williams bar talk about her promotion and "optics" – April 2023

- 168. While on that trip the Claimant had a discussion in a bar with Luke Williams about her concern about not being promoted to Director, especially given her ongoing frustration that Will Poole had been recruited in to the First Respondent organisation at that level. I accept Mr Williams' evidence that the Claimant had drunk a significant amount of alcohol. She admitted to her colleagues in a chat that she'd had six drinks. She described the exchange as "a massive fight".
- 169. The Claimant told Mr Williams that in her view Mr Poole was "a nice guy who should be an accountant" (i.e. rather than a head-hunter).
- 170. The Claimant's evidence is that Mr Williams said to her that clients would rather speak to a "beard". Mr Williams accepts that joked that "Will's got more hair on his face than on the top of his head". The Claimant interpreted this comment being specifically about Mr Poole being a man. I accept that Mr Williams' intention was to convey that Mr Poole was more experienced.
- 171. In common with her evidence on a number of matters I found that the Claimant combined things that were actually said with her own conjecture and interpretation and a degree of exaggeration. There was some common ground in the accounts given by the Claimant and Mr Williams. Where the Claimant and Mr Williams differed I found his version of the conversation more plausible.
- 172. She alleges that Mr Williams told her that she was not eligible for a Director role due to being young and a non-white, non-British woman. My impression is that both Mr Williams and Mr Stovell found the Claimant difficult to manage but she was a very successful recruiter for them, highly intelligent and perfectly capable of speaking her mind. They had chosen to take her to Denmark on a second occasion, which can only suggest they felt she was asset to that second trip from a commercial business development point of view. I find that Mr Williams did not tell the Claimant that she was not eligible to be a Director due to being a non-white, non-British woman. Mr Williams had already made Ms Chou, a non-white, non-British woman a Director, a fact that he and the Claimant would have been well aware of.
- 173. Mr Williams explained to the Claimant, that in the recruitment industry there is a tendency toward title inflation for marketing purposes which he was trying to avoid. The message exchange with Theo Williams the following day (below)

makes it absolutely clear the Luke Williams was not telling her she was ineligible for promotion at all, but rather not “yet”.

174. In relation to the question of the Claimant progressing to Director, I find that there was a discussion about “company optics”, meaning how it would look to clients. The Claimant says said Mr Williams said that “unfortunately”, clients like to “drink beers with those similar to them”, which she took to mean people like Luke Stovell, Mungo and Will whom the Claimant characterised as all white, male and in their mid-30s or above with children.
175. Mr Williams’ version is that he explained his view that client perception is important and clients are looking for counterpart recruiters who have experience and insight into the market that is commensurate with that experience. He explained that Will Poole had that experience and had a lot of relevant sales experience. I accept that he trying to convey that because of his experience he was suitable to be a Director.

Loyalty

176. I accepted the Claimant’s evidence that as part of this conversation Mr Williams told her that some employees such as Mr Poole and Ms Butterworth would be rewarded for “loyalty” but that Roxanne Chou, Theo Williams and the Claimant “gave Luke Stovell headaches” and gave Mr Williams himself “nightmares” by questioning authority. He raised their concern about employees interviewing elsewhere, opportunistically seeking to move to competitors for money. She said that he said that everyone is replaceable, and that as the owner of Lascaux he could manage it how he saw fit. He said that if employees, including the Claimant herself, were unhappy with how he ran Lascaux, then they would be free to “fuck off”.

Claimant and Theo William’s discussion

177. The Claimant’s private exchange with Theo Williams the following day casts some light on her exchange with Luke Williams. This is exchange is in the early hours of the morning reads as follows [the numbers are timings on the 24 hour clock] :

“Theo Williams

01:53 Don't worry about our livelihoods

01:53 We're going to be rich

13.12 The bar is so fucking low

We will ruin them

Keep your cool whatever comes up, they are cunts and it will be their downfall. Don't help them

Eyes on the prize and even in the worst of the worst case scenarios for anyone involved we will deal with it

...

Paloma Lopez-bondi

15:19 I was re thinking about my conversation yesterday with williams

And I should feel bad it's outrageous

That I make 40+ placements in 3.5 years

15:20 And he has the audacity to tell me that I can't be director **yet**

15:20 Because clients care about company optics

[emphasis in bold added]

178. The use of the “yet” undermines any suggestion that Luke Williams was telling the Claimant that she was ineligible for promotion generally. The reality was that this was about timing.
179. She had been promoted the previous Summer. Theo Williams her close confidante had been told the previous year that he would not be promoted because he was too disrespectful in the office. He was in fact subsequently promoted to Director.
180. This conversion with Luke Williams marked something of a turning point in the Claimant’s attitude. The Claimant, had been hitherto extremely hard working and successful. She began to become demoralised and disillusioned.

One more bonus

181. On 10 May 2023 the Claimant messaged Charles Medhurst
- Siyu me and Theo just going for 1 more bonus!
- Max
182. While the messaging contains a significant amount of idle chatter and speculation, given the negative comments in preceding weeks I find that this idea of one more bonus was becoming a settled plan in the Claimant’s mind.

Claimant fell into basement

183. On 16 May 2023 the Claimant fell and injured her leg on some steep stairs to a restaurant in a basement.

Cynical and negative emails

184. The Claimant suggests that her treatment by Mr Poole during the trip to Madrid at the end of May 2023 marked a turning point in her employment with the First Respondent. I find the reality was that she had a cynical and negative attitude to working for the First Respondent business for a months before Madrid. She was seriously contemplating an exit from the business before Madrid.

185. On 19 May 2023 the Claimant had the following exchange with Charles Medhurst:

[14:48] Charlie Medhurst: I'm going to really start looking now

[14:48] Paloma Lopez Bondi: Same but I have visa issue

186. In an exchange on 22 May 2023, before the Madrid trip, Theo Williams mentioned having a “retarded chat” with them (the Partners) and the Claimant refers to Luke Williams and Luke Stovell as “dumbasses”. She wrote:

[10:51] What are we doing here

Honestly Theo

I have enough cash”

187. The following day the Claimant and Theo Williams joke about deliberately sabotaging the First Respondent’s business:

[08:56:53] Paloma Lopez Bondi: Now luke sending me rec to rec emails

[08:57:32] Paloma Lopez Bondi: I actually don't care if this guy is shit I'm going to say let's hire

08:59:18] Theo Williams: The shitter and crazier the better

188. This was in all probability cynical humour rather than a genuine proposal, but it did suggest a wholly negative attitude to the First Respondent.

189. The day after that, on 24 May 2023 the Claimant wrote to Theo Williams:

[07.10] **PL** At the moment Theo we are modifying our personalities

To be non challenging and small picture

Which is why I am fundamentally so uncomfortable with the situation

Theo Williams - Yea it won't sit right until we're out

Dealing with fucking small

grade drama and politics dictated by cunts

It's actually infuriating

Starting to think the zen was just a phase

PL [07:14] Dude we are spiting on the graves of our own ancestors

In order to please some racist Assholes
Because they dangle some amount of money
In front of us
That we made them may I add
[emphasis added]

190. It is quite clear from this exchange, before Madrid, that the Claimant and Theo Williams have a shared desire to leave the First Respondent's employment at a point in the fairly near future.

Injury 16 May 2023

191. On 16 May 2023 the Claimant slipped and injured herself on 16 May 2023 on the stairs from a restaurant leading to the bathroom. She texted Victoria Courteney-Harris at 5:55 AM Following Morning to ask if she could work from home.
192. The Claimant had a short message exchange with Luke Williams the following day in which she said she'd for the downstairs she was fine and there was one cut was deep so she wanted to get it disinfected (laughing with tears emoji).
193. Mr Williams responded "were you disoriented?", to which she responded "Noo".
194. I find that at the time that this was a light-hearted exchange probably alluding to the possibility that the consumption of alcohol was a factor in the accident.

More thoughts about leaving

195. On 22 May, two days before a company trip to Madrid, the Claimant shared with Charles Medhurst:
- I might quit as well
Don't feel like being here

Madrid work trip – May 2023

196. On Wednesday 24 May – Friday 26 May 2023 the First Respondent had an away trip to Madrid which all staff were invited to.
197. Mr Luke Williams' assessment at the Tribunal hearing, made with the benefit of hindsight, was that this trip had been a disaster. It seems fairly clear that a number of the employees on this trip drank more than they should have done. A number of people did and said things that they should not have done.
198. The various different accounts given both internally and then in the Employment Tribunal were somewhat jumbled with some common ground and some inconsistencies. What happened when, who saw and heard what when

was not completely straightforward. The fall out of a high spirited work trip in which a lot of alcohol was consumed and a lot of gossiping occurred during the trip and during the aftermath means that I have regarded recollections from both sides of this dispute with a degree of circumspection.

199. Not all of the factual disputes have needed to be resolved. I have tried to focus on the key factual disputes which are relevant to the list of issues.

Madrid day 1 (Wed 23 May)

200. The team arrived in the afternoon and the first day was largely uneventful.
201. Luke Williams admitted making a comment “All Italians are thieves” comment on the first evening in Madrid. This was upon learning from Siyu Tian that her then boyfriend was Italian. Mr Williams accepted was a poorly conceived joke in poor taste. He did not disagree that the comment was racist.

Madrid day 2 (Thurs 25 May)

202. On the second day of the trip there had been a wine-tasting and tapas tour which started around midday. Evidently a lot of alcohol had been drunk generally. The Claimant had drunk a lot of alcohol. She told Luke Williams that they undervalued Siyu Tian, and that in her view Ms Tian should not have to work for Roxanne Chou, whom the Claimant said was an idiot and a “snake”.

“Intimate pictures” - background

203. At paragraph 16.8 of the Grounds of Complaint it is alleged that Mr Poole showed “intimate pictures of his wife” to the Claimant and others, i.e. pictures in the plural. This suggests that multiple pictures were being produced, which creates a misleading impression of what occurred.
204. The Claimant says that she was sat next to Will Poole at a bar on the second day of the Madrid trip when unprompted he pulled out a Polaroid picture (i.e. singular) of his wife’s breasts which she kept in his wallet. She says at the time that he did this he was very drunk and she does not know what prompted him to do it. She says that she was stunned, did not react and he put the picture back in his wallet, but then showed it to other people later on, specifically Theo Williams, Siyu Tian, Employee A and another colleague Lucia.
205. I find that everyone involved in this incident had drunk a fair amount of alcohol. A private photograph of Mr Poole’s wife taken in a photobooth at a Halloween party was kept in his wallet and seen by Siyu Tian and Charles Medhurst in a bar in Madrid. I accept his evidence that the photo fell out of his wallet accidentally and he is unclear if others saw it and that it fell out of his wallet accidentally. Mr Poole says he was “mortified” and quickly returned it to his wallet.
206. Mr Medhurst saw that the photograph had fallen out but did not himself see the picture, which is more consistent with an accident rather than the image being deliberately shown around a group of people.

207. In the internal investigation Siyu Tian's version of events was that Mr Poole had accidentally dropped the picture in front of Lucia and herself in the bar in the square. She *explicitly* stated that this did *not* involve the Claimant.
208. The Claimant's witness Theo Williams says that upon seeing that the picture had fallen from his wallet, Will Poole chose to show it to all of those around the table, most being juniors and a junior colleague Lucia was visibly uncomfortable. By implication even on Theo Williams' account this was *initially* at least an accident.
209. Given the presence of alcohol and the time elapsed since the event I have to regard all accounts with circumspection. This was an incident of a few seconds. The truth of the matter probably lies somewhere between Mr Poole's account and Theo William's account. This was an accident. I accept that Mr Poole was mortified, although this is probably more likely his reaction the following day. I find that Lucia and Theo also saw the photograph.

Was photo shown to Claimant privately?

210. As to the Claimant's suggestion that Mr Poole showed her this photo privately in a separate incident, the burden is on the Claimant to establish this allegation.
211. I find that this is not established on the balance of probabilities for the following reasons.
212. First, Theo Williams was a close confidante of the Claimant by this stage. He witness statement does not suggest that the Claimant told him that Mr Poole had privately shown her the photo, which is what she now says.
213. Second the wording of the Claimant's WhatsApp exchange with Mr Williams on 30 May 2023. The message is:
- "Also had the photo of his nude wife Lucia saw" (sent 16:00 on 30.5.23, B2494).
214. It was put to the Claimant that the content of this text sent to Theo Williams undermined her account that she had seen the Polaroid image herself, on the basis that that this would have been written in very different terms if the Claimant had seen it herself. She said that she discussed it orally with Theo and the meaning of the text was that Lucia had seen it "*as well*".
215. I bear in mind that WhatsApp messages tend to be sent in truncated terms. Sometimes detail is missed or omitted. On balance however I find that if the Claimant had been directly shown the Polaroid by Mr Poole as she now alleges the WhatsApp messages would be in different terms and on balance would have referred or at least alluded to it being shown to her. I find it would be odd to refer to this expressly solely by reference to a third person. There are so many messages between the Claimant and Theo Williams which leads me to the conclusion that a private showing of the photo would have been explicitly referred to at some stage had it occurred. This absence is significant.

216. Third, the Claimant did not mention it in the discussion that she had with Mr Williams on 30 May 2023, i.e. a few days after the Madrid trip. I also find on balance that it was not mentioned to Ms Butterworth the previous week. I find that is significant, especially because she did not hold back in those conversations from raising significant concerns on her mind about Mr Poole.
217. Fourth, there are minor but significant inconsistencies in the Claimant's accounts of this allegation. In the grievance sent over five months later on 3 November 2023 the Claimant alluded to this incident as follows: "showing me unwanted Polaroid photo of his wife's boobs" (photo singular). During the grievance appeal in December 2023 the Claimant complained about Mr Poole "Showing employees photos of his wife's breasts, including Lucia Trouerbach, Siyu Tien, Paloma Lopez-Bondi." (plural photographs). Her pleaded case is "intimate pictures" (plural), whereas her witness statement refers to a polaroid (singular).

Not attracted comment

218. The Claimant said to Mr Poole something along the lines:
- "You're good-looking guy but I am not in any way attracted to you".
219. There is a dispute as to whether this was a response to being shown a photograph of Mr Poole's wife (her version) or a more general conversation about a topic that the Claimant had raised about not being not sexually attracted to people based on looks but instead is attracted to them purely on an emotional level.
220. I accept Mr Poole's version of the context and his impression that he felt that this was odd and a patronising comment.

"Unmarriageable" comment

221. It is not disputed that Will Poole made a comment to the Claimant that she was "unmarriageable".
222. Mr Poole says that the context followed a running joke about the Claimant not being particularly domesticated such that she could not even make a bed. Despite this the Claimant said on a number of occasions that she wanted to have six children. He says that the Claimant admitted she would be difficult to have a relationship with and he said that in response she was "currently unmarriageable". I find that the Claimant had on more than one occasion talked about having a large family.
223. The Claimant perspective is that she felt this was said because Mr Poole's view was that she was "too opinionated" and a "ladette" and by implication these comments would not be made to a male colleague.

"Lactating" comment

224. On the morning of Thursday 25 May the Claimant arrived with wet hair having recently had a shower and part of her T-shirt was wet. She made a comment about being hungover.
225. Will Poole made a comment that she looked as if she was lactating.
226. Mr Poole says that she'd made a comment the previous night about wanting six children and this was an allusion to that. He accepts that the comment was inappropriate.
227. The Claimant does not accept that there was any relevant context other than it was in broad daylight and everyone was sober. She says that she was taken aback.

Fancying Employee A

228. The Claimant told Luke Stovell that Employee A was her kind of woman, and if she was a man she would sleep with her.
229. When Employee A returned from shopping, the Claimant made a similar comment to directly about being her type and if she was a man would be the one she would sleep with. I accept that Holly Butterworth perceived this, not unreasonably as an awkward moment. Employee A, who was apparently relatively sober, appears to have dealt with this gracefully, did not make anything of it and the conversation moved on.
230. As to the Respondents' case that the Claimant said that Employee A was someone she'd "like to fuck" I find on the balance of probabilities that this was not said at the time. I rely on the way that Ms Butterworth described this shortly afterward in a message exchange:

[25/05/2023, 17:38:17] Holls: Harping on that if she were a man she'd fancy Helene

[25/05/2023, 18:14:38] Holls: She then told [Employee A] who took it really nicely and then said right back at ya type thing

Simpletons

231. By later in the day on 25 May, the Claimant had had a lot to drink and became upset. According to Ms Tian she was upset that
- "no one appreciates her for her work at the firm and everything was so unfair. She wasn't specific and she was crying. It was quite hard to have a discussion".
232. The Claimant believes that Will Poole felt bad about the lactating comment and tried to make amends, sitting next to her. She felt however upset by what he was saying. The Claimant says that she found this too much for to handle.

She felt resentful having made Lascaux so much money, “trained” Mr Poole and yet she felt ridiculed. This was the context in which she turned to Theo Williams and Employee A and said

“you two are the only intelligent ones, everyone else here are simpletons”.

233. Mr Stovell’s version was that he was walking with the Claimant between bars. He said that the Claimant was tipsy and in good spirits at this time but she announced that the only smart people in the company were Mr Stovell, herself and Theo Williams and that everyone were “fucking simpletons”. He said he told her he did not agree.

Claimant’s reaction to Mr Poole

234. Later on in the evening Mr Stovell and Mr Williams had the following exchange about the Claimant:

[21:40] Luke [Stovell]: Look at her now. Will went to diffuse and she’s being a cunt

Luke Williams: exit

Luke Williams: not worth the hassle

235. This exchange no doubt sent when people were under the influence and reflected both Luke Williams and Luke Stovell were frustrated with the Claimant whom they felt was ruining what was supposed to be an enjoyable work trip for the whole team. At this stage I find it likely that neither of them had appreciated exactly what Mr Poole had said to the Claimant.

Rugby lads and “top shaggers”

236. Mr Stovell says that he said over dinner in Madrid that “Lascaux should hire confident, well-presented employees of whatever sex”. This is in all likelihood a sanitised version of Mr Stovell said on this occasion, which was part of banter in a bar on an overseas trip rather than a serious conversation about recruitment.
237. On balance I accept the Claimant’s allegation that Mr Stovell used the expressions “top shaggers” and “rugby lads” in a discussion about recruitment. The former phrase was in his mind a running joke. This did not reflect the reality of the First Respondent’s recruitment.
238. I am not persuaded that there were comments about only hiring “good looking women”. Mr Stovell denies it and I am not persuaded that there is evidence that he did say it.

Discussion of conduct in Madrid

239. Back in the London office, on the afternoon of 30 May 2023 the Claimant and Luke Williams had a discussion, following on from events in Madrid. They each

suggest that they themselves instigated this discussion. It is not necessary for that dispute to be resolved. It seems likely that each did want to speak to the other.

240. Luke Williams gave oral evidence about his perception of the Claimant going into this meeting:

...frankly, I felt she was drinking most nights. I think she was using drugs. I think she was overdoing it aggressively. I think her mental state was not particularly good. I think she was extremely fixated on what she felt was the denial of a promotion that was not on any schedule. And I don't think there had ever been any suggestions she was due on. And I thought that the combination of these things was contributing to a situation where she wasn't in a particularly good place mentally and it was showing in her behaviour. And frankly, I had no idea why she behaved the way she did in Madrid. I found it extremely odd and I wanted to discuss it with her and find out what was happening.

241. I make no comment about whether Mr Williams was right or wrong in his assessment, but I do find that this was his genuine view based on his own observation. He was concerned.
242. The Claimant says that in their discussion Mr Williams asked her if she was "on drugs or something". Mr Williams says that he had a concern that the Claimant had been behaving erratically, but did not ask her in terms whether she was taking drugs. Rather he says that he asked if she had been "overdoing it socially" and also asked if everything was okay with her family.
243. The Claimant replied that she should not be pulled up on her behaviour because Will Poole had made comments to her about her "marriageability" and about lactation. This was news to Mr Williams in this meeting.
244. The Claimant said that the First Respondent was a "Boys Club". Mr Williams said that he did not recognise that description. She alleged that cocaine was being purchased in Madrid and shared with junior employees.
245. Mr Williams felt that the Claimant was using Mr Poole's conduct as a means of deflecting away from answering questions about her own conduct.
246. I find on balance that the allegation about the Polaroid photo was not raised at this meeting. Neither Mr Williams nor the Claimant suggest this happened.
247. The Claimant raised the question of her lack of promotion to Director. Mr Williams said he tried to reassure her that they had agreed to hire associate to help develop management skills and experience but felt that he could not have a conversation because the Claimant was angry and shouting, including raising a complaint about her bonus in 2020, which Mr Williams considered was unjustified.

248. According to the Claimant's private exchange with Theo Williams after this conversation, Luke Williams said to her that he knew she went out for drinks with Theo Williams, Charles Medhurst and Siyu Tian and this would stop her being promoted because he could not trust her.
249. Mr Williams told the Claimant if she wanted to raise a grievance she could do.

Luke Williams follow up with Will Poole – 31 May 2023

250. Mr Williams spoke to Mr Poole on the next day 31 May 2023, and made clear to him the language that he had used in Madrid was inappropriate and unacceptable and should not be repeated.
251. I accept Mr Williams' account of this meeting that Mr Poole initially tried to argue that it was appropriate language in the context of the kind of conversations going on in Madrid, but Mr Williams told him that it was not appropriate and not the sort of conduct he would have expected from a Director, which Mr Poole accepted.

Follow up

252. On 5 June 2023 Mr Williams followed up with a short email to the Claimant in which he acknowledged that she had told him that comments had been made which she felt were inappropriate. He drew her attention to the company grievance policy. As to her allegation that it was a "Boys' Club", he said that he found it hard to accept and said if you want to discuss any specific instance she would be happy to do so, as would Holly [Butterworth] who would be looking after HR matters within her remit going forward.
253. As to promotion processes and expectations he flagged that Ms Butterworth would be scheduling mid-year reviews imminently.
254. He briefly addressed the 2020 year end bonus question, the detail of which is not relevant for present purposes.
255. Neither the Claimant nor Employee A pursued any formal grievance arising from events in Madrid.
256. The Tribunal bundle contained a photograph, taken on 9 June, after the Madrid trip, in the Claimant's flat in which Employee A was stood smiling next to the Claimant wearing one of the Claimant's dresses. I accept the Claimant's case that Employee A and she continued to have a friendly relationship after the Madrid trip, initially at least.

HR follow up – conversation 7 June

257. Ms Butterworth followed up with an email to the Claimant couple of days later checking that she was okay and reiterating that she was going to be covering HR more efficiently. She said that there was anything that Claimant wished to raise that she was there for.

258. A telephone conversation took place the same day, i.e. 7 June 2023. In that conversation the Claimant mentioned Mr Poole's comment that it looked as if she was lactating and unmarriageable. Ms Butterworth told her that the comments were inappropriate and would not have been nice to hear. Ms Butterworth says that she also said that I understood why she might be upset by these comments. She also says that she had a vague recollection that the Claimant said that Luke Stovell had said something about her dating black men because she has a large bottom. Ms Butterworth does not suggest in her evidence that the Claimant mentioned a polaroid photo being shown to her. I find on balance that it was not mentioned in this discussion.
259. Ms Butterworth told the Claimant that Luke Williams had shared the grievance policy with her and that she could raise a grievance about these comments. Ms Butterworth asked the Claimant if that was something she wanted to do, but she said no. She reiterated on the call that she wanted to let Ms Butterworth to know what had been said but she considered the matter finalised. Ms Butterworth did not action anything further following the call with the exception of updating Luke Williams.
260. The Claimant's pithy summary of this conversation to Theo Williams was
- "I told her I am not woke and they can chill but I appreciate communication to happen directly to me and not through Will"

Reporting line changes

261. In June 2023, in response to the events in Madrid and the fall out from it a reporting line change was made with the Claimant no longer reporting to Mr Poole and instead reporting directly into Luke Williams and Luke Stovell.

Mid-year review – June 2023 year to date

262. A mid-year review took place for all employees including the Claimant on or around 19 June 2023.
263. The review took place in a meeting attended by Luke Williams and Luke Stovell, with the Claimant and Ms Butterworth also in attendance.
264. In a note recorded by Holly Butterworth on 21 June 2023 the Claimant's assessment contains the following elements. There were a good number of deals noted but also a "big gap in flow", a reference to a pipeline of future candidates. Some specific guidance was given including picking and area to map could be monetised and planning potential trips to Geneva, New York or Singapore. It also contains a reference to thinking about how she could grow into a product head role and build a framework around commodities, not just keep the information in her in head. All of these elements suggested potential for the Claimant's career progression.
265. Luke Williams says that although Ms Butterworth's note suggested this was a positive meeting, from his recollection it was made clear to Paloma that she was still some way off promotion, in particular given that she had only recently

been promoted to Senior Associate, and that she needed to show a lot more maturity before they would consider it.

266. Luke Stovell admits that he said something to the effect that the Claimant was not being considered for promotion because she was “volatile and immature”. He says he was concerned that her behaviour and her performance was deteriorating. He says that a further reason why the Claimant was not ready for promotion was that she lacked management experience. Their policy was that to be considered for promotion to Director, there was a need to demonstrate the ability to manage someone effectively. To help her develop this, the First Respondent hired an assistant to support her, called Daniel Ilievski.
267. The Claimant says that the Respondents are now downplaying her performance, but the reality was that by mid-2023 she was responsible for nearly 50% of offers and placements amongst all consultants combined.
268. It is not possible to see what the position was as of June 2023 based on the data at [333-335] but for the year 2023 as a whole, the Claimant was responsible for 18 of 66 candidates, which represented 27% of the total candidates place. In view of later developments this only represented 10 months’ work on behalf of the Claimant. Even though she only worked for a shorter period, the Claimant placed twice as many candidates as the next best recruiter, according to that data.

Lateness policy

269. Ms Butterworth, in her role taking responsibility for HR matters from 2023 onward uploaded a Timekeeping policy document in June 2023, but did not draw employee’s attention to it. This contained the following:

Persistent poor timekeeping

Repeated or persistent poor timekeeping (for example regularly starting work late, overstaying your breaks, taking too many breaks, finishing work early or frequently failing to turn up on time for meetings) without good reason will be viewed as misconduct and in such circumstances we will instigate the disciplinary procedure.

Management responsibility opportunity for Claimant

270. On 19 June 2023 the Claimant started managing Daniel Ilievski, an associate recruiter.
271. This was intended to be a development opportunity for the Claimant, but Luke Williams became concerned that the Claimant was absent for long periods of time during Mr Ilievski’s first week.
272. Ms Butterworth checked up in a friendly way by WhatsApp on Tuesday 20 June. The Claimant explained that she was stuck at home with a plumbing problem, but that she had given Mr Ilievski three roles, so lots to do.

273. The Claimant says that this was merely a cordial exchange explaining what her new report had to do. I accept that the Fourth Respondent's message reflected a underlying concern from management that the Claimant was not giving her new direct report the support he needed as a new joiner. Plainly it would have been better as a manner of management practice for some expectations to be set out explicitly.

Attendance - general

274. At the end of that week on 23 June 2023, Luke Williams sent an email asking why there was not a single employee in the office at 4:30pm.

June 2023 working with Will Poole

275. In a long WhatsApp exchange on 21 June 2023 the Claimant and Will Poole have long exchange about a prospective candidate. The tone of the exchange is jokey and friendly.

Concerns about absence and absence policy

276. By 28 June 2023, the Claimant's absences had led to Ms Butterworth raising with Mr Williams and Mr Stovell that the Claimant and Mr Theo Williams had taken impromptu absence to work from home without notification the previous Thursday, which she implied had followed a night out the previous evening. She proposed putting together a document on the working from home policy for the company SharePoint as well as including it in the company handbook so that this could be raised with employees the following Monday.

"I actually want them to fire me"

277. On 28 June, the Claimant sent the following messages to Charlie Medhurst, who was himself thinking about leaving employment for the First Respondent:

12:15:28 Paloma Lopez Bondi: I actually want them to fire me

Paloma Lopez Bondi: Such pricks

Paloma Lopez Bondi: I am not going to quit and make it easy for them

"Candidate 1" ownership row - background

278. Also on 28 June 2023 the Claimant highlighted to Mr Poole that she had seen that he had changed a candidate name to his name, and that she had changed it back to hers. The tone of the exchange thereafter is completely different to messages sent the previous week. She sends a stream of complaints and asks him to stop telling Victoria [Courteney-Harris] about her personality. She complained about a "double standard" and being "exhausted" and disappointed.

279. The Claimant considered that “Candidate 1” was *her* candidate based on contact going back to 2020 and sent an email proposing that she should pitch a particular opportunity to him.
280. Both Luke Williams and Luke Stovell emailed the Claimant stating clear terms that she should not pitch to this particular candidate. Mr Poole told the Claimant that the decision had been taken that this was going to be his candidate.

Meeting to discuss Candidate 1 – 28 June 2023

281. On the afternoon of 28 June 2023, a meeting took place between the Claimant Mr Williams and Mr Stovell. I accept the Claimant’s account that on the way into this meeting Luke Stovell said to her “I am fucking so sick of you at this point”.
282. In the meeting Mr Williams and Mr Stovell wanted to talk about the Claimant “going after” Will Poole and emphasising that it was their business and their management responsibility to decide who would pitch to which candidate.
283. From Mr Stovell’s point of view he felt that the Claimant was trying to deflect the conversation away from her own poor conduct.
284. The Claimant said words to the effect that they were handing her candidates to her “sexual abuser”. She felt that she was being cut-off from raising a legitimate complaint and in particular that a candidate that she had invested time in developing a relationship with was being handed to Mr Stovell’s university friend Mr Poole, whom she strongly felt had no aptitude as a recruiter.
285. The perspective of the Respondents was that the Claimant’s contact with candidate 1 was historic and the First Respondent business owned the relationship rather than the Claimant personally.

Email check

286. Also at this time Luke Williams asked Holly Butterworth to check the Claimant’s email account. I find that this was motivated by a genuine concern that the Claimant was planning to leave the First Respondent.
287. Ms Butterworth reported back on the Claimant’s email account
- Pleasingly vanilla from what I could tell...2 things that jarred slightly but I think probably just me being OTT

Claimant’s attendance in office

288. On 29 June 2023 Mr Stovell emailed the Claimant following up from the meeting of 28 June 2023.
289. He confirmed that the Claimant’s last conduct with Candidate 1 had been 2 years earlier and that the Second and Third Respondent were directing the Fixed Income team to contact him.

290. In the letter he wrote:

“Office attendance

We have noted that there has been an increase in undocumented absenteeism the last few weeks.

Thursday 22nd was listed at very short notice as a WFH day. This was not approved in advance, and we’ve subsequently been told you were out late the night before. You were also out of the office for prolonged periods on both Tuesday and Wednesday this week. This should not be happening at any time of year, but it is particularly noticeable and disappointing given Daniel has only just started.

Yesterday you referenced other colleagues on the subject of office attendance. Our Holiday and WFH policy was communicated in our H1 22 meeting last year (see attached), Directors are given more flexibility than Associates and Senior Associates. This will be further clarified in the company meeting next week to remove any misconceptions people may have.

291. This suggests that Mr Stovell had been concerned with the Claimant’s attendance for a number of weeks as at 29 June.

VCH/office working hours

292. Victoria Courtney-Harris’s evidence was that things had tightened up in relating to working from home after Covid-19. I accepted that evidence. Some of text exchanges which Claimant says showed poor conduct among colleagues generally with regard to attending the office, also demonstrate that there was an expectation that people should be in the office.

293. Messages suggest that junior colleagues were concerned whether or not Luke Williams and Luke Stovell were in the office. I infer that junior colleagues felt that there was more flexibility on office attendance when Mr Williams and Stovell were not present.

294. It was put to Ms Courtney-Harris that there was no evidence that the Claimant was doing things other than she should have been. These questions conflated period in 2021, 2022, and 2023. My finding is that there were different factors at play. Earlier on, following during Covid, there was a degree of flexibility about home working. The management of the business were tightening up in relation to absences and working hours through 2023.

Possible discrimination claim

295. Also on the 29 June 2023 in a private chat the Claimant shared her thoughts with Siyu Tian

29 June 2023

17:36 Paloma Lopez-bondi

I thought about it

17:37 And I might bring this to a lawyer

17:37 Tell them about discrimination on being Mexican

17:37 Optics

17:37 Etc

17:37 And then they issue discovery notice how much will is paid

296. This is plainly following on from the events of the previous day when the Claimant is smarting from what she regards her candidate inappropriately being given to Mr Poole.

Comments on underground advertisement

297. On 11 August 2023 Will Poole made a comment to the open office about advertisements for bras that he had seen on the London Underground, which he remarked upon principally because they were female and (unusually) male models wearing bras which he thought was “a bit much”.
298. This was commented upon in a private messenger exchange between Siyu Tian, the Claimant and Theo Williams. Ms Tian messaged:

“This bra chat is so Will

The obsession with boobs”

Lateness & absence

299. As to absence, it was accepted that recruiters may be absent during the day to meet potential candidates for coffee and the like. It was expected that that would be documented, although practice seems to have been honoured more by some colleagues than others. It was apparently acceptable to go for a gym break.
300. It appears that employees being present in the office generally was a concern for the Partners. Theo Williams was given a telling off for his absences in October 2022. The Claimant and her confidants Siyu Tian and Theo Williams resented the emphasis on being required to be in the office.
301. The official office date started at 8:30am.
302. It is the evidence of Mr Luke Williams, the Third Respondent that the Claimant’s lateness and absence had become a problem during the late part of 2023. He characterised it as “frequent and dramatic”, by contrast with a colleague Siyu Tian who was consistently 5-10 minutes late. Mr Williams contends that the Claimant was absent from the office for lengthy periods during the working day without permission and without being out provide proper explanation of where she had been.

303. I accept Mr Williams' evidence.
304. My impression is that the Claimant had become disillusioned, especially following the second trip to Denmark in April 2023 and then further following the Madrid trip in May and the fall out from that trip.
305. There is very limited evidence that the Claimant was spoken to about lateness, but her attendance in the office was more erratic as the year went on.
306. I accept that, as relations deteriorated later on in 2023 the First Respondent's management had a genuine perception that the Claimant was not in the office. Data captured from 27 September 2023 to November 2023 shows that she was very frequently late to work by significant amount of times by contrast with colleagues. On 27 September 2023 she was 1 hour 29 minutes late, 28 September she was 45 minutes late, on 29 September she is marked as "unsure – late"; on 3 October she was 22 minutes late; on 5 October she was sick; 9 October she was 35 minutes late; 10 October she was 8 minutes late (this was unremarkable and would be within normal tolerance); 11 October 1 hour 45 minutes late; 12 October 11 minutes late; 16 October 1 hour 25 minutes late; 17 October 53 minutes late; 23-24 October working from home; 25 October 31 minutes late; 26 October 67 minutes late; 27 October 2 hours late and in for only 30 minutes; 30 October 15 minutes late; 31 October 1 hour 19 minutes late; 1 November 2023 she was 40 minutes late.

Background to Client A row

307. On 15 September 2023 the Claimant and Mr Stovell had something of a falling out over "Client A", a client of long standing. From Mr Stovell's perspective this hedge fund was looking to grow their team substantial and therefore this represented a potentially good recruitment opportunity.
308. The Claimant's perspective was that although she had successfully placed candidates with Client A historically, she found that prospective candidates had a negative impression of Client A. Mr Stovell wanted to document any such concerns to provide them to the client. He felt that the Claimant personally had a negative view of the client and was also concerned that she had a negative view of this work and was not putting any effort into this opportunity.
309. The Claimant told him several months earlier that she did not see them as a serious hedge fund and that candidates told her that they thought they were being interviewed to gain intelligence rather than there was a real job opportunity, which she did not want to subject "her" candidates to. She also had formed the impression that this fund discriminated against non-French employees.
310. On 6 September Mr Stovell emailed the Claimant and Mr Illievski her direct report to ask them to document relevant feedback from prospective candidates and interviewees.
311. Mr Stovell evidently became frustrated that the Claimant was still not progressing this work. On 8 September he messaged Luke Williams calling

her a “pain in the arse” and on 12 September messaged that she was “sitting there doing fuck all”.

312. On 13 September Ms Butterworth reminded all of the recruiting team to document conversations with candidates with dates.

313. On 15 September there was a WhatsApp exchange regarding Client A between the Claimant and Mr Williams:

[09:37:42] Paloma Lopez Bondi: I don't think it's sustainable

[15/09/2023, 09:40:38] luke williams: this is a subjective opinion from one disgruntled employed

[15/09/2023, 09:40:49] luke williams: their returns would suggest you are wrong

[15/09/2023, 09:41:04] Paloma Lopez Bondi: I am just letting you know

[15/09/2023, 09:42:30] luke williams: I think you need to get over the negativity on [CLIENT A]

[15/09/2023, 09:42:44] Paloma Lopez Bondi: Ok

314. Mr Stovell agreed with Mr Williams that he would speak to the Claimant. Matters came to a head in a telephone conversation.

315. Luke Stovell called the Claimant that morning. It was evidently a bad tempered exchange. She says he yelled at her. He denies that but says she was very emotional and aggressive and accused him of trying to “frame her as a crazy person”.

316. Mr Stovell told the Claimant that her views were “irrelevant”. She interpreted this as him entirely dismissing her view. He suggests that he meant that Client A was interested in hearing about was the perspective of candidates not the perspective of recruiters.

317. The Claimant emailed both Luke Stovell and Luke Williams that afternoon to complain

“At 11:02 am I receive a verbally abusive 20 minute phone call from Luke Stovell where I was asked why I felt entitled to have an opinion and repeatedly told the opinions I have are irrelevant. Not only did I find this call to be condescending and antagonising but it directly contradicted what I had been asked to do. Our client often look to yourselves and other in the company for insider views and colour on both the market and hiring strategy.

I want to know why you believe my view to be irrelevant?”

318. Later on that afternoon Mr Stovell provided a private email to Mr Williams in which he documented his version of the call and the lead up to it, and denied being verbally abusive. He made it clear that he was suggesting that the Claimant's view (and his own view) on Client A was not relevant if they did not have the data to back it up.

19 September 2023 follow up call

319. On 19 September 2023 the Claimant and Ms Butterworth spoke by telephone regarding the Claimant's complaint about the 15 September call with Mr Stovell. She also spoke to Mr Stovell.
320. The Claimant told Ms Butterworth that Mr Stovell was angry and told her she was irrelevant, which is something of an escalation from saying her view was irrelevant, which is what the email of 15 September had said.
321. Mr Stovell reiterated the content of the private email he had sent to Mr Williams.

20 September 2023 meeting

322. The Claimant attended a meeting described in advance as a "catch up" on 20 September 2023 at the invitation of Mr Williams. This was in reality to talk about the fall out from the telephone call on 15 September 2023.
323. Luke Stovell, Luke Williams and Holly Butterworth were present at this meeting.
324. There is a dispute as to whether Luke Williams recorded this meeting. The Claimant says he clearly gestured that he was recording the meeting on his telephone and complains that she he did not ask for her consent. Mr Williams, for his part says that he did not record the meeting and does not understand why she says this. There is no evidence to support the Claimant's contention that Mr Williams was recording. The burden is on the Claimant to establish this. I take account of the very comprehensive disclosure exercise by the Respondents which includes many documents which no doubt they would prefer were not scrutinised in a public hearing. In short, I accept that if this audio recording was there to be disclosed Mr Williams would have provided it to be disclosed.
325. I accept that the Claimant believed that Mr Williams was recording the meeting, but have concluded on the balance of probabilities that she was mistaken.
326. During that meeting Luke Stovell gave his explanation for the background, which was that, for the past 18 months, the Claimant had been asked to record why candidates did not want to speak with Client A, and collect data on any negative feedback on the interview process, so it could be provided to this client, but she had not done so.
327. The Claimant raised that Mr Stovell had told her that her opinions were irrelevant and later in the meeting she suggested that he had said she was irrelevant. Mr Stovell said he had not said that, but rather that both of their opinions were irrelevant without data to back them up.

328. It was raised that the Claimant had forwarded company emails to her personal email address. Both Luke Williams and Luke Stovell queried whether the Claimant was thinking of leaving Lascaux.
329. The Respondents also raised a concern about the Claimant taking more junior members out of the office, often immediately after a meeting with one of the Lukes. She was asked not to do this.

Email follow up

330. Holly Butterworth emailed the Claimant after meeting:

“Going forward, we would ask that you:

1. Record specific data on as requested
 - a. Why people express unwillingness to interview
 - b. Specific negative post interview feedback
2. Put all candidates onto Salesforce following profiling calls, regardless of whether a client has requested to speak to them, including full contact information and relevant tagging. This is standard Lascaux policy, and a separate issue to putting candidates on Greenhouse. As mentioned, this is each individuals responsibility to do so, and not in the remit of Victoria or Lucia. This policy has been communicated repeatedly.
3. Do not forward company emails to a personal email address
4. Refrain from distracting more junior members of staff and taking them away from their work during office hours
5. Any particular grievances, discuss with Holly, or Luke and Luke directly

331. The point was made on behalf of the Claimant that this was not a complete record of what was discussed in the meeting, and this justified her later making surreptitious recordings. This email does not purport to be a minute of the entire meeting. It is a numbered list of points that Ms Butterworth wanted to confirm on behalf of the First Respondent’s management.

Concerns about Claimant’s negativity

332. On 20 September 2023 the Claimant messaged her colleague Siyu Tian:

[09:32] Will called tusma on Friday

Saying do not listen to negativity from paloma

Now they are having a meeting with her before

What pricks

Metrics

333. At this time the Claimant complains that the First Respondent changed metrics on the Salesforce software away from “placements made”, i.e. candidates who were successfully placed with clients, which would favour her to other metrics such as “introductions made”, which would favour Will Poole. Her interpretation was this would disadvantage her in the coming bonus round.
334. It seems in fact that these “pipeline” i.e. forward looking metrics were being considered in addition to placed candidates.

Absence from office

335. On Wednesday 27 September 2023, during the middle of the working day the Claimant sent Theo Williams a message at 11:07:

“I'm at Waterstones on a couch reading”

Asian accent impersonation

336. The Claimant says that Mr Stovell mimicking accents after interacting with East Asian clients, by referring to a Japanese candidate in September 2023 with the phrase “ching chang chong”. This allegation by the Claimant, and Mr Stovell’s response to it have changed over time.
337. In the grievance on 3 November 2023 the Claimant stated “Luke was impersonating a Japanese accent **to the effect** of ‘ching chang chong’”. “To the effect of” is not the same as an allegation that the words were actually said.
338. In her witness statement for the Tribunal hearing she goes further and says that it was said and not only Mr Stovell but *also* Mr Poole in September 2023:
- ‘they would say things such as “ching chang chong” and state that “Asians” were so easy to manipulate into taking less money for job offers because they did not have the confidence of white men.
339. The second element of this “they did not have the confidence of white men” appears to be an elaboration of the original allegation and is in terms which I find implausible. This does not ring true.
340. Mr Stovell denies the allegation, but qualifies his denial. In his written response in the internal grievance appeal process he said “I don’t recall impersonating Japanese accents saying ‘Ching Chong Chang’”. In his witness evidence he admits that there was a particular candidate over a period of six months in the middle part of 2023 who he thought sounded like a character from the Last Samurai. He accepts that he did impersonate him to Will Poole after the call, by reference to that character. He says that by he does impersonate personality traits of colleagues whatever their race and gives examples of impersonating Luke Williams and Holly Butterworth.
341. I accept his evidence that it was Mr Stovell’s habit to mimic colleagues and others.

342. I find that the Claimant heard Mr Stovell mimicking a Japanese candidate. The Claimant's grievance is closest in time to the material event. The phrase "to the effect of" suggests that this was not actually said but something like it was said. On balance I accept Mr Stovell's evidence that he impersonated a character from a film following on from a call to a Japanese candidate.

Recruitment

343. On 5 October 2023 private WhatsApp exchange between Luke Stovell and Luke Williams about future recruitment plans, although the precise role is unclear:

"Luke Stovell: It probably needs to be a guy.

Pregnancy is going to be an issue for anyone presentable with a normal personality."

More reminders about lateness

344. On 18 October a "quick reminder" by email that work starts at 8.30am was sent to Charlotte Cheng, Theo Williams, Siyu Tian, but not the Claimant.

25 October 2023 – leaving anyway text

345. There was a private WhatsApp message exchange between Luke Williams and Luke Stovell:

"[25/10/2023, 12:53:56] Luke Williams: not sure we really need to be giving to paloma

[25/10/2023, 12:54:14] Luke Williams: given daniel will prob end ip doing all the work

[25/10/2023, 13:28:06] Luke: Yeah was going to say the same thing

[25/10/2023, 13:28:09] Luke: **Plb leaving anyway."**

[Emphasis added]

346. It is unclear from the context what "giving to Paloma" means. This might relate allocation of candidates might have been a reference to payment of a performance bonus. In any event, it is clear that Luke Stovell at least considered that the Claimant was not going to working for the First Respondent in the longer term.

Matters coming to a head

347. Holly Butterworth's evidence was that she had received various complaints about the Claimant over the course of 2023, including that she was spreading a rumour that one colleague had a mental breakdown, which had upset significantly. Employee A reported that her friendly relationship with the

Claimant had soured, and she also felt excluded by her manager Theo Williams, was now the Claimant's boyfriend.

- 348. Ms Butterworth felt that the Claimant's behaviour and negativity and attendance issues and a downturn in output, as measured by documented new contacts with potential candidates were matters of concerns and she had various conversations with Luke Williams and Luke Stovell during August, September and October 2023.
- 349. The Claimant's absences from the office were coming to the attention of management at the end of October 2023. I accept that Ms Butterworth felt that matters had come to a head in October 2023.
- 350. On 26 October 2023, a contemporaneous email of Ms Courteney-Harris suggests that Claimant and Mr Theo Williams left the office at 1:00pm and had still not returned at 4:31pm.
- 351. Generally these matters were not squarely put to the Claimant at the time as concerns.

"Pipeline catch up" – 1 November 2023

- 352. On Wednesday, 1 November 2023 the Claimant was invited to a meeting at which Luke Stovell, Luke Williams and Holly Butterworth were present. She was given slightly less than 2 hours' notice.
- 353. The meeting took place at approximately 11:30am.
- 354. It was described in advance as a "catch up" to "go through pipeline etc". The Claimant says in view of the content of the meeting that this was an ambush. She was sufficiently suspicious in advance of the meeting, however, to make a covert recording of the entire meeting on her mobile phone.
- 355. It is fair to say that "pipeline catch up" did not in reality capture all of the matters that were going to be discussed, which was to be a more fundamental discussion about the future of the Claimant working for the First Respondent.
- 356. Mr Stovell said in that meeting that there had been recent conversations about what was expected of people which included both output but also conduct. He suggested that there had been a substantial drop off in the Claimant's output from the first half of the year. He suggested that no work was being done as reflected by her email and the content of the CRM system. He referred to her conduct in the office and the fact that the Claimant was substantially late every single day and that there were long periods of absence from the office during office hours that were not documented and were unexplained. He said that the Claimant's behaviour suggested that she had no intention of staying at the First Respondent in the long term. He asked that she worked from home for the rest of the week, to think about what the Claimant wanted to do. He acknowledged the possibility that he and Luke Williams were wrong in their assumptions and said:

“...if we're completely wrong, you know, let's talk about that on Monday, but as I said we will reflect on this, we'll discuss, you reflect on this, you discuss with whoever you want to discuss with, and let's have a chat Monday morning about the best course of action.”

357. The Claimant immediately explained that Daniel the associate working for her was sending CVs and doing searches, which might explain why she was apparently doing less work. She said that she had never had an issue prior to the last few months. She mentioned the high number of placements she had achieved and said that she had always had really nice interactions with “both of you” i.e. Luke Williams and Luke Stovell. She asserted that the recent problems coincided with her conversation with Luke Williams about some sexist comments made to her. She said that she felt that she had been “targeted” in recent months. She said what can I do to get a promotion?

358. Luke Williams explained that the conversation was not about performance. He pointed out that the Claimant was given the opportunity to progress a conversation about her complaint at the time which she did not do. He acknowledged the point about Daniel working but queried why other managers did not have drop-off in productivity.

359. There was a discussion about management concern that the Claimant was not in the office for long periods. As to promotion to director, Mr Stovell said:

“We made it clear in many, many times that becoming a director is contingent on multiple things. Performance contributes to that. But the primary things that contribute to somebody being a director, as we have explained on multiple occasions, is maturity, and that is reflected by conduct in the office.”

360. There was the following exchange:

“P: Okay and when, when Will, a director who is your friend, says that I'm lactating, makes multiple comments about my boobs?

LS: Well, okay. I wasn't there.

P: I hear from, I hear from other people that you think I have a big ass and I must date black people. Like I hear these things.

LS: What the hell are you talking about?

P: I hear these comments, and do you know, like, it's very distressing to me that as soon as I bring it up, I get an email from William as being like, I'm disturbed that you think this is a boy's club and then everything, even though I have the most placements this year, everything is just trying to nitpick at finding fault.

361. Mr Williams admitted that allegation about Mr Stovell commenting about “big ass” and dating black people he thought was totally without foundation and that he caused him to have a lower opinion of the Claimant.

362. The Claimant reiterated her complaint that Mr Poole said that she was “unmarriageable”:

“I spoke with Holly and I said, look, I’m willing to get over it, but I don’t want Will to make these comments again because it’s insidious. He said, I’m unmarriageable, he said all of these things, and I think Holly or someone spoke with him, and as of then he didn’t but it seems to me that ever since I brought this up, it’s like I’ve, I’ve actually been here, I’m about to be 4 years, right when it coincides when right when I brought that up, all of a sudden everything becomes an issue. Everything I do is an issue. You’re continuously going up to Daniel to try to make a case against me. You’re going up to other employees.

363. In response to the Claimant’s complaint that it had been said behind her back that she was not an adult, Mr Williams said:

I think the way you behaved in the last 6 months have shown a significant lack of maturity and a significant lack of understanding of the qualities people look for when they look to promote people, and the fundamental points remain. You are not present in the office. You are not here, and we don’t know where you are, and we’re not willing to let that situation continue

364. The Claimant reiterated that she did want to be there, but raised her concern about age, gender and “optics”.

365. Mr Stovell pointed out to the Claimant that until one month earlier half of the directors in the business were female.

366. The Claimant continued to claim that matters has all gone wrong following her complaint about sexist treatment, to which Mr Williams replied:

LW: Paloma, if I was looking to get rid of you at that point, I would have made a point of bringing up the deeply inappropriate comments you made yourself on the Madrid trip, to a junior member of staff, which we chose not to, because we had no desire to get you out. We still have no desire to get you out, but you can take the point that...

367. He was interrupted by the Claimant who insisted that Mr Stovell made inappropriate comments about Employee A.

368. The Second and Third Respondents pressed the Claimant on her whereabouts on the previous Friday. It was their understanding that she had been in the office for no more than half an hour.

369. There was a repetitious element to the meeting. The Claimant kept reiterating that she wanted to carry on working for the First Respondent on the one hand and reasserting her good performance measured by reference to successful candidate placements. Given that she knew that she was recording this meeting, I accept the submission put forward on behalf of the Respondents that she was to some extent playing up for that recording.

370. Later on Mr Williams said:

LW: Not willing to let the current situation continue. We feel that your demeanour in the office and conduct is having a negative effect on the rest of the office. We would like you to go home and reflect on it, and we will do likewise. And we will sit down and discuss again on Monday.

371. Meeting left on the basis that the conversation would be picked up again the following Monday.

Access card sort

372. Shortly after the meeting on 1 November 2023, Luke Williams called Victoria Courteney-Harris into his office and said that she might have heard what was going on in the meeting room and that it was likely that the Claimant would be leaving Lascaux and that they needed to think about next steps, for example dealing with security passes. Luke Williams said to her that she needed to make the necessary arrangements “because this is untenable”.

Sushi restaurant (Moshi Moshi) – 1 November

373. After the meeting on 1 November 2023 the Second, Third and Fourth Respondents, Messrs Lovell and Williams and Ms Butterworth had lunch at Moshi Moshi, a sushi restaurant.

374. Mr Williams and Mr Stovell say that at this meeting they discussed how the meeting with the Claimant had gone, and their options. They agreed that they had to part ways with the Claimant. Although the final decision was made by Mr Williams and Mr Stovell, this decision was reached having consulted with Ms Butterworth. She supported the decision.

375. They agreed that the Claimant needed to leave but Mr Williams wanted to take legal advice on the implementation of the decision (that legal advice is subject to legal professional privilege). Mr Williams states that they had never been in this situation before and that they had never had to fire someone in a similar situation to this. Mr Williams says that he had reached the conclusion that they would have to part ways with the Claimant, regardless of whether that was what she wanted and whether we could agree terms. In his view, the situation had become so toxic and so corrosive to the business that it simply could not continue.

376. Mr Stovell supports that account. As far as he was concerned the decision was made on that day (1 November). Later that day, in the evening, Mr Williams

told him that they were not going to carry out any further procedure, an approach that he agreed to.

377. Ms Butterworth also supports their account. She says it was very clear that there was no immediately obvious way to resolve the situation, in part because of the breakdown of the relationship, but also because there was no willingness on the part of the Claimant to acknowledge wrongdoing, specifically poor attendance, decrease in output or explanation as to where she was when she was consistently away from her desk. Her recollection is that Luke Stovell was adamant that the Claimant needed to go and Luke Williams agreed but wanted to take some advice as to how they would go about this. She says that they both asked for her opinion, and she agreed with them that the situation was difficult and that she was struggling to see a scenario where Claimant stayed at Lascaux.

378. I accept the Respondents' evidence that a decision was reached at this lunch.

Draft email after lunch 1 November 2023

379. Ms Butterworth wrote a draft email to be sent to the Claimant after lunch, which she sent to Mr Williams at 3:22pm. This email summarised the view of management from the meeting that had taken place that morning. It contained the following:

Whilst you stated the main reason for this decline in performance coincided with the hire of a researcher that you have been actively training and providing leads etc to and you have contributed 18 hires ytd, you repeatedly maintained that this is a targeted reaction from management as a result of you bringing up sexist comments in the workplace 4 months ago and the subsequent comparison to other employees in the office that you are being unfavourably viewed alongside and therefore treated differently.

The additional claims that you mentioned during the meeting:

- LS had made derogatory comments regarding body and appearance and dating proclivities
- LW had made comments regarding optics with clients which you have taken to relate to gender
- WP had made a comment regarding lactating and marriageability

...

During the meeting today you also noted that since the comment was made by Will Poole that no further comments have been made and yet you referred back to it on numerous occasions.

For the avoidance of doubt, Luke Stovell and Luke Williams strongly reject the assertion that the meeting was linked to accusation of comments made by yourself in June 2023.

We are troubled by what seems to be the throwing out of accusations, that appears to be building a planned narrative and justification.

We have asked that you take some time out of the office for both sides to consider, with the intention to reconvene on Monday morning.

Luke Williams to Claimant 2 November 2023

380. On Thursday 2 November 2023, the day after the meeting on 1 November 2023, Luke Williams wrote to the Claimant, with Ms Butterworth in copy in an email entitled “your employment”.

381. He wrote:

At our meeting yesterday, attended by yourself, me, Holly Lewis and Luke Stovell we began to discuss serious concerns that we have, and have held for some time, about your persistent absence from the office, and your frequent and material lateness. We also began to discuss the lack of metrics entered by you on our systems to demonstrate that you are engaged in meaningful and productive work during working hours. **As you also know, we have for a considerable time now had concerns about your conduct, your interactions with colleagues, which are often strained, and your attitude and willingness to follow our reasonable management instructions to you.** We have met with you several times previously to discuss these points.

We had intended yesterday’s meeting to be the start of a formal procedure to address these concerns. We had also intended to have a discussion with you to attempt to discuss, sensibly and amicably, whether there might be terms by which you would leave Lascaux’s employment – **we are conscious that you are employed by us on a work-dependent UK visa and that if we were to terminate your employment it would result in you having to leave the UK within a short period. We do not wish to have to place you in a such a position in respect of your immigration status if it can avoided, which is why we wanted to have an amicable discussion with you rather than move to an immediate termination as we might have done with someone with indefinite leave to remain.** However, before we were able to reach these stages of the discussion with you, you reacted in an overly defensive way that meant the meeting did not proceed further and it was clear that you were not going to hear what we had to say, whether that was in terms of how we can get you conducting yourself and performing better or agreeing an amicable severance.

I would be grateful if you would reflect on this over the weekend and for us to have a further discussion on Monday. It is clear that this

situation cannot continue. In the meantime, please continue to work from home.

[emphasis added]

382. This email supports the Respondents' case that a decision had already been taken to terminate in some way the Claimant's employment. They were holding off in order to have a decision about an amicable agreement, which might have benefitted her given her immigration status.

Attendance file

383. On Friday 3 November 2023 at 14:17 Ms Courteney-Harris supplied Ms Butterworth the attendance file for the previous six weeks for the Claimant and 12 other colleagues. This included the Claimant's work start time data set out above.

Grievance (admitted protected act) – 3 November 2023

384. On Friday, 3 November 2023 at 4:49 pm the Claimant submitted a grievance to the Second, Third, Fourth Respondents which included the following:

"Ever since I have raised complaints regarding **sexist comments made to me** by William Poole (a Director hired by Luke Williams and Luke Stovell who had no recruitment experience, was unemployed and was a university friend of Luke Stovell from University of Exeter 2005-2006) during the Madrid business trip I have been subjected to a campaign of bullying and retaliation and these have gotten worse and worse over time.

His comments include saying I am 'un-marriable', as well as comments regarding my breasts ie. **'that I was lactating' and how I was a 'ladette'**. Luke Williams also had a conversation with me in Denmark (April 18th 2023) regarding my ineligibility for promotion this year to Director due to 'optics' (**referencing clients wanting to interact with 'a beard', thus my gender being an obstacle along with my age despite hiring more candidates in 2023 than any other consultant in a given year**).

I feel that the timing of your repeated hostile conversations with me asking if I 'want to work at Lascaux' when I clearly say I do, as well as stressing metrics which have been manipulated and skewed against me whilst ignoring the most important metric that has been regularly measured in peer reviews since inception of the firm 10 years ago (hires starting in a given year and thus revenue generated for the firm) have coincided with end of year bonuses being announced in 1 month.

It is clear that you have targeted me in the hope of bullying me out of the company so as to not pay me the bonus due to me for a

company record year where I have the most hires out of the 10 revenue generating employees at your firm.

...

It is no coincidence that within the last month, consultant's total hires in the company have been removed by Holly Lewis from the master sales team dashboard on our CRM (Salesforce) which has been there since inception so as to favour your campaign to target me. Instead, this metric has been replaced with 'introductions made' to favour William Poole whom I made my complaints against for commenting that I am "lactating" and showing me an unwanted polaroid photo of his wife's boobs. All while not take into consideration the most important factor: revenue generated.

Luke Williams, Luke Stovell and Holly Lewis were focussed on targeting and **victimising** me in retaliation in order to get me out of the company before my bonus would be paid (on the back of a record year).

385. It is rightly admitted by the Respondents that this was a protected act within the meaning of section 27 of the Equality Act 2010.

Communication over the weekend

386. The following morning, Saturday 4 November 2023 Luke Stovell emailed his business partner Luke Williams and Holly Butterworth with his thoughts, which included:

"Clearly the majority of this is fabricated" –

"I think the key point is issues with Paloma didn't start six months ago."

387. He gave a timeline and answers various points made by the Claimant. He states his view that the Claimant was very difficult to manage. He set out his perspective on the Claimant's allegations and why he does not accept them. He wrote:

1. Recruitment Consultant and Team Lead are not positions in the company. There are three titles: Associate, Senior Associate and Director. It has been made clear in various company meetings/presentations and verbally what the benefits of seniority are.

2. Promotion is purely at management discretion. One of the requirements of being eligible for promotion to Director is to demonstrate you can effectively manage a team. This has been communicated multiple times and was the catalyst for Holly's, Mungo's and Theo's promotion.

Will was hired as a Director given his relevant experience in management.

3. The company presently has 4 Directors, Roxanne (serving notice), Holly, Will and Theo. This is a 50:50 gender split.

4. The two highest paid employees in the firm last year were both women.

5. There is no revenue or placement targets, nor has there ever been. The only communicated monitored KPI is first round interviews.

6. Number of deals done does not reflect revenue. Indeed the majority of Paloma's placements this year are linked to two team moves where our clients consider them a single deal. i.e. 13 deals are in effect only 2 as far as our clients, and invoicing/revenue is concerned. She was also not the person responsible for the placement of the team lead – she only helped process the subsequent hires.

[emphasis added]

388. Mr Stovell expressed the view that the Claimant's conduct had been unacceptable but was particularly noticeable now that she had a direct report.

Sunday 5 November 2023 – information about Claimant's absences from office

389. On Sunday, 5 November 2023 at 7:10am Ms Butterworth replied to Ms Stovell and confirmed information from Ms Courteney-Harris in light of things said by the Claimant at the meeting on 1 November 2023, suggesting that latterly the Claimant had been repeatedly late.

"it seems PLB was very often out of the office for prolonged periods - a fact we particularly noticed as it was Daniel's first week in the office. This includes being very late to the office on Tuesday 20th for a 'plumbing emergency' as well as long absences throughout the days.

Dismissal

390. First thing on the morning of Monday, 6 November 2023 at 7.04am an email was sent from Mr Williams to the Claimant's personal Hotmail email account with her work email in copy. That confirmed the Claimant's immediate dismissal with pay in lieu of notice, less a deduction for two days taken in excess of her annual leave entitlement.
391. That letter included the following:

The reasons for termination of your employment are your misconduct and an irreparable breakdown in the working relationship

We discussed with you that your activity and productivity levels over recent months are low and you said that you have been meeting and telephoning candidates. However, you could provide no substantive details or evidence of this and you have entered negligible records and data relating to such meetings or calls on the Lascaux systems and in your calendar despite being required to do so. We therefore consider that your representations in this respect are false.

We also raised concerns about your conduct and interactions with colleagues and your persistent unwillingness to follow management instructions. Whilst this meeting was an opportunity for you to address these concerns, you became overly defensive and aggressive to the point that the meeting could not continue.”

Detail of rationale for dismissal

392. Mr Williams then set out a series of matters in bullet points relating to historic matters such as the Claimant’s refusal to work with her then manager Roxanne Chou in early 2022, and then her refusal to work with Mr Poole in May 2023. He referred to the 28 June 2023 candidate ownership row, which he characterised as a disregard for following a specific instruction. He raised that the Claimant was sending company emails to her personal email address, that she was not compiling requested information on Client A.
393. There were then a series of further unacceptable comments alleged to have been made by the Claimant. First, openly discussing the bonuses of senior colleagues with other colleagues. Second, the Claimant making fun of junior colleague to her face because that colleague said she could not afford earrings, saying that she could not believe that she was so poor. Third, telling a certain employee, in front of other people that she was the only member the Claimant would like to have sex with (in more particular terms). Fourth, stating that a senior colleague was an evil person, that they have a dark energy that sucked the life out of people and that they are a “fucking Nazi”. Fifth, that only she and another colleague were intelligent and everyone out was “fucking simpletons”. Six, telling all new joiners and junior members of staff that senior staff cannot be trusted and undermining the business.
394. He states that the Claimant’s behaviour had caused substantial disruption to the business and created a corrosive environment and an atmosphere which discouraged colleagues from working, destroys their morale and undermines management.

IT access “cut”

395. The Claimant’s access to the Respondent’s IT systems was cut at 7:20am on 6 November 2023.

Text exchange

396. On the morning of her dismissal, the Claimant had an exchange of messaging with Theo William. In that exchange the Claimant suggested that her dismissal was retaliation for her raising her concern in June about the Respondent's decision "to give Will [Poole] my candidates".
397. Theo Williams updated the Claimant on events on the office:
- LW taking everyone aside to tell them you been binned
- He said to me 'I don't know what situation that puts you in but you need to stay out of it'
398. This has been characterised by the Claimant as a kind of threat. This message was, I find somewhat more nuanced. Luke Williams plainly knew that Theo Williams was in a difficult situation. The latter was a Director of the business on the one hand, but on the other was very close to the Claimant and suspected by Luke Williams to be in a romantic relationship with her. I find that this was guidance not to attempt to intervene in the decision to dismiss, rather than a threat that he should not for example give witness evidence.

Reasons for dismissal

399. On 7 November 2023 the Claimant sought further information on reasons for dismissal.

Appeal (admitted protected act)

400. On 9 November 2023 the Claimant appealed against her dismissal.
401. On 16 November 2023 Ms Butterworth provided more information on reasons for dismissal, providing further detail on six allegations which were the stated basis for the dismissal.

Pressure on witnesses

402. The Claimant's case is that pressure was brought to bear on Siyu Tian and Theo Williams not to give evidence.
403. The end of year appraisals at which bonuses were decided were scheduled for 12 – 13 December 2023. The 12 December was the day of the Claimant's appeal hearing.
404. Siyu Tian was told by the Fourth Respondent Holly Butterworth, that being in a meeting as a "support" to the Claimant wouldn't have any impact on her bonus and when Ms Tian asked for this in writing she said she would see what she could do. It seems that nothing was supplied in writing. Ms Tian suggests that Ms Butterworth called her and told her that she "wouldn't get involved" if she were her. This is not corroborated by the contemporaneous exchange between Ms Tian and the Claimant. Given that anything of note is mentioned in this voluminous exchange I find that on the balance of probabilities Ms Butterworth

did not make any verbal threat as suggested. I do not find Ms Tian's conjecture that accompanying the Claimant would inevitably mean that she would not be paid her bonus or be dismissed, or that it would have consequences for her immigration visa status as suggested elsewhere in her witness statement.

405. As to Theo Williams, he contends that Luke Williams threatened him in the last week of November or the first week in December 2023 over involvement in the appeal hearing and had said to him "to be clear, bonuses are discretionary". He relies upon an exchange between himself and the Claimant on the day of her dismissal (6 November 2023). There are two reasons to doubt that this text exchange supports Theo Williams' version of events. First, this text exchange predates the alleged threat by three or four weeks. Second, leaving aside the timing, it is not clear that, even if said by Luke Williams those words were a threat to Theo Williams' bonus in relating to supporting the Claimant. The context in the text exchange was a discussion about a narrative that the Claimant was being dismissed pre-bonus. In other words the reference to bonus was to the Claimant's bonus not Theo Williams' bonus.
406. Ms Tian and Theo Williams were naturally wary and may have felt that they were in a difficult situation. On balance I did not find however that they were genuinely threatened as alleged.

Notetaker for the hearing

407. At 12:19pm on the day before the Claimant's appeal hearing, the agency that was due to provide a temporary typist to take a note at the appeal hearing notified the First Respondent's solicitor that the proposed typist was not feeling well and would be "hopefully" feel well enough. The agency indicated that they were gathering alternative candidates. Ultimately no temporary typist was provided and as a stopgap, the First Respondent's solicitor provided a junior solicitor to take a note instead, Ms Noelle van Wyk, who gave evidence in the Tribunal hearing.

Appeal hearing (composite grievance and disciplinary appeal)

408. On 12 December 2023 there was a hearing of the Claimant's combined grievance and dismissal appeal conducted by Luke Williams and Holly Butterworth with Noelle Van Wyk, Solicitor in attendance as notetaker.
409. I have had the benefit of the note taken by Ms Van Wyk, and additionally a transcript made of the Claimant's covert recording.

"Fucking unacceptable"

410. In preliminary matters at the beginning of the appeal hearing Ms Van Wyk minuted that the Claimant said that the presence of a solicitor was "fucking unacceptable". The Claimant denies saying this. The transcript of the recording that she made surreptitiously on her mobile phone supports that the Claimant did not say these words. She said that she was "extremely upset".

411. Once she realises that instead of a notetaker there is a solicitor present she is initially clearly concerned that she is attending without a lawyer whereas the company has a lawyer and expresses this in a clear and direct but not unprofessional or inappropriate way. It appeared to me to be similar to the manner in which she spoke in the Tribunal hearing.
412. Ms van Wyk explained that she had never met “these people” (the Respondents) before and she was only there because they had issues getting accurate typist. She said she was there in her capacity as a typist and she would not be giving legal advice. She confirmed that she would not interrupt.
413. The Claimant registered that she was unhappy that a solicitor was present. She was given the option of going ahead with the solicitor present or alternatively rescheduling in the New Year. She decided not to delay because she had already waited 1 ½ months.

Recording

414. After some discussion about the agenda Mr Williams checked whether the Claimant was recording the meeting

LW: Can you please confirm verbally that you're not recording the meeting?

P: Nope.

LW: Sorry. Can you please confirm...

P: Yes

LW: That you're not recording the meeting?

P: Yes.

LW: Thank you.

415. While the Claimant's responses are somewhat ambiguous in that she said both “nope” and yes, I find that she was deliberately giving Mr Williams and others present the misleading impression that there was no recording being taken and that this is what he understood.

Witnesses

416. When the Claimant raised in the appeal hearing that Luke Williams had threatened witnesses, he denied it and gave the Claimant the opportunity to elaborate on the nature of the threats, which she failed to do. It is difficult to read too much into the Claimant's position on this point, given that she may legitimately have felt that she did not want to put her former colleagues in a difficult situation.

Solicitor's note of Claimant swearing

417. Ms van Wyk's evidence was that she accepted that the recording does not show that "fucking" was said. She said that that the time she wrote up the note she thought it had been said. She cannot account for this other than to say that she "misheard or misremembered" and accepts that this was an error. She accepts that she must have been wrong. She does not accept that this was as part of a deliberate strategy. She was not part of the team that was working in this case and it had not been discussed with her.
418. I did not form the conclusion that Ms van Wyk's presence in the appeal hearing was part of a deliberate strategy. There is evidence of the difficulty in sourcing a typist the previous day.

Investigation

419. There was an investigation in November 2024 as part of the appeal with interviews carried out by Ms Butterworth.

Dismissal appeal outcome

420. By a letter of 25 January 2024 Luke Williams, who took the decision, provided an outcome to the Claimant's appeal against her dismissal and her grievance.
421. In that letter Mr Williams wrote:
- "Noelle van Wyk attended the hearing purely to take notes. She advised you at the outset that, while she was a solicitor, her role was only as a typist. You responded to that aggressively, asserting that that was "fucking unacceptable". While you have denied (in your comments on the notes) that you used this language, I remember you using this language and am confident that the notes are accurate."
422. He did not uphold any of the seven grounds of appeal against dismissal, nor the five points in the grievance.

Grievance appeal

423. On 1 February 2024 the Claimant appealed the grievance outcome, first that in the light of the evidence the decision was unfair, biased and wrong and second the decision was not taken by someone with an open mind but by Luke Williams whose sole intention was to find against me in order to justify the awful treatment afforded to her by him and others.
424. On 12 March 2024 there was a Grievance appeal hearing conducted by Ms Butterworth with Ms Courteney-Harris in attendance.
425. Ms Butterworth provided an outcome of the grievance appeal on 24 April 2024, in a six page letter. The grievance appeal not upheld.

Tribunal proceedings

First claim (admitted protected act)

426. A claim was presented on 22 December 2023 (“**the First Claim**”).
427. There were preliminary hearings on 3 April 2024 and 4 June 2024.

Second claim

428. A further claim was presented on 4 June 2024 (“**the Second Claim**”).
429. There were two further preliminary hearings. One on 12 November 2024 at which the two claims are consolidated.
430. There was a further hearing on 3 December 2024 to deal with the Claimant’s specific disclosure application.

Submissions

431. I had the benefit of opening and closing submissions and closing oral submissions. Reference can be made to the written submissions should this be required.

LAW

432. Relevant provisions of the **Equality Act 2010** are **section 13, 26, 27, 123**.

Time/Equality Act claims

433. In **Robertson v Bexley Community Centre t/a Leisure Link** 2003 IRLR 434, the Court of Appeal held that when employment tribunals consider exercising the discretion under [what is now] S.123(1)(b) EqA, ‘there is no presumption that they should do so unless they can justify failure to exercise the discretion. Quite the reverse, a tribunal cannot hear a complaint unless the applicant convinces it that it is just and equitable to extend time so the exercise of the discretion is the exception rather than the rule.’
434. In **Abertawe Bro Morgannwg University Local Health Board v Morgan** 2018 ICR 1194, CA, the Court of Appeal pointed to the fact that it was plain from the language used in S.123 EqA (‘such other period as the employment tribunal thinks just and equitable’) that Parliament chose to give employment tribunals the widest possible discretion and it would be wrong to put a gloss on the words of the provision. At paragraph 119 Leggatt LJ said:

“it is plain from the language used (such other period as the employment tribunal thinks just and equitable) that Parliament has chosen to give the employment tribunal the widest possible discretion. Unlike s 33 of the Limitation Act 1980, s 123(1) of the Equality Act does not specify any list of factors to which the tribunal is instructed to have regard, and it would be wrong in these

circumstances to put a gloss on the words of the provision or to interpret it as if it contains such a list. Thus, although it has been suggested that it may be useful for a tribunal in exercising its discretion to consider the list of factors specified in s 33(3) of the Limitation Act 1980 (see *British Coal Corporation v Keeble* [1997] IRLR 336), the Court of Appeal has made it clear that the tribunal is not required to go through such a list, the only requirement being that it does not leave a significant factor out of account: see [2003] EWCA Civ 15, [2003] IRLR 220, para [33]. The position is analogous to that where a court or tribunal is exercising the similarly worded discretion to extend the time for bringing proceedings under s 7(5) of the Human Rights Act 1998: see *Dunn v Parole Board* [2008] EWCA Civ 374, [2009] 1 WLR 728, paras [30] [32], [43], [48]; and *Rabone v Pennine Care NHS Trust* [2012] UKSC 2, [2012] 2 All ER 381, para [75].

That said, factors which are almost always relevant to consider when exercising any discretion whether to extend time are: (a) the length of, and reasons for, the delay and (b) whether the delay has prejudiced the respondent (for example, by preventing or inhibiting it from investigating the claim while matters were fresh)."

435. In **Adedeji v University Hospitals Birmingham NHS Foundation Trust** [2021] EWCA Civ 23, [2021] ICR D5, Underhill LJ said:

"The best approach for a tribunal in considering the exercise of the discretion under section 123(1)(b) is to assess all the factors in the particular case which it considers relevant to whether it is just and equitable to extend time, including in particular (as Holland J notes) the length of, and the reasons for, the delay. If it checks those factors against the list in *Keeble*, well and good; but I would not recommend taking it as the framework for its thinking."

Principles to be applied in dealing with application to amend

436. Guidance on applications to amend is provided in the case of **Selkent Bus Company Ltd (trading as Stagecoach Selkent) v Moore** [1996] IRLR 661 and the guidance in **Galilee v Commissioner of Police of the Metropolis** [2018] ICR 634 as well as the **Presidential Guidance on General Case Management** (2018) Guidance Note 1: Amendment of the Claim and Response.
437. When considering an application to amend, a tribunal must take into all the circumstances and should balance the injustice and hardship of allowing the amendment against the injustice and hardship of refusing it. The relevant circumstances include:

- 437.1. The nature of amendment;

- 437.2. The applicability of time limits;
- 437.3. The timing and manner of the application.
438. In **Vaughan v Modality Partnership** [2021] IRLR 97 HHJ Tayler considered the balance of hardship and suggested that a relevant question is "what will be the real practical consequences of allowing or refusing the amendment": [paragraph 21].

Harassment

439. In **Richmond Pharmacology v Dhaliwal** [2009] ICR 724 the EAT (Underhill, P) emphasised both the subjective and objective elements of a claim of harassment under section 26. There is a minimum threshold and following guidance was given at paragraph 22:
- "it is also important not to encourage a culture of hypersensitivity or the imposition of legal liability in respect of every unfortunate phrase"

"Related to" protected characteristic

440. HHJ Auerbach sitting in the EAT provided guidance on harassment in the case of **Tees Esk and Wear Valleys NHS v Aslam** [2020] IRLR 495, in particular at paragraphs 20, 24 and 25.
441. The following guidance was given at paragraph 25 on "related to the protected characteristic":
- "25. ... there must be still, in any given case, be some feature or features of the factual matrix identified by the Tribunal, which properly leads it to the conclusion that the conduct in question is related to the particular characteristic in question, and in the manner alleged by the claim. In every case where it finds that this component of the definition is satisfied, the Tribunal therefore needs to articulate, distinctly and with sufficient clarity, what feature or features of the evidence or facts found, have led it to the conclusion that the conduct is related to the characteristic, as alleged. Section 26 does not bite on conduct which, though it may be unwanted and have the proscribed purpose or effect, is not properly found for some identifiable reason also to have been related to the characteristic relied upon, as alleged, no matter how offensive or otherwise inappropriate the Tribunal may consider it to be."

Omission / inaction as harassment

442. Guidance was given on the topic of management inaction alleged to be harassment by the Court of Appeal in **UNITE the Union v Nailard** [2018] EWCA Civ 1203, [2018] IRLR 730. In that case, the employment tribunal had

allowed that a failure to address a sexual harassment complaint, made against elected officials of the union, could itself amount to harassment related to sex 'because of the background of harassment related to sex'. That, the Court of Appeal held, went too far. The Tribunal had not made any findings as to the mental processes of the (employed) officials of the union dealing with the complaint. Underhill LJ said as follows:

108. ... If the employed officials, and through them the Union, are to be liable for harassing the Claimant because of their failure to protect her from the harassment of the lay officials, and (in the case of Mr Kavanagh) for transferring her, that can only be because of their own motivation, as to which the Tribunal made no finding.

109. ... it will of course be liable if the mental processes of the individual decision-taker(s) are found (with the assistance of section 136 if necessary) to have been significantly influenced, consciously or unconsciously, by the relevant protected characteristic.

443. Following Nailard, a failure or omission of an employer may potentially amount to harassment, but the Tribunal is required to analyse the thought process of the relevant managers to consider whether the inaction is "related to" the protected characteristic.

EHRC GUIDANCE on harassment

444. The EHRC "Employment Code of Practice" (2011) contains the following guidance in relation to complaints of harassment brought under the Equality Act 2010:

7.18 In deciding whether conduct had that effect, each of the following must be taken into account:

a) The perception of the worker; that is, did they regard it as violating their dignity or creating an intimidating (etc) environment for them. This part of the test is a subjective question and depends on how the worker regards the treatment.

b) The other circumstances of the case; circumstances that may be relevant and therefore need to be taken into account can include the personal circumstances of the worker experiencing the conduct; for example, the worker's health, including mental health; mental capacity; cultural norms; or previous experience of harassment; and also the environment in which the conduct takes place.

c) Whether it is reasonable for the conduct to have that effect; this is an objective test. A tribunal is unlikely to find unwanted conduct has the effect, for example, of offending a worker if the tribunal considers the worker to be hypersensitive and that another person subjected to the same conduct would not have been offended.

Irretrievable breakdown/trust and confidence

445. In **Ezsias v N Glamorgan NHS Trust** [2011] IRLR 550 Keith J commented in the context of an alleged protected disclosure automatically unfair dismissal [59]

"We have no reason to think that employment tribunals will not be on the lookout, in cases of this kind, to see whether an employer is using the rubric of 'some other substantial reason' as a pretext to conceal the real reason for the employee's dismissal"

446. In **Leach v OFCOM** [2012] Civ 959 Mummery LJ warned at [3]:

"The legislation is clear: in order to justify dismissal the breakdown in trust must be a "substantial reason." Tribunals and courts must not dilute that requirement. "Breakdown of trust" is not a mantra that can be mouthed whenever an employer is faced with difficulties in establishing a more conventional conduct reason for dismissal."

447. He added at [53]:

"The mutual duty of trust and confidence, as developed in the case law of recent years, is an obligation at the heart of the employment relationship. I would not wish to say anything to diminish its significance. It should, however, be said that it is not a convenient label to stick on any situation, in which the employer feels let down by an employee or which the employer can use as a valid reason for dismissal whenever a conduct reason is not available or appropriate. The circumstances of dismissal differ from case to case. In order to decide the reason for dismissal and whether it is substantial and sufficient to justify dismissal the ET has to examine all the relevant circumstances."

Remedy

448. **Polkey v A E Dayton Services Ltd** [1988] A.C. 344 the Tribunal has the power to limit compensation by reference to the percentage likelihood that, had a fair procedure been carried out, the claimant could/would have been dismissed in any event, and/or by reference to a date by which the tribunal considers that this is likely to have transpired;
449. The Respondents referred to **Software 2000 Ltd v Andrews** [2007] IRLR 568 which confirmed the principles on Polkey reductions generally and that there will be circumstances where the nature of the evidence which the employer wishes to adduce, or on which he seeks to rely, is so unreliable that the tribunal may take the view that the whole exercise of seeking to reconstruct what might have been is so riddled with uncertainty that no sensible prediction based on that evidence can properly be made. Whether that is the position is a matter of impression and judgment for the tribunal; but in reaching that decision the tribunal must direct itself properly. It must recognise that it should have regard to any material and reliable evidence which might assist it in fixing just

compensation, even if there are limits to the extent to which it can confidently predict what might have been; and it must appreciate that a degree of uncertainty is an inevitable feature of the exercise. The mere fact that an element of speculation is involved is not a reason for refusing to have regard to the evidence.

450. Having (a) that if fair procedures had been complied with, the employer has satisfied it – the onus being firmly on the employer – that on the balance of probabilities the dismissal would have occurred when it did in any event; (b) that there was a chance of dismissal but less than 50%, in which case compensation should be reduced accordingly; (c) that employment would have continued but only for a limited fixed period. The evidence demonstrating that may be wholly unrelated to the circumstances relating to the dismissal itself; ; or (d) employment would have continued indefinitely. ;
451. **Abbey National Ltd v Chagger** [2010] ICR 397 CA in assessing compensation for discriminatory dismissal, it is necessary to ask what would have occurred had there been no unlawful discrimination. If there were a chance that dismissal would have occurred in any event, even had there been no discrimination, then in the normal way that must be factored into the calculation of loss (paragraph 57).

CONCLUSIONS

Alleged liability of Respondents

452. As to liability of Respondents the list of issues has this summary:

The claims made in the Second Claim relate to the dismissal of C's grievance and the dismissal of her appeal against dismissal, and the manner in which they were dismissed. Whereas R3 was nominally responsible for dealing with the grievance and the appeal against dismissal, it is C's case (and she will invite the Tribunal to infer, based, amongst other things, on the background outlined in GOC 1) that all four Respondents were involved in the decision to dismiss C's grievance and her appeal against dismissal.

Without limitation, the Claimant will contend that it is inconceivable: (a) that R2, given his position as the only remaining statutory director of R1, would not have had a role in relation to (or input in) those decisions, and (b) that R4, given (i) her involvement as an observer and/or HR adviser to R3 at the hearing on 12 December 2023, and the promulgation of the outcome letter of 25 January 2024, and (ii) her role as HR Director of R1, that she would not have had a role in relation to (or input in) those decisions.

In relation to all claims under the Equality Act 2010, ("**EqA**"), it is C's case (a) that R1 is liable for the material acts and omissions of R2, R3, and R4, and (b) that R4 knowingly helped R2 and R3, within the meaning of s.112 of the EqA, in relation to the allegations as set out against those Rs below.

The First Claim: Unfair dismissal - R1

Admission

453. As to the complaint of unfair dismissal, the First Respondent realistically accepts that dismissal was unfair on procedural grounds.
454. The First Respondent's position is that dismissal was inevitable due to the Claimant's misconduct, refusal to engage with management and the complete breakdown in trust. This is denied by the Claimant, and it is the Claimant's case that her dismissal was both substantively and procedurally unfair.

Conclusion on unfair dismissal

455. I find that the decision to dismiss was both substantively and procedurally unfair.

Conduct dismissal

456. Given the performance concerns any employer, acting fairly, ought to have given an employee a warning of some sort in order that she had the opportunity to understand what the problem was and improve. This was not done. There was not the basis for a substantively fair dismissal for conduct.
457. The Claimant had not committed gross misconduct such that summary dismissal was appropriate.

Breakdown in trust

458. As to a complete breakdown of trust, appellate authorities make clear that Tribunals should exercise caution in allowing employers to rely upon this as a basis for dismissal in circumstances which are in reality a (mis)conduct situation. This was a situation in which the Claimant was clearly articulating concerns about historic harassment and/or discrimination.
459. Even if the First Respondent management came to the view that the Claimant's complaints were histrionic or was dredging up matters which they thought had been dealt with before, the reality is that there had never been a formal grievance process. The Claimant was entitled to formal investigation of a grievance. The fact that she was raising complaints in a meeting or seeking to engage the grievance process did not represent a complete breakdown in trust.
460. I do not find that it would have been substantively fair to dismiss the Claimant in the first week of November 2023 when she had been given no opportunity to improve and her grievances (which might have provided an explanation or at least part of an explanation for her perceived poor performance) had not been dealt with.

Direct discrimination - race (s.13 EqA)

461. All allegations of direct race discrimination are made against the First Respondent. Where allegations are made against individual Respondents, the same is made clear in the text setting out each allegation.

3. C alleges that she was less favourably treated due to being non-white and/or of Mexican ethnic origin (para 2 GOC).

462. In my findings below I will use “race” to describe the Claimant’s ethnicity, which is put forward on the basis of being non-white and/or of Mexican ethnic origin.

4. Did the following occur, did they constitute detriments to C and did they constitute less favourable treatment of C by R1 due to her being non-white and/or of Mexican ethnic origin, contrary to s 13 of the EqA (paras 16 to 25 and 31 GOC1).

463. I note that the Claimant questions the inclusion of any reference to “detriment” in the context of a claim of direct race discrimination, whereas the Respondents consider that the reference to “detriment” should be maintained as a necessary part of the cause of action.

First Claim

464. For reasons given in Issue 23 below I found that allegations 4.1-4.8 of the complaint of race discrimination were brought out of time and I did not find that it was just and equitable to extend. There is therefore no jurisdiction and this complaint in relation to those allegations fails.

- 4.1. (by R2), at a drinks function on 22 September 2021, R2 stating that R1 needed a white male who could be taken seriously by clients (para 16.3 GOC1);
- 4.2. (by R2), commenting on a work skiing trip to Zermatt in February 2022 to other members of R1's staff that he thought that C "must date black men" (para 16.5 GOC1);
- 4.3. (by William Poole and therefore R1), in March 2022, asking C to look at [Employee N's] Instagram page to see pictures of her "tits", again stating they were "large for an Indian woman" (para 16.6 GOC1);
- 4.4. (by R2) making comments about C's father being a drug cartel member including stating that the only way Mexicans can afford to be in London if they are not cleaners is if they are drug lords (para 16.15 GOC1);
- 4.5. (by R2) made remarks to C that it was funny that in London "Mexicans are either cleaners or children of drug lords" like C (in June 2022, cleaning staff at Rs' then offices at 1 King William Street mostly spoke Spanish between themselves);
- 4.6. (by R1, R2, R3 and R4), labelling C together with other females of colour as "EM women" (para 16.20 GOC1);
- 4.7. (by R3) commenting laughingly in the office that he was surrounded by "EM women", including Roxanne Chou, Siyu Tian, [Employee N] and C1;
- 4.8. (by R2, and R3 and R4), normalising a culture of the use of sexist racist and otherwise abusive remarks within R1 (para. 16.21 GOC1);
465. Insofar as this non-specific catch all allegation appears to relate to the period before the end of May 2023, out of time, are not part of a continuing act and it is not just and equitable to extend time, as dealt with below.
- 4.9. (by R2, R3 and R4), failing to deal with the above issues when they were raised by C on 7 June 2023 to R4, on 15 September 2023 to R2 and R3 at the meeting of 1 November 2023 and in the 3 November 2023 grievance (paras. 16.22, 17 and 36 GOC1);
466. I consider that it is just and equitable to extend time to consider this allegation (in reality four separate allegations on the same theme in the period June-November 2023) on its substantive merits.

Detriment – "failing to deal"

467. As to 7 June, the Claimant has failed to establish a detriment. The Third Respondent spoke to Mr Poole, making clear that his conduct had been unacceptable and thereafter changed the reporting line, such that Mr Poole lost a direct report and the Claimant reported directly to the two Partners. The Claimant elected not to pursue a formal grievance process.
468. Following 15 September, the Claimant had a telephone conversation with Ms Butterworth on 19 September, who also spoke to Ms Stovell. A meeting took place on 20 September. Although the Claimant was not happy with the

discussion on 20 September because the Second and Third Respondent were raising their own matters, it is not the case that nothing was done. This was as difficult situation in which the Second Respondent in particular were clashing over the approach to Client 1 and his frustration boiled over. I do not find that “failure to deal” correctly characterised what occurred. This detriment is not established.

469. As to the points raised on 1 and 3 November 2023, there was a failure to deal at that time and the Respondents instead decided to dismiss the Claimant, only dealing with these matters later on as part of the grievance, by which stage employment was terminated. This was a detriment.

Race discrimination and harassment relating to race generally

470. The claim presented on behalf of the Claimant is that from an HR or Employment Law perspective the First Respondent was the “Wild West”, a lawless place where there were no rules and discrimination and harassment were rampant. A central theme is that various comments made, principally by Mr Stovell, Mr Luke Williams and Mr Poole, but also others revealed an environment anyone non-white and non-male was at a disadvantage.
471. There was as a matter of general impression a culture within the First Respondent of making inappropriate and unprofessional comments; there was edgy humour, sometimes cruel or more often puerile. Swearing was commonplace. This was mostly but not entirely on messaging such as WhatsApp, i.e. “personal” communication but among colleagues and in part but not always during working hours. Experience of many Tribunal hearings shows that colleagues exchange comments and “banter” in an uninhibited way in such exchanges expressing themselves in ways that they would never dream of in an open office. It was particularly so in this case. The Claimant herself was a part of this culture and a willing and active participant in it.
472. Mr Stovell appears to have been something of a joker and a mimic at times and made a variety of inappropriate comments which included those related to different nationalities.
473. It would be open to a Tribunal to draw an inference from a comments made by the Second Respondent Mr Stovell about “Mexican cartel” in 2021 and about drug lords or cleaners in London in 2022, first that the Claimant’s Mexican heritage was something that he was aware of; second, potentially that he had a disrespectful attitude toward that heritage and third that affected his professional judgments toward the Claimant.
474. Mr Williams had also made some sweeping comments about nationalities, largely in jest, including one comment he admitted was racist. He had also joined in the joke about Breaking Bad in 2021 or 2022.

No less favourable treatment because of race

475. I did not come to the conclusion that the Claimant experienced less favourable treatment in relation to the progression of her career, however.

476. I note the Respondents' submission that it was not even put directly to the relevant decision makers that race had any bearing on their decisions.
477. When it came to the Claimant's career however, judging by their actions the Second and Third Respondents in particular considered that the Claimant was a highly effective recruiter whom they highly remunerated. I infer that she was one of the two best paid employees in the company (both female) referred to by Mr Stovell in his response to her grievance. She was promoted to Senior Associate. One of her witnesses in the Tribunal who was white and male was unable to achieve that promotion in the time he worked for the First Respondent. She was taken on overseas business trips with the Partners, when she was the only junior employee taken. She was generally granted significant latitude even when behaving in quite a volatile way and overdoing it socially, as noted by female colleagues in private exchanges.
478. The Second and Third Respondent genuinely did not consider she was ready for promotion to Director for reasons which they had explained to her. They were however investing in her development by giving her an associate to manage. More broadly, the team was ethnically diverse. That Roxanne Chou (Taiwanese) was a director was a practical demonstration that the Second and Third Respondent promoted a highly performing non-white employee to Director level. I rejected the Claimant's account of Mr Williams' comments about ineligibility to be promoted to Director.
479. The Claimant was impatient to be promoted to Director. The Second and Third Respondents considered the Claimant needed management experience and some more corporate maturity.
480. "Maturity" was not a code of euphemism for the Claimant's sex or race, nor an allusion to it. It was a real concern about conduct which was objectively evidenced in the bundle.
481. They found managing her increasingly a challenge. She had become unhappy working for Ms Chou, was always unhappy working for Mr Poole and was now unhappy reporting directly to the Second and Third Respondents. On the one hand she had been a very successful recruiter for them. On the other hand she was perceived, not without some justification as disruptive and disloyal. She was not, to use the jargon used within the office, a "good corporate citizen". She admitted in her private communication with Theo Williams that she struggled not to be a "clown". She was told to stop playing the clown and stop playing herself down. There is ample evidence of the Claimant behaving unprofessionally, in a disloyal way and distracting junior colleagues.
482. Theo Williams' (a white, male) progression to Director had been impeded, though not prevented by his propensity to openly joke at the Second and Third Respondent's expense, which he acknowledged. Judging by their voluminous messaging one with another the Claimant and Theo Williams were significant influences on one another. They were both intelligent and successful in their roles but found it difficult to accept the authority of the Second and Third Respondent.

483. The Claimant's allegations of discrimination and harassment were one of the factors which lead to friction in June and September and ultimately November. Those matters form part of the complaint of victimisation, below. Ultimately I did not find that the Claimant's race, whether viewed as Mexican or non-white was any part of it.

484. I did not find that there was treatment because of the Claimant's race.

Harassment relating to race generally

485. I did not find that the treatment "related to" race in the material period 24 May 2023 onward.

4.10. (by R2), during a telephone call with C on 15 September 2023, being verbally abusive, enquiring of her why she thought she was entitled to have an opinion, and raising his voice to say that her opinions "were irrelevant" not only to him and (R3) "but to anyone in the industry" (para 18 GOC1);

486. Mr Stovell thought that the Claimant was not following his direction and was disengaged, sitting round the office doing nothing. This rumbled on for several days as evidenced by his messages to Mr Williams. Mr Stovell lost his temper with her on the telephone. His actions are explicable by those circumstances.

487. Similar reasoning applies to issue 4.9 above. The Claimant's race was not a factor.

4.11. (by R4), following the making of a complaint by C about the 15 September 2023 telephone call, failing to take steps to address C's complaint, thereby condoning the behaviour of R2 and R3 (para 19 GOC1);

488. This substantially overlaps with 4.9 above and similar reasoning applies.

489. The Claimant's race was not a factor.

4.12. (by R3) deciding unilaterally and without obtaining C's consent to record a meeting between C, R2, R3 and R4 on 20 September 2023 on his mobile phone (para 20 GOC1);

490. The factual basis for this allegation is not made out.

491. Similar reasoning applies to issue 4.9 above. The Claimant's race was not a factor.

4.13. (by R2, R3 and R4), treating C in a hostile manner at the meeting on 20 September 2023 by C being prohibited from going for coffee with more junior colleagues, in an attempt to isolate her (para 20 GOC1);

492. The three individual Respondents perceived that the Claimant was a disruptive influence who was distracting colleagues and trying to undermine the Second and Third Respondent's management of the First Respondent business. There was a concern that the Claimant had a negative attitude to the First Respondent

business and its owners and was vocal about it. The text messages disclosed overwhelming confirm that the Claimant had an extremely negative attitude even before the events in Madrid, although the individual Respondents would not have known the extent of that at the time.

493. I find that this was a legitimate attempt to appropriately manage the First Respondent business and not an attempt to isolate the Claimant.
494. Similar reasoning applies to issue 4.9 above. The Claimant's race was not a factor.

4.14. (by R4) on 1 November 2023, inviting C to a meeting on the pretext that it was a "pipeline catch up", and at the meeting, when C raised concerns in relation to the sexist, racist, and unfair comments made in the workplace, R3 dismissing those concerns as "at worst a poor attempt at humour" (para 21 GOC1);

495. It is fair to say that "pipeline catch up" did not capture what were in reality questions relating to the Claimant's performance and conduct. It would have been better HR practice to give the Claimant some advance notice of the concerns that were to be discussed. The reality was that the Claimant knew that matters were coming to a head in relation to her employment relationship.
496. As to the allegation about the Claimant's concerns about sexist and racist conduct being dismissed as at worst a poor attempt at humour, I find that this was Mr Williams' view.
497. Looked at broadly the response of the Respondent to the Claimant's allegations raised on 1 November 2023 was inadequate and this was a detriment. These were serious allegations. While the individual Respondents may have considered that these matters had been resolved, it was evident that they were not resolved in the mind of the Claimant.
498. Nevertheless, I do not find that any of this treatment was because of or relating to the Claimant's race. Similar reasoning applies to issue 4.9 above.

4.15. (by R2 and R3), utilising the 1 November 2023 meeting to stifle concerns C had raised about the working environment, rather than as a pipeline catch up (para 21 GOC1);

499. Viewed from the Respondents' perspective this meeting was to talk about the Claimant's conduct and future employment. From their point of view the Claimant was simply deflecting from those concerns and trying to hijack the meeting. The response to these concerns was inadequate.
500. I do not find that any of this treatment was related to or because of the Claimant's race. The Second and Third Respondents had for some time now regarded the Claimant as a problem employee.

4.16. (by R2 and R3), suggesting to C at the 1 November 2023 meeting that her "output" had dropped, and that she had demonstrated "behaviour that suggests quite explicitly and quite clearly that you have no intention of staying here, long time", with R2 suggesting that for the rest of the week C work from home, and C being

questioned for the first time about her timekeeping and attendance, notwithstanding that this was common with R1's staff generally (para 21 GOC1);

501. I find that viewed from the Respondents' perspective the Claimant's recent conduct such as absences from the office, emailing documents to her personal email address and generally negative attitude meant that they genuinely believed that she was no longer interested in remaining working for the First Respondent for the long-term.
502. I find that the questions about the Claimant's timekeeping and attendance were based on a genuine concern. The previous week she had disappeared with Theo Williams at 1pm and not returned by 4:31pm. There was a series of late attendances in the final six weeks of her employment documented above. The reality was, although the Respondents would not have seen the messages at the time was that the Claimant and Theo Williams were plotting and contemplated a long-term future away from employment with the First Respondent.
503. I do not find that any of this treatment was related to or because of the Claimant's race. The Second and Third Respondents now regarded the Claimant as a problem employee.

4.17. (by R3), at the meeting on 1 November 2023, when C pressed her complaint in relation to the concerns, she had raised about the working environment, stating "I'm not going to address lumps of stuff" (para 22 GOC1);

504. The same considerations apply as for 4.15 above.

4.18. (by R4), at the meeting on 1 November 2023, failing to investigate, manage, or otherwise properly deal with the concerns restated by C at that meeting (para 22 GOC1), and

505. I reiterate that the response of the individual respondents generally to the Claimant's allegations on 1 November was inadequate.
506. Nevertheless I do not find that any of this treatment was related to or because of the Claimant's race. By the time of the 1 November 2023 the Fourth Respondent Ms Butterworth was not in control of events. It was during the course of that meeting, in the lunch afterward and confirmed over the following weekend that the Second and Third Respondents decided to dismiss the Claimant without any further process or investigation.

4.19. (by R3), referring to C's visa status in an email of 2 November 2023 in the context of agreeing an amicable severance (para 23 GOC1).

507. The relevant part of the email, set out more fully above is:

"we are conscious that you are employed by us on a work-dependent UK visa and that if we were to terminate your employment it would result in you having to leave the UK within a short period. We do not wish to have to place you in a such a position in respect of your immigration status if it can avoided, which

is why we wanted to have an amicable discussion with you rather than move to an immediate termination as we might have done with someone with indefinite leave to remain.”

508. The Claimant contends that this was a veiled threat. I do not read it as such. Plainly the underlying context which was consideration of termination of employment was unwelcome from the Claimant’s point of view. The point about immigration status however is that Mr Williams was making it clear that they were open to a negotiation that would not jeopardise her immigration status. In other words this was a genuine offer and was showing consideration of her unsettled immigration status.
509. I do not find that any of this treatment was related to or because of the Claimant’s race.

Second Claim (direct race discrimination)

4.20. (by all Rs), causing or permitting R3 to conduct C’s dismissal appeal (para 21.1 GOC2);

510. As a matter of basic procedural fairness, it was difficult to see how the Third Respondent Mr Williams could offer an independent review of his own decision to dismiss the Claimant.
511. I accept the Respondents’ submission that there is no evidence that someone of a different race would have been treated differently and that Claimant’s race had nothing whatsoever to do with the decision to appoint the Third Respondent.

4.21. (by all Rs), prior to the hearing on 12 December 2023, exerting pressure on Siyu Tian and Theo Williams not to be involved as witnesses in C’s grievance or appeal (para 21.2 GOC2);

512. I did not find that either Ms Tian or Theo Williams were subject to pressure as alleged.
513. In any event, I accept the Respondents’ submission that there is no evidence that the Claimant’s race was any factor.

4.22. (by all Rs), on 12 December 2023, giving C an ultimatum that the hearing would either be conducted by R3 and with R3 in the presence of a solicitor for R1 or be postponed until an unspecified date the following year (para 21.3 GOC2);

514. The situation presented to the Claimant on 12 December 2023 was not so much an “ultimatum” as a choice between two unpalatable options seen from her perspective. Either proceed with a solicitor taking a note or delay to the New Year.
515. It was unfortunate that a typist notetaker could not be found, but this was the cause of the situation.

516. This was an unfortunate situation, but I did not find that this related to or was because of the Claimant's race.

4.23. (by all Rs), on 12 December 2023, criticising C's performance without identifying the KPIs she had not met and contrary to clear evidence of C's high level of performance (para 21.4, GOC2);

517. The Claimant submits that the criticisms of the Claimant's performance as a justification for dismissal were "complete travesty", given her high performance compared to others during 2023. It is submitted that the Respondents' case that she had "checked out" (i.e. was making no effort) is inaccurate and in any event would only be relevant to the question of remedy.

518. The Respondents submit that this is inaccurate. Performance is not limited to placements. The primary concern was that the metrics showed that the Claimant was not doing any work and that there was a significant tail off in her activity in relation to new potential candidates.

519. The truth of this lies between the positions put forward by the parties' advocates. On the one hand, the Claimant still had a very good performance looking at 2023 as a whole. On the other there were legitimate reasons for the First Respondent's management team to be concerned that the Claimant was disengaging and that the future pipeline of placements did not look as strong, hence the meeting on 1 November 2023 was set up to discuss "pipeline". This topic is the first matter of substance raised by Mr Stovell in that meeting.

520. It is clear from the letter of dismissal that the Partners were concerned about activity and productivity levels over recent months and that there was no substantive detail nor evidence of her meeting and telephoning candidates. It is set out that the Claimant had entered negligible records and data relating to such meetings on the First Respondent Systems and calendar despite being required to do so.

521. The reality is that the dismissal was not because of "performance" as measured by KPIs, nor was it a fair dismissal, as I have considered elsewhere. The dismissal was an alleged breakdown in the working relationship.

522. There is a discussion during the appeal hearing between the Third Respondent Mr Williams and the Claimant about her not adding anything by way of candidate data to the company system (Salesforce). She queries with him whether this is a metric that is being used.

523. Additional Mr Williams discusses with her concerns about frequent absences from the desk.

524. I did not form the conclusion that there had been a failure to enable the Claimant to understand the performance matters that were the Respondents' concern.

525. For these and similar reasons to 4.9 above, I do not find that any of this treatment was related to or because of the Claimant's race.

4.24. (by all Rs), on 12 December 2023, ignoring a table of placed candidates C provided (para 21.5, GOC2);

526. The same considerations apply as for the previous allegation.

527. I do not find that any of this treatment was related to or because of the Claimant's race.

4.25. (by all Rs), on 25 January 2024, in the dismissal appeal outcome:

528. I accept the submission that it was only the Third Respondent Luke Williams that took the decision in the dismissal appeal. The Claimant has not established that the other Respondents were involved.

529. It is submitted on behalf of the Claimant:

To a large degree, analysing Luke Williams' rationale for dismissing the appeal against his own decision to dismiss, and dismissing the Claimant's grievance is a pointless exercise if it is appreciated that he never had any intention of upholding either

530. I accept that submission. It is unsurprising that Mr Williams upheld his own decision.

531. Following on from the 25 allegations above, there are 22 further separate allegations (4.25.1 to 4.25.22 below) about the dismissal appeal. Some of these allegations have merit as a general critique of the process or the decision. Many do not. I do not find that any of this treatment was related to or because of the Claimant's race, for similar reasons to issue 4.9 above.

4.25.1. exonerating William Poole in relation to the allegations of race and sex discrimination which had been made against him, including misogyny (para 21.6, GOC2);

4.25.2. suggesting that the meeting between Rs and C on 1 November 2023 was intended to be the start of a formal process "*since all informal efforts had failed*", notwithstanding that there had been no such informal efforts, and notwithstanding that the Fourth Respondent had told the Claimant that the purpose of the 1 November 2023 meeting was intended to be a "*pipeline catchup*" (para 21.7, GOC2);

4.25.3. falsely alleging that, at the 1 November 2023 meeting, C had reacted antagonistically and so badly that there was no prospect of her engaging with Rs at

all, and that “the Claimant’s comments at that meeting amounted to an ‘antagonistic reaction’” (para 21.8, GOC2);

4.25.4. falsely claiming that the dismissal decision had been made prior to receiving C’s grievance on 3 November 2023 (the “Grievance”) (para 21.9, GOC2);

4.25.5. falsely claiming that the Grievance had had no bearing on the dismissal (para 21.10, GOC2);

4.25.6. dismissing C’s allegation that her complaints about William Poole were trivialised and not properly addressed (para 21.11, GOC2);

4.25.7. finding merely that Mr Poole had “made some comments which are inappropriate in the workplace”, the sanction for which was “(making) clear to him that such behaviour is not acceptable ...” and that: “As for Will Poole’s conduct in Madrid in May, I agree that he made inappropriate comments, and I spoke to him about this the day after you told me about them and told him this behaviour was unacceptable” (para 21.12,21.21 GOC2);

4.25.8. falsely claiming that it was as a result of the Claimant’s complaints about William Poole’s behaviour that her reporting line had been changed so that she would no longer report to him (para 21.13, GOC2);

4.25.9. finding wrongly that C’s behaviour had caused “substantial disruption to the business... a corrosive environment and an atmosphere which discourages colleagues from working, which destroys their morale and undermines management” (para 21.14, GOC2);

4.25.10. failing to uphold the Claimant’s contention that the purported reasons given for her dismissal were based on allegations which were either vague or untrue or where the facts had been twisted to justify her dismissal (para 21.15, GOC2);

4.25.11. rejecting C’s contention that she had been singled out for alleged poor timekeeping and absenteeism (para 21.16, GOC2);

4.25.12. dismissing C’s claim that the allegations against her, that she had been “disruptive in the office” and of her making “unacceptable comments to other colleagues” had never been made against her prior to her dismissal, and further that details in purported support of those allegations were only obtained and/or

solicited after her dismissal in an attempt to justify her dismissal (para 21.17, GOC2);

4.25.13. making findings adverse to C on flimsy evidence which she had had no opportunity to address (para 21.18, GOC2);

4.25.14. whilst acknowledging that the Claimant had “*not been subject to formal procedures*”, wrongfully and falsely asserting that “*these issues (or similar issues) had been raised with you previously*” (para 21.19, GOC2);

4.25.15. rejecting C’s complaint of a campaign of harassment, victimisation and bullying for having raised allegations of sexist and racist conduct (para 21.20, GOC2);

4.25.16. finding that Mr Poole carried a topless photo of his wife which he said fell out accidentally, and there was no evidence he was lying (para 21.22, GOC2);

4.25.17. accepting Mr Poole’s account at face value but dismissing C’s account despite the fact that she repeatedly provided evidence to back up her complaints (para 21.23, GOC2);

4.25.18. finding that there was “*no evidence*” that Mr Poole obsessed over C’s dating life or asked her inappropriate questions (para 21.24, GOC2);

4.25.19. finding that there was no suggestion that R1 was “*looking to hire a ‘top shagger’*” despite the finding that R2 had used that term (para 21.25, GOC2);

4.25.20. falsely finding that C had not raised with R3 issues of inappropriate misogynist and racist language used by employees (para 21.26, GOC2);

4.25.21. finding that Mr Poole’s comments in Madrid in May 2023 were made “in the course of a light-hearted and jokey relationship with you” and “did not upset you at the time ...” (para 21.27, GOC2);

4.25.22. dismissing C’s appeal against dismissal (para 21.33, GOC2);

GRIEVANCE OUTCOME

532. There are 5 separate allegations (4.26.1 to 4.26.5 below) about the grievance outcome. Some of these allegations have amount to a general critique of the process or the decision. I do not find that any of this treatment was related to or because of the Claimant’s race for similar reasons to those given at 4.9 above.

4.26. (by all Rs), on or about 25 January 2024 in the grievance outcome:

4.26.1. concluding that the C had not been dismissed to avoid paying her bonus in addition to retaliation for her grievance (para 21.28, GOC2);

4.26.2. concluding there was nothing to suggest C's sex or age played a role in the decisions as to whether she would be promoted (para 21.29, GOC2);

4.26.3. dismissing C's complaint about Client A, and/or misunderstanding or misrepresenting her grievance about Client A, by wrongly stating that C refused to work on the Client A account (para 21.30, GOC2);

4.26.4. dismissing C's complaint that she had been handled poorly in the 6 months prior to her dismissal due to complaints she had raised about Mr Poole (para 21.31, GOC2);

4.26.5. dismissing C's grievance (para 21.31, GOC2)?

DISMISSAL

5. Did C's dismissal constitute less favourable treatment by R1, and/or R2, and/or R3, and/or R4 due to her being non-white and/or of Mexican ethnic heritage? (para 25 GOC1).

533. I did not find that the dismissal was related to or because of the Claimant's race for similar reasons to those given at 4.9 above.

6. For the purposes of the First Claim (para 32 GOC1) and the Second Claim (para 22 GOC2), C adopts a hypothetical comparator, namely a white employee and/or a white employee of non-Mexican origin.

534. I find that a hypothetical comparator white or non-Mexican in the same circumstances as the Claimant would have been treated in the same way.

Direct discrimination - sex (s.13 EqA)

535. All allegations of direct sex discrimination are made against First Respondent. Where allegations are made against individual Respondents, the same is made clear in the text setting out each allegation.

7. Did the following occur, did they constitute detriments to C and did they constitute less favourable treatment of her by R1 because of her sex, contrary to s 13 of the EqA (paras 16 to 25 and 33 GOC1)

536. I note that the Claimant questions the inclusion of any reference to “detriment” in the context of a claim of direct sex discrimination. The Respondents consider that the reference to “detriment” should be maintained as a necessary part of the cause of action):

First Claim (direct sex discrimination or harassment relating to sex)

Out of time allegations

537. The following allegations I found were not part of a continuing act of discrimination. The first claim was presented out of time in relation to these allegations. I have not found it “just and equitable” to extend time for the reasons given below.

7.1. (by R2), showing pornographic images in the workplace (para 16.2 GOC1). Pornographic images of women were shown by R2 on an ongoing basis to Mungo Strachan from September 2020 until he left R1 in or around March 2021. R2 then showed William Poole such images on his mobile throughout 2022 when R2 would frequently come to William Poole’s desk which C sat near to. This occurred on a number of occasions. C is unable to specify dates; WP complete denial

7.2. (by R2), stating on 22 September 2021 that there were “not enough fucking men at the company”, that it resembled a “hen do”, and that R1 needed a white male who could be taken seriously by clients (para 16.3 GOC1);

7.3. (by R2), stating on 22 September 2021 that R1 needed a white male in his mid 30’s like Mr Poole who could be taken seriously by clients, saying that in addition to Mr Poole being a “top lad”, he could also lead an army of graduates from sports universities, in other words that they would not be hired on academic ability but for being “top shaggers”, a term repeatedly used by R2 (para 16.3 GOC1);

7.4. (by R2), repeatedly using the term “top shaggers” to describe the ideal candidates R1 should recruit (para 16.3 GOC1);

7.5. (by R2), stating on several occasions that there was “not enough testosterone in the room” and R1 needed to “hire more blokes because women cause drama” (para 16.4 GOC1);

(i) On 15 or 16 September 2021, Siyu Tian wrote an email to R2 and R3 about an incident that occurred with Roxanne Chou and one of her candidates. As a result, R2

complained that “he can’t be fucked to deal with drama and that Lascaux needs to hire more blokes because women cause too much drama”;

(ii) In February 2022, during a ski trip to Zermatt, R2 said that R1 needed to hire more “top shaggers that brought testosterone to the room”; people like Mungo who were “dogs”;

7.6. (by R2), stating that C had a “big ass” and “must date black men” during a trip to Zermatt in February 2022 (para 16.5 GOC1);

7.7. (by William Poole and therefore R1), in March 2022, referring to C as a “ladette” who could “handle (his) sexist chat” and that portfolio managers were more likely to speak to C as she “had tits” (para 16.6 GOC1);

7.8. (by William Poole and therefore R1), in March 2022, asking C to look at [Employee N]’s Instagram page to see pictures of her “tits”, stating they were “large for an Indian woman” (para 16.6 GOC1);

7.9. (by R2), expressing sympathy with R3 in May 2022 because he “had to deal with three men women at home” and that “the office was basically a hen do” (para 16.4 GOC1);

7.10. (by William Poole and therefore R1), repeatedly referring to C being unmarriageable and making comments about her breasts (para 16.6 GOC1)

(i) In June 2022, William Poole made jokes to C and other colleagues about C being unmarriageable on account of her apparently behaving like a “bloke instead of a bird”, and because C was a “ladette that liked to drink pints with male colleagues at the pub”.

(ii) In November 2022 William Poole confided in C that he was embarrassed by the number of placements he had made, but that C would not understand his struggle as she had “tits”, and so it was easier for her to get PMs engaged;

7.11. (by William Poole and therefore R1), referring to a female portfolio manager from the hedge fund Marshall Wace in a text message of 9 November 2022 as a “bird” (para 16.17 GOC1); 849; 3419 WP – see xx

7.16. (by R2), suggesting that C was “into older men”, implying that she was a “gold digger” (para 16.14 GOC1) – [does this follow?] C44.5

(i) In March and April 2022, R2 made jokes to William Poole about C dating “older men”, “meeting older men for dinner in Mayfair”, and that she “preferred older men”, implying that C was a gold digger;

(ii) In February 2023 on a Thursday nearing the end of the day, R2 noticed that C had put on mascara and asked her if C was “headed off to Mayfair to have an old

man pay for (her) dinner” (and it is C’s case that R2 made such comments on multiple occasions, on dates she cannot now recall);

7.17. (by William Poole and therefore R1), asking C if she was on dating apps and how many dates it would take for her to sleep with someone (para 16.18 GOC1) –

(i) Following the break-up of a long relationship between C and a partner in June 2022, William Poole suggested that she should try to use dating apps;

(ii) At the end of August 2022, after C had attended a music festival in Norfolk with friends, including colleague [Employee N], William Poole asked whether the two of them were actively using dating apps;

(iii) In January 2023, William Poole asked C how many dates she went on before she was “down to fuck”, as he had “not been in the dating game for several years” on account of being married;

7.21. (by R3), stating to C during a work trip to Denmark in April 2023, that she was not eligible for a promotion due to “optics”, referring to clients wanting to interact with “a beard” (i.e., a man rather than a woman) (para 17 GOC1);

First claim - allegations brought in time or time extended

538. In each case below I have first considered whether this is harassment relating to sex and in the alternative direct sex discrimination.

Direct sex discrimination generally

539. Many of the same considerations as are discussed above under Issue 4.9 under the heading “Race discrimination and harassment relating to race generally” apply here. I rely on the same reasoning in relation to my conclusion that the Claimant did not suffer from less favourable treatment until the circumstances of her dismissal.

540. There are some additional considerations in relation to direct sex discrimination. Mr Stovell had a long-standing conviction that it would benefit the organisation to have some more male employees. This was expressed by him on various occasions in fairly unsophisticated terms, such as remarking on a female dominated drinks being a “hen do”, the running “joke” about “top shaggers”, the request for the best “lad” and the comment to Mr Williams about recruitment “it probably needs to be guy”. The first two of these comments understandably created a negative impression in the mind of female employees. Mr Stovell recruited an old university friend, Mr Poole, who was male. This was seen by various junior employees of the First Respondent, in particular the Claimant as a nepotism and not a meritorious hire. That decision aside the Claimant was not complaining about recruitment decisions as she made clear in her oral evidence.

541. There is the comment of Luke Williams in the conversation on the second trip to Denmark about the Director Mr Poole having more hair on his face than on

his head. Mr Williams says that this comment was about maturity. The Claimant's take was that this related to him being male.

542. I have considered whether the Respondents have shown that the Claimant was not subject to direct sex discrimination. I have concluded that they have, principally for the same or very similar reasons as for the complaint of direct race discrimination above at Issue 4.9. In short, the diverse make up of the office with two female Directors out of four Directors, that the Claimant's fairly short career with the First Respondent was extremely successful and there were genuine reasons unrelated to her sex which explained why she was not promoted to Director "yet".

Harassment relating to sex generally

543. I did not find that the treatment "related to" sex in the material period 24 May 2023 onward, save for lactating allegation.
544. I considered whether lack of maturity of called "volatile" was not an allusion to the Claimant's sex. It was not, I find. It was a real concern about conduct which was objectively evidenced in the bundle.
545. I have considered whether lack of action was harassment per **Nailard**, below.

7.12. (by William Poole and therefore R1), during a work trip to Madrid in May 2023, asking C if she was "lactating" and showing C intimate pictures of his wife (para 16.8 GOC1):

Intimate pictures

546. Although I find that a Polaroid photograph fell out of Mr Poole's wallet and was seen by some colleagues I am not satisfied on the balance of probabilities that the Claimant has established this allegation in relation to treatment of her as pleaded.

Lactating comment discussion

547. It is admitted that the comment was made by Mr Poole, asking the Claimant if she was lactating. This was unwanted conduct.
548. Did it relate to the Claimant's sex? It related to a female body part and a female specific biological process.
549. I did not find that this comment had the proscribed purpose. It was meant by him as a joke. The joke was misjudged. It was not meant by him to undermine the Claimant, intimidate her creating humiliating or offensive environment for her.
550. The comment did however have the proscribed effect. I found that this did violate the Claimant's dignity. It called attention to her body in a work group setting that was not appropriate. I find that this contributed to her upset that day.

551. The Claimant continued to make references to this comment for the remainder of her employment. Her feelings of legitimate upset were intertwined with her sense of injustice that Mr Poole had the role of Director whereas she did not.
552. As to whether or not this amounted to harassment, it was reasonable for the Claimant to find this comment inappropriate and that it had violated her dignity.
553. As to Mr Poole's explanation, which is that this linked to a conversation the previous night about the Claimant wanting children, this might have explained a comment to the effect that the Claimant was "unmarriageable" but the connection to "lactating" is tenuous and a *ex post facto* attempt to rationalise an obviously inappropriate comment.
554. Following **Richmond v Dhaliwal**, not every unfortunate comment should found legal liability. I have found this decision finely balanced.
555. I have considered the arguments against this amounting to harassment. This work trip was a high-spirited one. I have the impression that there was, initially at least, a light-hearted atmosphere on this work trip overseas of the sort where colleagues go out drinking together and it might seem that normal rules are somewhat relaxed. There was uninhibited behaviour generally.
556. The Claimant herself made inappropriate remarks about another colleague. That was not connected with the "lactating" comment, nor a justification for it, but rather part of the overall picture.
557. I note that Mr Poole apologised to the Claimant for his comment. The Claimant and Mr Poole had fairly informal jokey style of communication before the Madrid trip. She had hitherto regarded him as a "nice guy".

Lactating comment conclusion

558. On balance I find that this was something more than an unfortunate comment. Mr Poole was in a position of responsibility, he was the Claimant's manager and this was not something said at the end of an evening where, perhaps, the consumption of alcohol might have been a mitigating factor to tip the balance the other way. I find that it was reasonable of the Claimant to find that this had violated her dignity and in the circumstances it was harassment.

7.13. (by R2), during a work trip to Madrid in May 2023, stating in the presence of all over dinner that R1 would only hire "rugby lads and top shaggers", and that R1 would only employ "good looking women" (para 16.9 GOC1);

559. It unclear that the Claimant has established this allegation based on her witness statement, which does not refer to the "good looking women" comment being made in Madrid.
560. Mr Stovell's account of the conversation is, I find, a slightly sanitised version of the conversation.

561. I found that “top shagger” was Mr Stovell’s running joke, albeit an inappropriate one. To the extent that there were boorish comments made I find that this was unwanted conduct.
562. In the context where seemingly most of the people had had quite a lot to drink, and none of these comments were directed at the Claimant personally I did not find that objectively this amounted to harassment.
563. I did not find that this related to the Claimant’s sex or was because of it.

7.14. (by R3) not showing genuine concern to C at a meeting on 30 May 2023, but instead asking whether she was “on drugs” (para 16.10 GOC1);

564. I find that Mr Williams did not ask the Claimant whether she was “on drugs”. I find that his reference to her overdoing it socially might, reasonably have been understood by her to be an allusion to drinking and drug taking.
565. In any event I found that Mr Williams was genuinely concerned about the Claimant. She was a highly performing recruiter, and it seemed to him that she was behaving in a volatile way. He had a personal interest as an owner of the business in the Claimant being balanced and performing well at work. The evidence suggested that by 30 May 2023 this was not the current situation.
566. I did not find that the approach of Mr Williams in this meeting was related to the Claimant’s sex, nor was it because of her sex.

7.15. (by R4), C having approached R4 on 7 June 2023 to raise concerns about the culture of R1, failing to provide follow-up or support to C (para 16.11 GOC1);

567. Given that the Claimant did not elect to go down the route of a formal grievance, it is difficult to see what further follow up was required. The reporting line changed such that the Claimant was no longer reporting to Mr Poole, which was the outcome that she wanted and was an appropriate action by the First Respondent’s management in the circumstances.
568. I did not consider that Ms Butterworth’s subsequent approach to this matter having appropriately spoken to the Claimant on 7 June 2023 either related to the Claimant’s sex, nor did I find that it was because of her sex.

7.16 (iii) In May 2023, during R1’s company trip to Madrid, R2 asked Theo Williams if he knew that C was into “older men”, like himself, implying that she was a “gold digger”.

569. Mr Stovell denied this allegation.
570. I was not satisfied on the balance of probabilities that this comment was made as alleged on the trip to Madrid in April 2023. In his witness statement Theo Williams says that a comments about older men were made in September 2021 and “throughout 2022”. This degree of repetition seems improbable.
571. Crucially, Mr Williams does not state in the witness statement that this comment was said in Madrid in May 2023.

572. This allegation does not succeed.

7.18. (by R1), labelling C together with other females of colour as “EM women” (para 16.20 GOC1);

573. The Claimant used the term “EM women”. It is clear from the Claimant’s own evidence that “EM women” (Emerging Markets) was a term used by a female Director Roxanne Chou and that Mr Williams had he did not like the term. The Claimant suggested in the internal process that Mr Williams had originally thought this was funny before he changed his mind and asked people not to use the term.

574. I am not persuaded on the balance of probabilities that this term was being used by the First Respondent management during the period May 2023 onward. I do not understand the Claimant to be complaining about Ms Chou using the term.

7.19. (by R2 and R3), normalising the sexist and otherwise abusive culture within R1 (para 16.21 GOC1).

575. This allegation of “sexist and otherwise abusive culture” is a kind of catchall rather than specific allegation in relation to which I can carry out the exercise of identifying the thought process in relation to specific conduct identified in the guidance in **Nailard** in relation to harassment or the analogous exercise in the complaint of direct discrimination. I have focussed on the specific allegations that are in time.

7.20. (by R2, R3 and R4), failing to deal with the above issues when they were raised by C on 7 June 2023 to R4, on 15 September 2023 to R2 and R3 [subject to C providing marked up amended Grounds of Claim], at the meeting of 1 November 2023 and in the 3 November 2023 grievance (paras 16.22, 17 and 36 GOC1);

576. The alleged detriment is dealt with above under Issue 4.9.

577. In short, there was a failure to deal with the matters raised on 1 and 3 November 2023, but not the earlier matters.

578. For similar reasons as are set out above, I did not however find that this related to the Claimant’s sex, nor that it was because of her sex.

7.22. (by R2 and R3) not considering C for promotion, (a) generally; (b) by R3 stating, at the meeting on 30 May 2023 referred to at Issues 7.14 above and 12.1 below, that C’s reaction to William Poole’s sexist comments towards her amounted to evidence that she should not be promoted as she was being “immature” reacting the way she did, and (c) (by R2), stating in or around 19 June 2023 that she was “not being considered for a promotion because she is quite frankly volatile and immature” (para 17 GOC1);

579. There are three distinct elements here.

580. First, **(a)** the lack of promotion generally. To the extent that this relates to a period before the 25 May 2023 I find this is out of time.

581. The Claimant was promoted to Senior Associate. I did not accept the Claimant's version of the "optics" conversation with Luke Williams in April 2023 insofar as she claimed to have been told that she not eligible to be a Director due to being a non-white, non-British woman.
582. He said was not considered ready for Director "yet". By implication promotion was something for the future. She was not considered ready for legitimate reasons, specifically management experience, maturity and not sufficiently supporting the Second and Third Respondent's leadership of the business all of which were unrelated to her sex.
583. Allegations 7.22 (b) and (c) have a similar thread to one another.
584. Second, **(b)** at the meeting of **30 May 2023**. I have not accepted the Claimant's characterisation of the meeting on 30 May 2023. The Claimant's case has characterised this as the Third Respondent Mr William stating that the Claimant being upset at being harassed was immature and as a result she could not be promoted. This appears to me to compress together various elements which were in reality distinct. Mr Williams did think that the Claimant was immature. That was part of the reason she had not been promoted further historically. That was a long standing view held by both Mr Williams and Mr Stovell, which pre-dated the Madrid trip.
585. There was a wider context. Mr Williams evidently had a negative view of the Claimant's conduct on the Madrid trip from his own observation at a point in time when he was not aware of the detail of the allegations against Mr Poole, as was evident from the blunt and rude contemporaneous messages sent between the two Lukes about the Claimant while in Madrid. She was drinking excessively, shouting and behaving inappropriately. He was actively avoiding her. He was aware that the Claimant had inappropriately told Employee A (and others) that Employee A was the had only person at Lascaux that she would sleep with, and had condemned most of the office as "simpletons". He knew she had been crying a lot as he had seen and heard himself and been told about it. From his own observation and what he had been told the Claimant's behaviour was inappropriate and immature and had significantly marred the whole trip.
586. This was the background against which the Claimant was raising a whole range of different grievances which included Mr Poole's conduct in Madrid but also her frustration about a bonus two years previously, her lack of promotion and a general allegation that the First Respondent was a "Boy's Club".
587. I did not find that Luke Williams' muted reaction on 30 May amounted to a detriment. He managed to maintain his temper, when facing a jumbled barrage of allegations from the Claimant, some of which were recent and raw (Madrid), others of which were historic.
588. His other queries about the Claimant I have dealt with above.
589. Third, **(c)**, the Second Respondent Mr Stovell admits saying in the mid-year view on **12 June 2023** that the Claimant was not be considered for promotion

because she was “volatile and immature”. He had tried to deliver a message about maturity the previous year in more tactful language i.e. not being a clown. In view of her conduct in Madrid “volatile and immature” was his genuine view and this was not because of her sex.

Direct sex discrimination

590. I did not find that this was because of the Claimant’s sex for the reasons given under “Direct sex discrimination generally” above.

Harassment relating to sex

591. I did consider carefully whether this was a situation described in **Nailard**, where management inaction in response to a claimant’s complaint of harassment was in itself harassment. My finding is that Mr Poole’s treatment of the Claimant in relation to the lactating comment in Madrid did amount to harassment.
592. Looking at the definition of harassment in section 26, that the Claimant was not promoted to Director and called “volatile and immature” was unwanted conduct.
593. Did it relate to the Claimant’s sex? I do not find that in this case and the context “volatile and immature” inherently suggests that this is a reference to the Claimant’s sex.
594. I concluded that the lactating comment among others from Mr Poole, which may have been significant in the Claimant’s mind was no more than a trivial element in Mr Stovell’s mind at that point. The wider context is significant. Mr Stovell had communicated to the Claimant on other occasions more constructively what she needed to do to achieve promotion, including the advice to be more corporate, stop “playing the clown” and stop downplaying herself.

7.23. (by R2), during a telephone call with C on 15 September 2023, being verbally abusive, enquiring of her why she thought she was entitled to have an opinion, and raising his voice to say that her opinions “were irrelevant” not only to him and (R3) “but to anyone in the industry” (para 18 GOC1);

595. I found that there was a bad tempered telephone conversation, during which Mr Stovell did tell the Claimant that her opinions were irrelevant, but not that she was herself irrelevant. I accept that he raised his voice.
596. The context I find was that Mr Stovell was frustrated with the Claimant and her perceived negativity about Client 1. I accept his evidence that more generally he was feeling very frustrated by the Claimant’s attitude, her timekeeping, unauthorised absence and failure to follow instructions.
597. He felt that she was not working hard at that time, as evidenced by his text message sent on 12 September.
598. I did not find that Mr Stovell’s actions was because of the Claimant’s sex.

599. I find that the Mr Stovell's comments to the Claimant were unwanted and that they had the proscribed effect. The comments related however solely to his frustration triggered by the perceived negativity to Client A. I do not find that this was because of or related to the Claimant's sex.

7.24. (by R4), following the making of a complaint by C about the 15 September 2023 telephone call, failing to take steps to address C's complaint, thereby condoning the behaviour of R2 and R3 (para 19 GOC1);

600. I do not accept that the Fourth Respondent Mrs Butterworth failed to take any steps. She listened to the Claimant's complaint on 19 September 2023. She spoke to Mr Stovell to ask his side of the story.

601. The meeting on the following day 20 September 2023 was convened with the Claimant, with both Mr Stovell and Mr Williams, Ms Butterworth and the Claimant.

602. I did not find that Ms Butterworth's actions were because of the Claimant's sex. She was caught in a relatively difficult situation between the two Partners, the owners of the business on the one hand and a junior albeit high performing recruiter on the other. She was trying to resolve the situation.

603. I did not find that the Ms Butterworth's actions had the proscribed purpose or effect and did not relate to the Claimant's sex.

7.25. (by R3), deciding unilaterally and without obtaining C's consent to record a meeting between C, R2, R3 and R4 on 20 September 2023 on his mobile phone (para 20 GOC1);

604. The factual basis for this allegation is not made out.

605. I adopt the reasoning under "Direct sex discrimination generally" above.

7.26. (by R2, R3 and R4), treating C in a hostile manner at the meeting on 20 September 2023 by C being prohibited from going for coffee with more junior colleagues, in an attempt to isolate her (para 20 GOC1);

606. As to detriment, similar reasoning to issue 4.13 applies.

607. I adopt the reasoning under "Direct sex discrimination generally" above.

7.27. (by R4) on 1 November 2023, inviting C to a meeting on the pretext that it was a "pipeline catch up", and at the meeting, when C raised concerns in relation to the sexist, racist, and unfair comments made in the workplace, R3 dismissing those concerns, concluding instead that the comments complained of were "at worst a poor attempt at humour" (para 21 GOC1);

7.28. (by R2 and R3), utilising the 1 November 2023 meeting to stifle the concerns C had raised about the working environment, rather than as a pipeline catch up (para 21 GOC1);

608. It is convenient to deal with Issues 7.27 and 7.28 together.

609. The response to these allegations was inadequate and amounted to a detriment.
610. I did not find that this related to sex or was because of sex, for similar reasons given to those above. I adopt the reasoning under “Direct sex discrimination generally” above.

7.29. (by R2 and R3), suggesting to C at the 1 November 2023 meeting that her “output” had dropped, and that she had demonstrated “behaviour that suggests quite explicitly and quite clearly that you have no intention of staying here, long time”, with R2 suggesting that for the rest of the week C worked from home, and C being questioned, for the first time (in approaching four years with R1) about her timekeeping and attendance, notwithstanding that this was common with R1’s staff generally (para 21 GOC1);

611. Dealing first with timekeeping and attendance, this was a common theme being picked up in various messages with various employees, not just the Claimant. The Claimant had occasionally been reminded about timekeeping, including on the occasion of 22 June 2022 when she had (in the view of colleagues) dramatically over-reacted to a “gentle reminder”.
612. It is fair to say that Respondents only started to investigate the Claimant’s attendance in earnest on 3 November 2023 and there had been minimal communication to her about it. As a matter of good management practice, the Claimant’s poor attendance in September/October 2023 ought to have been picked up and managed at the time rather than waiting to November.
613. I find that the Second and Third Respondent had genuinely come to view that the Claimant no longer saw her future working for the First Respondent.
614. I did not find that this related to sex or was because of sex, for similar reasons given to those above. I adopt the reasoning under “Direct sex discrimination generally” above.

7.30. (by R3), at the meeting on 1 November 2023, when C pressed her complaint about concerns she had raised about the working environment, stating “I’m not going to address lumps of stuff” (para 22 GOC1);

615. This allegation is substantially similar to Issues 7.27 and 7.28 above and similar considerations apply.

7.31. (by R4), at the meeting on 1 November 2023, failing to investigate, manage, or otherwise properly deal with concerns restated by C at that meeting (para 22 GOC1), and

616. This allegation is substantially similar to Issues 7.27 and 7.28 above and similar considerations apply.

7.32. (by R3), referring to C’s visa status in an email of 2 November 2023 in the context of agreeing an amicable severance (para 23 GOC1).

617. I did not find that this was a detriment for reasons given under issue 4.19 above.

Second Claim (direct sex discrimination)

7.33. (by all Rs), by treating C as alleged in each of paragraphs 4.20 to 4.26 inclusive above and their sub-paragraphs (paras 23 to 25 GOC2)?

618. The same reasoning applies in relation to detriment as under the complaint of direct race discrimination.

619. I did not find that this related to sex or was because of sex, for similar reasons given to those above. I adopt the reasoning under "Direct sex discrimination generally" above.

8. Did C's dismissal constitute less favourable treatment by R1, and/or R2, and/or R3, and/or R4 on the grounds of her sex?

620. I did not find that this related to sex or was because of sex, for similar reasons given to those above. I adopt the reasoning under "Direct sex discrimination generally" above.

9. C compares herself to a hypothetical male employee.

Harassment - race

621. All allegations of harassment on the grounds of race are made against R1. Where allegations are made against individual Respondents, the same is made clear in the text setting out each allegation.

10. Did R1 and (for the purposes of the First Claim - where identified at paragraphs 4.1 to 4.19 and 7.1 to 7.32 above, and paragraphs 10.1 to 10.7 below) R2, and/or R3, and/or R4 subject C to unwanted conduct related to race which had the purpose or effect of violating C's dignity or creating an intimidating, hostile, degrading, humiliating or offensive environment for her as set out (for the purposes of the First Claim) at paragraphs 4.1 to 4.19 and 7.1 to 7.32 above, and as follows, and/or (for the purposes of the Second Claim) by treating C as alleged at paragraphs 4.25.1, 4.25.6, 4.25.7, 4.25.15 to 4.25.21 (inclusive) and 4.26.5 above (para 26 and 27 GOC2)?

First Claim (harassment race)

10.1. (by R3), calling one of C's colleagues, Euan Shand, "a fascist Nazi" because he had apparently voted for Brexit and reads the Daily Mail (para 16.1 GOC1)

622. This allegation is brought out of time and it was not just and equitable to extend time.

623. Even if true this allegation has nothing to do with the Claimant's race nor anyone else's and appears to be totally without merit.

10.2. (by R2), on the work skiing trip to Zermatt in February 2022, making comments about the skin colour of a colleague, namely [Employee N] (para 16.5 GOC1);

624. This allegation is brought out of time and it was not just and equitable to extend time.

10.3. (by William Poole and therefore R1), on the above work skiing trip, referring to an employee of R1, [Employee N], in the presence of C and other employees of R1 that her "boobs were larger than most Indian chicks" (para 16.5 GOC1);

625. This allegation is brought out of time and it was not just and equitable to extend time.

10.4. (by R2), on 9 December 2022, making remarks about autism with reference to an existing employee of R1 of Chinese heritage, namely Siyu Tuan, commenting to the office, when referring to the employee's boyfriend, that "Quant researchers have yellow fever because their autism makes them too scared to speak with white women so settle for Asians" (para 16.7 GOC1);

626. This allegation is brought out of time and it was not just and equitable to extend time.

10.5. (by R2 and R3), repeatedly voicing frustrations over the speed of response to e-mails from two Greek clients, calling them "useless and lazy Greeks", and (by R2), adding that he would "never hire a Greek because they are always lazy and on vacation" (para 16.12 GOC1) – "

(i) September 2022: The individuals concerned were Client H1 at Client H and Client B1 at Client B.

627. This allegation is brought out of time and it was not just and equitable to extend time.

(ii) May 2023: With reference to several deals with Client B not going through because of the client Client B1, R3 said that he would "never hire a Greek because they are always lazy and on vacation".

628. These allegations were brought out of time and it was not just and equitable to extend time.

10.6. (by R2), mimicking accents after interacting with East Asian clients, by referring to a Japanese candidate in September 2023 with the phrase "ching chang chong" (para 16.13 GOC1);

629. I accept Mr Stovell's version of event, that he was mimicking a character from a film whom he saw as having a similar accent to a candidate. I also accepted

his evidence that he had a habit of mimicking people generally irrespective of race.

630. I do not find that this was discriminatory treatment of the Claimant because of race.
631. As to harassment, the Claimant has not succeeded in establishing the factual basis of her claim which is that Mr Stovell said “Ching Chang Chong” i.e. a crude caricature of East Asian language. Mr Stovell has admitted impersonating a character from a film.
632. I have wrestled with the question of whether the admitted conduct is close enough to the allegation brought to mean the basis of a complaint of harassment is made out. A Tribunal should not stick slavishly to a list of issues, particularly where it appears that the list may not have properly captured the claim set out in the Particulars of Claim. It is not for the Tribunal itself to modify the pleaded allegation brought so as to make it fit the facts found however. The pleaded allegation was that the Second Respondent Mr Stovell referred to a Japanese candidate with the phrase “ching chang chong”. My finding is that he did not say that. The Claimant has been represented and there is no application to amend. It follows that the claim does not succeed in relation to this allegation.
633. Purely by way of a comment, the mimicking of accents in this way was unprofessional. While the Claimant herself was not Japanese, I accept that she found this offensive. She was of different ethnic heritage and different nationality to Mr Stovell and was at times sensitive to disrespectful conduct towards other cultures. (I note that this was not always the case, given that the Claimant was dismissive and even amused when Employee N felt she had been discriminated against).
634. Even on Mr Stovell’s account this impersonation of a film character prompted by a Japanese candidate was something that happened over a period of time. This was not appropriate conduct. It was made worse because this was an office in which Mr Stovell in a leadership and authority position.

10.7. (by R2, and by William Poole and therefore R1), engaging in a racist oral exchange, lampooning [Employee N], stating that she was “*fucking terrible*” to number of colleagues in October to December 2022 just after her departure, and saying to the office, on 28 October 2022, when interviewing a new recruit [redacted] who was of half Indian and half English descent after [Employee N]’s resignation “*out with 1 Indian, Hire another*”, and that “*half is enough*” for R1’s “*quota*” (para 16.19 GOC1);

635. This allegation is out of time and I have not found it just and equitable to extend time.

Second Claim

10.8. By treating C as alleged at paragraphs 4.25.1, 4.25.6, 4.25.7, 4.25.15 to 4.25.21 (inclusive) and 4.26.5 above (para 26 and 27 GOC2).

636. This is dealt with above. I did not find any of this conduct was “relating to” the Claimant’s race. I considered and dismissed the possibility that this was a failure to deal with allegations of race harassment which was itself harassment per Nailard.

637. The format {4.25.1} used here and elsewhere is used here to denote allegations dealt with earlier which are being pursued by the Claimant in the alternative under a different heads of claim.

{4.25.1.} exonerating William Poole in relation to the allegations of race and sex discrimination which had been made against him, including misogyny

{4.25.6.} dismissing C’s allegation that her complaints about William Poole were trivialised and not properly addressed (para 21.11, GOC2);

{4.25.7.} finding merely that Mr Poole had “made some comments which are inappropriate in the workplace”, the sanction for which was “(making) clear to him that such behaviour is not acceptable ...” and that: “As for Will Poole’s conduct in Madrid in May, I agree that he made inappropriate comments, and I spoke to him about this the day after you told me about them and told him this behaviour was unacceptable”

{4.25.7.} finding merely that Mr Poole had “made some comments which are inappropriate in the workplace”, the sanction for which was “(making) clear to him that such behaviour is not acceptable ...” and that: “As for Will Poole’s conduct in Madrid in May, I agree that he made inappropriate comments, and I spoke to

him about this the day after you told me about them and told him this behaviour was unacceptable”

{4.25.15.} rejecting C’s complaint of a campaign of harassment, victimisation and bullying for having raised allegations of sexist and racist conduct

{4.25.16.} finding that Mr Poole carried a topless photo of his wife which he said fell out accidentally, and there was no evidence he was lying (para 21.22, GOC2);

4.25.17. accepting Mr Poole’s account at face value but dismissing C’s account despite the fact that she repeatedly provided evidence to back up her complaints (para 21.23, GOC2);

{4.25.18.} finding that there was “no evidence” that Mr Poole obsessed over C’s dating life or asked her inappropriate questions (para 21.24, GOC2);

{4.25.19.} finding that there was no suggestion that R1 was “looking to hire a ‘top shagger’” despite the finding that R2 had used that term (para 21.25, GOC2);

{4.25.20.} falsely finding that C had not raised with R3 issues of inappropriate misogynist and racist language used by employees (para 21.26, GOC2);

{4.25.21.} finding that Mr Poole’s comments in Madrid in May 2023 were made “in the course of a light-hearted and jokey relationship with you” and “did not upset you at the time ...” (para 21.27, GOC2);

Harassment – sex

638. All allegations of harassment on the grounds of race are made against R1. Where allegations are made against individual Respondents, the same is made clear in the text setting out each allegation.

11. Did R1 and (for the purposes of the First Claim - where identified at paragraphs 4.1 to 4.19 and 7.1 to 7.32 above, and paragraphs 11.1 and 11.2 below), R2, and/or R3, and/or R4 subject C to unwanted conduct related to sex which had the purpose or effect of violating C’s dignity or creating an intimidating, hostile, degrading, humiliating or offensive environment for her as set out (for the purposes of the First Claim) at paragraphs 4.1 to 4.19 and 7.1 to 7.32 above, and as follows, and/or (for the purposes of the Second Claim) by treating C as alleged at paragraphs 4.25.1, 4.25.6, 4.25.7, 4.25.15 to 4.25.21 (inclusive) and 4.26.5 above (para 26 and 27 GOC2)?

First Claim (harassment – sex)

11.1. (by R2), in March 2021 referring to Euan Shand as “one of the girls” because, instead of engaging in sexist banter or looking at the pornographic

images, Mr Shand preferred to go for coffee with certain female employees (para 16.2 GOC1);

639. This allegation is brought out of time and it is not just and equitable to extend time.

11.2. (by William Poole and therefore R1), on a work skiing trip to Zermatt in February 2022, referring to an employee of R1, [Employee N], stating in the presence of C and other employees of R1 that her “boobs were larger than most Indian chicks”, and further that he “found pregnant women sexy” (para 16.5 GOC1).

640. This allegation is brought out of time and it is not just and equitable to extend time.

Second Claim

11.3. (by all Rs) by treating C as alleged above at paragraphs 4.25.1, 4.25.6, 4.25.7, 4.25.15 to 4.25.21 (inclusive) and 4.26.5 (para 26 and 27 GOC2)?

641. I did not find any of this conduct was “relating to” the Claimant’s sex. I considered and dismissed the possibility that this was a failure to deal with allegations of sex harassment which was itself harassment per Nailard.

Victimisation

12. Did the following matters occur, and did they constitute protected acts within the meaning of s.27(2)(d) of the EqA (“**protected acts**”), in particular, in each case did C make an allegation (whether or not express) that a person had contravened the EqA (s.27(2)(d) of EqA,); and/or was she “doing any other thing for the purposes of or in connection with” the EqA (s.27(2)(c) of EqA):

First Claim (victimisation)

12.1. C sending a text message to R4 on 7 June 2023 to see whether she (R4) was in the office to meet with R4 to again raise the issues she had raised with R3 on 30 May 2023, and which related to alleged sexist and racist behaviour in the workplace. This was followed by a telephone call on 7 June 2023, during which C told R4 that William Poole made a “*lactating*” comment, showed intimate photos of his wife, made an “*unmarriageable*” comment in Madrid, was behaving inappropriately by holding hands with junior employees, and being obsessed with the breasts of women in the office (paras 16.11 and 36.1 GOC1);

642. I find that this **was a protected act**.

643. The Claimant raised the “lactating” allegation among others was an allegation of harassment relating to sex.

12.2. C raising a complaint with R2 and R3 on 15 September 2023 that R2 had abused C during a phone call that day (C having been raising issues concerning sexist and racist behaviour within the workplace) (paras. 18 and 19 GOC1);

644. Based on the wording of the email sent by the Claimant on 15 September 2023 this was **not a protected act**.

12.3. During the meeting on 1 November 2023, C again raising with R2, R3 and R4, concerns in relation to sexist, racist, and unfair comments made in the workplace (Paras 21 and 36.3 GOC1);

645. The Claimant’s complaints in the meeting on 1 November 2023 included various allegations of harassment and/or discrimination

646. It is submitted by the Respondents that much of what the Claimant said on 1 November 2023 were false and made in bad faith to deflect attention from her wrongdoing.

647. It is right to say that the Claimant did want to deflect attention from her conduct and wanted to talk about her allegations harassment and discriminatory and harassment. She was defensive. Some of the allegations were described in somewhat exaggerated terms. I did not find that the Claimant was consciously lying or deliberately attempting to mislead. There was a factual basis to the matters raised. She was genuinely upset about her treatment. This was not a “bad faith” disclosure such as to disqualify this as a protected act by operation of section 27(3).

648. This **was a protected act**.

Second Claim

ADMITTED PROTECTED ACTS

12.4. It is admitted by Rs that C's grievance of 3 November 2023 constituted a protected act. (Paras 24 and 36.4 GOC1 and 76 GOR1).

12.5. It is admitted by Rs that C's appeal against dismissal of 9 November 2023 constituted a protected act (paras 28.5 GOC2 & 55.2 GOR2).

12.6. It is admitted by Rs that C's First Claim constituted a protected act (paras 28.6 GOC2 & 55.2 GOR2).

VICTIMISATION DETRIMENTS

13. Did R1, and/or R2, and/or R3, and/or R4 victimise C, contrary to s.27(1) of the EqA by subjecting her to any of the following alleged detriments because she had done a protected act as set out above at paragraphs 12.1 to 12.4.

13.1.1. any of the matters set out (for the purposes of the First Claim) at Issues 4.10, 4.11, 4.12, 4.13, 4.14, 4.15, 4.16, 4.17, 4.18, 4.19, 7.15, 7.19, 7.20, 7.22, 7.23, 7.24, 7.25, 7.26, 7.27, 7.28, 7.29, 7.30, 7.31, and 7.32 set out above, and/or

649. Some similar considerations apply to the allegations 4.10-4.13 since they all happened in September 2023 and similar considerations apply.

{4.10} -(by R2), during a telephone call with C on 15 September 2023, being verbally abusive; enquiring of her why she thought she was entitled to have an opinion, and raising his voice to say that her opinions "were irrelevant" not only to him and (R3) "but to anyone in the industry" (para 18 GOC1)

650. This incident was over two months since the first protected act, which had been made to Ms Butterworth not to Mr Stovell. The reporting line had changed and matters had to some extent settled down since then. Mr Stovell clearly felt that the Claimant was not engaging with the task of work for Client 1.

651. For these reasons and those set out at 4.10 above I did not find that this was victimisation

{4.11} (by R4), following the making of a complaint by C about the 15 September 2023 telephone call, failing to take steps to address C's complaint, thereby condoning the behaviour of R2 and R3 (para 19 GOC1);

652. Similar considerations apply as to 4.9 and 4.11 above.

653. Again this was over two months after the first protected act. Ms Butterworth dealt with the fall out from the 15 September 2023 telephone call sensitively and appropriately. I did not find that this was victimisation.

{4.12} - (by R3) deciding unilaterally and without obtaining C's consent to record a meeting between C, R2, R3 and R4 on 20 September 2023 on his mobile phone (para 20 GOC1);

654. The factual basis for this allegation is not made out.

{4.13} - (by R2, R3 and R4), treating C in a hostile manner at the meeting on 20 September 2023 by C being prohibited from going for coffee with more junior colleagues, in an attempt to isolate her (para 20 GOC1)

655. Similar considerations as per allegations 4.9 and 4.13 apply.

656. Again this was over two months since the first protected act. I did not find that this was victimisation.

ALLEGATIONS RELATING TO MEETING ON 1 NOVEMBER 2023

657. There are a series of allegations about the 1 November 2023 meeting. There are similar and overlapping considerations. I have not attempted to repeat the reasoning for each issue in full.

{4.14} - (by R4) on 1 November 2023, inviting C to a meeting on the pretext that it was a "pipeline catch up", and at the meeting, when C raised concerns in relation to the sexist, racist, and unfair comments made in the workplace, R3 dismissing those concerns as "at worst a poor attempt at humour" (para 21 GOC1);

658. Although it would have been better practice to give the Claimant some advance notice of the concerns being discussed, I do not find that this was an act of victimisation, since the previous protected act was back on 7 June 2023. I did not find that the Fourth Respondent was reacting to matters raised nearly five months earlier.

659. As to the response, the Third Respondent did believe that the Claimant was simply deflecting from the points that he and the Second Respondent had intended to raise in this meeting. From his perspective, he was trying to keep the meeting on track.

{4.15} - (by R2 and R3), utilising the 1 November 2023 meeting to stifle concerns C had raised about the working environment, rather than as a pipeline catch up (para 21 GOC1);

660. Similar considerations apply as to the second part of the allegation immediately above this one. The Second and Third Respondent felt that the Claimant was deflecting from the points that they had prepared to discuss with her.

{4.16} (by R2 and R3), suggesting to C at the 1 November 2023 meeting that her "output" had dropped, and that she had demonstrated "behaviour that suggests quite explicitly and quite clearly that you have no intention of staying here, long time", with R2 suggesting that for the rest of the week C work from home, and C being

questioned for the first time about her timekeeping and attendance, notwithstanding that this was common with R1's staff generally (para 21 GOC1);

661. I find that all of the matters raised in this allegation were matters that the Second and Third Respondents had intended to raise in this meeting on 1 November before the Claimant made her allegations in the meeting itself which were a protected act.

662. I do not find that these matters were raised because of a protected act.

{4.17} (by R3), at the meeting on 1 November 2023, when C pressed her complaint in relation to the concerns, she had raised about the working environment, stating "I'm not going to address lumps of stuff" (para 22 GOC1);

663. The Third Respondent did believe that the Claimant was simply deflecting from the points that he and the Second Respondent had intended to raise in this meeting. He had not prepared to deal nor did he intend to deal with these allegations.

{4.18} (by R4), at the meeting on 1 November 2023, failing to investigate, manage, or otherwise properly deal with the concerns restated by C at that meeting (para 22 GOC1), and

664. The Respondents generally did fail to investigate, manage, or otherwise properly deal with the concerns

665. In the meeting on 1 November 2023 the Fourth Respondent Ms Butterworth was not in control of events. The Second and Third Respondents were in reality in control.

666. She was not running the meeting, and by the time of the end of it, or at least shortly afterward at lunch a decision crystallised to dismiss the Claimant. In short the Fourth Respondent did not have time to investigate, manage or otherwise properly deal with the concerns raised at the meeting.

{4.19} (by R3), referring to C's visa status in an email of 2 November 2023 in the context of agreeing an amicable severance (para 23 GOC1).

667. The reasoning for 4.19 above is repeated. This was not a detriment.

{7.15} (by R4), C having approached R4 on 7 June 2023 to raise concerns about the culture of R1, failing to provide follow-up or support to C (para 16.11 GOC1);

668. The reasoning for 7.15 above is repeated. This was not a detriment.

{7.19} (by R2 and R3), normalising the sexist and otherwise abusive culture within R1 (para 16.21 GOC1).

669. The Claimant's complaints were not a cause of the alleged culture but a reaction to it. Reasoning for 7.19 above applies.

{7.20} (by R2, R3 and R4), failing to deal with the above issues when they were raised by C on 7 June 2023 to R4, on 15 September 2023 to R2 and R3 [subject to C providing marked up amended Grounds of Claim], at the meeting of 1 November 2023 and in the 3 November 2023 grievance (paras 16.22, 17 and 36 GOC1);

670. The alleged detriment is dealt with above under Issue 4.9. In short, there was a failure to deal with the matters raised on 1 and 3 November 2023, but not the earlier matters. This was a detriment.
671. I reiterate that the Second and Third Respondents were in control of the process, whereas the Fourth Respondent was not. It might be argued that she should have been given her responsibility for HR matters, but the reality was that the Second and Third Respondents as Partners were in control.
672. Although the grievance was subsequently dealt with, this was after the decision to dismiss had been taken and in practical terms was too late to save the Claimant's employment with the First Respondent since there was no genuinely independent appeal.
673. While the Second and Third Respondents felt that the Claimant was simply deflecting from the serious concerns they had about her conduct, I find that to a material extent they were influenced by content of the protected act, which comprised serious allegations in part directed at the Second and Third Respondents personally or certainly in relation to matters under their responsibility. This was in part an unwelcome reiteration of the earlier protected act of 7 June 2023.
674. The approach of the Second and Third Respondents to proceed to dismissal rather than deal with this grievance is dealt with in more detail under Issue 13.1.2 below. The meeting did not go well because of the allegations made by the Claimant in it. This significantly influenced the approach taken.
675. **I find that the failure to deal with the allegations raised on 1 November and in the grievance of 3 November was an act of victimisation.**

{7.22} (by R2 and R3) not considering C for promotion, (a) generally; (b) by R3 stating, at the meeting on 30 May 2023 referred to at Issues 7.14 above and 12.1 below, that C's reaction to William Poole's sexist comments towards her amounted to evidence that she should not be promoted as she was being "immature" reacting the way she did, and (c) (by R2), stating in or around 19 June 2023 that she was "not being considered for a promotion because she is quite frankly volatile and immature" (para 17 GOC1);

676. The reasoning at 7.22 above applies as to the wider context.
677. The first protected act alleged was on 7 June 2023 and logically cannot have been the cause of conduct on 30 May 2023, so (b) cannot succeed.
678. The explanation for this treatment, in particular in relation to promotion to Director and maturity was referable to a longer history, pre-dating protected acts and no more than trivially because of protected acts. The Claimant's own

conduct in Madrid in May 2023 made promotion in the short term extremely unlikely.

{7.23} (by R2), during a telephone call with C on 15 September 2023, being verbally abusive, enquiring of her why she thought she was entitled to have an opinion, and raising his voice to say that her opinions “were irrelevant” not only to him and (R3) “but to anyone in the industry” (para 18 GOC1);

679. The reasoning at 7.23 above applies as to the specific context.

680. I did not find that a material cause of this blow up by Mr Stovell on 15 September 2023 was the content of a communication over two months earlier to Ms Butterworth on 7 June 2023. Matters had moved on.

{7.24} (by R4), following the making of a complaint by C about the 15 September 2023 telephone call, failing to take steps to address C’s complaint, thereby condoning the behaviour of R2 and R3 (para 19 GOC1);

681. I did not accept that there was a failure. See 7.24 above.

682. In any event I did not find that a material cause of Ms Butterworth’s approach on 15 September 2023 was the content of a communication over two months earlier to her on 7 June 2023.

{7.25} (by R3), deciding unilaterally and without obtaining C’s consent to record a meeting between C, R2, R3 and R4 on 20 September 2023 on his mobile phone (para 20 GOC1);

683. The factual basis for this allegation is not made out.

{7.26} (by R2, R3 and R4), treating C in a hostile manner at the meeting on 20 September 2023 by C being prohibited from going for coffee with more junior colleagues, in an attempt to isolate her (para 20 GOC1);

684. See 4.13 above.

685. In any event I did not find a material cause the content of a communication over two months earlier to her on 7 June 2023.

{7.27} (by R4) on 1 November 2023, inviting C to a meeting on the pretext that it was a “pipeline catch up”, and at the meeting, when C raised concerns in relation to the sexist, racist, and unfair comments made in the workplace, R3 dismissing those concerns, concluding instead that the comments complained of were “at worst a poor attempt at humour” (para 21 GOC1);

686. This is a repetition of {4.14} above.

{7.28} (by R2 and R3), utilising the 1 November 2023 meeting to stifle the concerns C had raised about the working environment, rather than as a pipeline catch up (para 21 GOC1);

687. This is a repetition of {4.15} above.

{7.29} (by R2 and R3), suggesting to C at the 1 November 2023 meeting that her “output” had dropped, and that she had demonstrated “behaviour that suggests quite explicitly and quite clearly that you have no intention of staying here, long time”, with R2 suggesting that for the rest of the week C worked from home, and C being questioned, for the first time (in approaching four years with R1) about her timekeeping and attendance, notwithstanding that this was common with R1’s staff generally (para 21 GOC1);

688. This is a repetition of {4.16} above.

{7.30} (by R3), at the meeting on 1 November 2023, when C pressed her complaint about concerns she had raised about the working environment, stating “I’m not going to address lumps of stuff” (para 22 GOC1);

689. This is repetition of {4.17} above.

{7.31} (by R4), at the meeting on 1 November 2023, failing to investigate, manage, or otherwise properly deal with concerns restated by C at that meeting (para 22 GOC1), and

690. This is repetition of {4.18} above.

{7.32} (by R3), referring to C’s visa status in an email of 2 November 2023 in the context of agreeing an amicable severance (para 23 GOC1).

691. This is repetition of {4.19} above.

DISMISSAL AS VICTIMISATION

13.1.2. dismissing C?

692. I found on the balance of probabilities that the Respondents decided to dismiss the Claimant in the Moshi Moshi restaurant on 1 November 2023, following the meeting earlier that day. Although there had been references in the meeting to picking up the conversation the following Monday (6 November), the meeting had not gone very well such that there was a “different thought process” (Ms Butterworth’s evidence). The Second and Third Respondents decided that the Claimant’s employment would be terminated, a conclusion supported by the Fourth Respondent.

693. I do find that the allegations of discrimination clearly articulated by the Claimant in the meeting on the morning of 1 November 2023 did materially contribute to the decision to dismiss that crystallised that afternoon over lunch. The Claimant was continuing to reiterate matters raised by her in an earlier protected act on 7 June 2023.

694. I have read the whole transcript of this meeting. The Respondents wished to deliver some tough messages to the Claimant in this meeting, but at the outset of this meeting dismissal was not a foregone conclusion. I find they went into this with doubts about the Claimant’s future employment and whether or not

she wanted to continue working for them. Mr Williams was explicit that if they were completely wrong about the Claimant not wanting to work there, they could talk about this on Monday. I find that the Second and Third Respondent initially hoped that the Claimant would reflect and agree that things were not working out and there would be an amicable discussion about parting of the ways. There was not however a settled intention to dismiss.

695. The Claimant stated repeatedly in the meeting that she wanted to work at the First Respondent. That was her response to the concern that she did not want to work there. Had the Claimant been contrite, and indicated that she had taken the Second and Third Respondents' points on board, and not reiterated her earlier allegations of discrimination or harassment, my finding is that on the balance of probabilities there would have been no dismissal on 6 November 2023. The Claimant, albeit with a recent period of aberration, had been a highly successful recruiter for the business for four years. Matters such as lateness or some recent unexplained absence would most likely have been managed with a warning.

"Separability"

696. The Respondents argue there are features of the protected act that were probably separable from the content of it, such that the reality was that the dismissal was in response to something other than the content of the protected act. It is submitted that (i) the Claimant had an unacceptable style of interaction, repeatedly re-raised complaints that had been previously addressed and/or raised matters to deflect rather than address concerns about her own behaviour rather than addressing them, and/or (ii) the way in which she was making complaints made her completely unmanageable or (iii) the fact that C did not respond to an invitation to discuss settlement, but raised a grievance indicated that she would not be engaging in settlement discussions.
697. I have considered the caselaw, including the guidance of Underhill P in **Martin v Devonshires** [2011] ICR 352 that a Tribunal should
- "be slow to recognise a distinction between the complaint and the way it is made save in clear cases"
698. I do not find that this is such a clear case. The Claimant had never pursued a formal grievance before in relation to the matters she complained of. She continued to believe that there was a discriminatory environment which was affecting her ability to achieve a promotion to Director. While she was raising matters in response to points that were being raised with her, she was evidently feeling defensive in circumstances where she had never been subject to any formal or informal performance, nor any conduct process, but nevertheless was being faced with a discussion in which her employer was contemplating the termination of her employment without any prior warning. If her employer considered that her conduct in recent months leading up to 1 November had been difficult to manage, that was legitimate matter for management intervention, but that difficulty was not a part of the content of the Claimant's protected act.

699. As to the suggestion that the way in which the Claimant was making complaints made her completely unmanageable, that overstates the situation. The Claimant had complained to Luke Williams on 30 May 2023 in the aftermath of the Madrid trip at which she had been subject to some inappropriate treatment by Mr Poole, including harassment. She had the conversation with Ms Butterworth on 7 June 2023. Mr Poole had been spoken to and the reporting line changed.
700. The next development of real significance was the Candidate 1 row on 28 June, in which the Claimant felt that her candidate had been handed to her “sexual abuser”.
701. A further 2 ½ months later, the Claimant raising that she was unhappy about the way that Mr Stovell spoke to her on 15 September 2023. In the circumstances in which he had become angry with her on the telephone, that was not unreasonable. Thereafter the next complaint was precipitated by the meeting on 1 November 2023 in which the Claimant felt, with some justification, that she had been ambushed. This was not a mere pipeline catch up.
702. The point about the Claimant raising a grievance rather than discussing settlement is not relevant based on the findings I have made, since the decision to dismiss had already been made (although not communicated to the Claimant) by the time of the grievance on 3 November.

Conclusion on victimisation dismissal claim

703. What happened on 1 November 2023 is that the Claimant continued to reiterate her allegations of discrimination, some of which were directed personally at Mr Stovell, some at Mr Poole, who was a friend of his and some at Mr Williams. Mr Williams and Mr Stovell came to the conclusion that the Claimant was unmanageable and that they needed to dismiss her. Ms Butterworth agreed with the conclusion.
704. The Claimant continuing to reiterate allegations of discrimination/harassment was not the only factor, but it was a significant factor in Second and Third Respondents’ decision on 1 November that her employment was going to be terminated.
705. Some of the reasons put forward for the dismissal included matters that were flimsy and significantly historic as of November 2023 and would not have been considered had it not been for the Claimant making a protected act in the meeting on one November 2023. In essence the Respondents were seeking to justify dismissal.
706. The complaint of dismissal as victimisation succeeds.

ALLEGED DETRIMENTAL TREATMENT IN APPEAL PROCESS

707. The following allegations have a common theme of being alleged detriments during the appeal process.

14. Did R1, and/or R2, and/or R3, and/or R4 victimise C, contrary to s.27(1) of the EqA by subjecting her to any of the following alleged detriments because she had done a protected act as set out above at paragraphs 12.1 to 12.6 by treating her as alleged in each of paragraphs 4.20 to 4.26 inclusive above and their sub- paragraphs (paras 29 to 30 GOC2)

{4.20} (by all Rs), causing or permitting R3 to conduct C's dismissal appeal (para 21.1 GOC2);

708. The Claimant reasonably regarded this as a detriment. It is difficult to see how the Third Respondent could possibly provide an independent view of his own decision to dismiss.
709. It is fair to say that the Respondents had limited options. The dismissal appeal outcome letter noted the fact of it being a small company with a limited number of senior personnel.
710. It would be unorthodox to have Mr Williams' decision being reviewed by someone less senior.
711. Even if an independent consultant had been used to carry out an appeal investigation, ultimately they could only produce a recommendation which would have to be scrutinised and adopted or rejected by Mr Williams and or Mr Stovell.
712. That only left Mr Stovell. Judging by the history Mr Stovell if anything had a more negative view of the Claimant than Mr Williams. He might have a different pair of eyes but it will be difficult to see how this would be an independent decision since the decision to dismiss was jointly his, albeit it was not his name on the letter.
713. Ultimately I concluded that although in practical terms the Claimant was denied an independent appeal, it was the circumstances and limited options in a small organisation rather than the making of her protected act that was the reason for it.

{4.21} (by all Rs), prior to the hearing on 12 December 2023, exerting pressure on Siyu Tian and Theo Williams not to be involved as witnesses in C's grievance or appeal (para 21.2 GOC2);

714. I did not find that this allegation was made out.

{4.22} (by all Rs), on 12 December 2023, giving C an ultimatum that the hearing would either be conducted by R3 and with R3 in the presence of a solicitor for R1 or be postponed until an unspecified date the following year (para 21.3 GOC2);

715. As above under 4.22 above, this was not much an "ultimatum" as a choice between two unpalatable options seen from the Claimant's perspective.
716. I accepted that the circumstances were caused by a professional typist being unexpectedly unavailable. This was the reason for this situation rather than the Claimant's protected acts.

{4.23} (by all Rs), on 12 December 2023, criticising C's performance without identifying the KPIs she had not met and contrary to clear evidence of C's high level of performance (para 21.4, GOC2);

717. As stated at 4.23 above, I did not form the conclusion that there had been a failure to enable the Claimant to understand the performance matters that were the Respondents' concern.

{4.24} (by all Rs), on 12 December 2023, ignoring a table of placed candidates C provided (para 21.5, GOC2);

718. See 4.23 and 4.24 above.

{4.25.} (by all Rs), on 25 January 2024, in the dismissal appeal outcome:

{4.25.1} exonerating William Poole in relation to the allegations of race and sex discrimination which had been made against him, including misogyny (para 21.6, GOC2);

719. I do not find that the dismissal appeal outcome exonerated William Poole. In his outcome letter Mr Williams wrote:

"I am grateful that you brought the allegations of sexual harassment by Will to our attention so that we can address them. For the reasons explained further below, while the situation was not entirely as you describe, I consider that Will made some comments which are inappropriate in the workplace. I made clear to him that such behaviour is not acceptable the day after you raised them with me. We also changed your reporting line so that you would no longer report to him and we placed you in a separate team..."

720. This detriment is not established.

{4.25.2} suggesting that the meeting between Rs and C on 1 November 2023 was intended to be the start of a formal process "since all informal efforts had failed", notwithstanding that there had been no such informal efforts, and notwithstanding that the Fourth Respondent had told the Claimant that the purpose of the 1 November 2023 meeting was intended to be a "pipeline catchup" (para 21.7, GOC2);

721. The Respondents felt that they had been trying and failing informally to manage the Claimant. This had not been successful. I find that this was their genuine belief and interpretation of events and do not find that this was a detriment.

{4.25.3} falsely alleging that, at the 1 November 2023 meeting, C had reacted antagonistically and so badly that there was no prospect of her engaging with Rs at all, and that "the Claimant's comments at that meeting amounted to an 'antagonistic reaction'" (para 21.8, GOC2);

722. Whether the Claimant's reaction was antagonistic (rather than simply "forthright" as Mr Gilroy has it) and whether there was no prospect of her engaging is really a matter of interpretation and opinion rather than of fact. The Claimant was fairly uncompromising in that meeting and was raising some very

serious allegations which were not going to make the future relationships with Second and Third Respondents easy after this meeting.

723. I find that Mr Williams did genuinely have the view that the Claimant was antagonistic at the meeting on 1 November 2023 and that there was no prospect of her engaging. That was his perspective. This is not a situation in which Mr Williams was falsely stating an opinion that he did not hold.

724. This allegation does not succeed.

{4.25.4} falsely claiming that the dismissal decision had been made prior to receiving C's grievance on 3 November 2023 (the "**Grievance**") (para 21.9, GOC2);

725. The dismissal decision had been made prior to 3 November. This allegation does not succeed.

{4.25.5} falsely claiming that the Grievance had had no bearing on the dismissal (para 21.10, GOC2);

726. The dismissal decision had been made prior to 3 November. This allegation does not succeed.

{4.25.6} dismissing C's allegation that her complaints about William Poole were trivialised and not properly addressed (para 21.11, GOC2);

{4.25.7} finding merely that Mr Poole had "made some comments which are inappropriate in the workplace", the sanction for which was "(making) clear to him that such behaviour is not acceptable ..." and that: "As for Will Poole's conduct in Madrid in May, I agree that he made inappropriate comments, and I spoke to him about this the day after you told me about them and told him this behaviour was unacceptable" (para 21.12,21.21 GOC2);

{4.25.8} falsely claiming that it was as a result of the Claimant's complaints about William Poole's behaviour that her reporting line had been changed so that she would no longer report to him (para 21.13, GOC2);

727. It is convenient to deal with all three of these overlapping allegations together.

728. Action had been taken following the Claimant's complaints about William Poole.

729. The Claimant denies, contrary to the evidence, that she reported to Mr Poole. She therefore wrongly places no significance on the change in the reporting line which took the most successful senior associate in the First Respondent business out of Mr Poole's area of responsibility. That, together with verbal admonishment by Mr Williams amounted to a form of sanction.

730. Mr Williams was entitled to state the facts in this regard.

731. None of these allegations amount to a detriment.

{4.25.9} finding wrongly that C's behaviour had caused "substantial disruption to the business... a corrosive environment and an atmosphere which discourages

colleagues from working, which destroys their morale and undermines management” (para 21.14, GOC2);

732. Mr Williams was entitled to come to this conclusion, which I find was supported by evidence.

733. I do not find that this was because of the protected acts.

{4.25.10} failing to uphold the Claimant’s contention that the purported reasons given for her dismissal were based on allegations which were either vague or untrue or where the facts had been twisted to justify her dismissal (para 21.15, GOC2);

734. This allegation substantially overlaps with issue 4.25.22 below and adds nothing to it. That allegation succeeds for reasons given below.

{4.25.11} rejecting C’s contention that she had been singled out for alleged poor timekeeping and absenteeism (para 21.16, GOC2);

735. I find that by the time of the appeal the Third Respondents genuinely believed that the Claimant had, particularly recently, exhibited poor timekeeping and absenteeism. This explains his position.

{4.25.12} dismissing C’s claim that the allegations against her, that she had been “disruptive in the office” and of her making “unacceptable comments to other colleagues” had never been made against her prior to her dismissal, and further that details in purported support of those allegations were only obtained and/or solicited after her dismissal in an attempt to justify her dismissal (para 21.17, GOC2);

736. This allegation substantially **overlaps with the successful allegation 4.25.22 below.**

737. The Claimant’s ground of appeal number 6 that the allegations had never been made against her prior to her dismissal and evidence only obtained after her dismissal were strong arguments. There was no proper investigation prior to dismissal. This ground of appeal was dismissed in the disciplinary appeal letter without any real credit given to the obvious procedural unfairness to the Claimant.

738. The reality I find was the Third Respondent had no intention of allowing ground 6 of the grounds of appeal, nor the appeal generally and that was in part because of the protected act on 1 November 2023.

{4.25.13} making findings adverse to C on flimsy evidence which she had had no opportunity to address (para 21.18, GOC2);

739. The basis for the dismissal on 6 November 2023 was flimsy evidence which had been cobbled together.

740. I do not understand that that is the basis for this allegation. Referring back to the Grounds of Complaint paragraph 21.18, I understand that this allegation relates to the appeal.

741. Turning to the appeal, the Claimant was able to attend the disciplinary appeal hearing, she was sent a bundle of documents and submitted her own bundle of documents. The quality of the evidence against the Claimant was somewhat patchy. She was however able to make the points she wished to in that hearing. I do not find that the Claimant had no opportunity to address the evidence against her.

742. This allegation is not made out.

{4.25.14} whilst acknowledging that the Claimant had “not been subject to formal procedures”, wrongfully and falsely asserting that “these issues (or similar issues) had been raised with you previously” (para 21.19, GOC2);

743. There had been some attempts to address the Claimant’s behaviour, specifically conversation with Luke Williams after Madrid on 30 May 2023, the meeting with the individual Respondents on 20 September 2023, together with Ms Butterworth’s email follow-up after that meeting.

744. I do not find that his allegation is made out.

{4.25.15} rejecting C’s complaint of a campaign of harassment, victimisation and bullying for having raised allegations of sexist and racist conduct (para 21.20, GOC2);

745. It does not follow that rejection of a complaint of harassment or victimisation amounts to victimisation. The Tribunal is often faced with a somewhat circular argument that because an allegation containing a protected act has been raised and rejected in an internal process that amounts to detrimental treatment since it is a consequence of the protected act.

746. I have to analyse the reason why, bearing in mind that it is open to a manager hearing a matter in an internal process to come to different conclusions on the evidence. In this case Mr Williams simply did not accept the Claimant’s contention that there was a campaign of harassment, victimisation and bullying against her. He was entitled to come to that conclusion, notwithstanding the other criticisms I make about the fairness of the process. It was difficult for him to make a neutral assessment about the allegations directed at him personally, but I find that he did not find evidence of such a campaign.

747. I did not find that this detriment was made out.

{4.25.16} finding that Mr Poole carried a topless photo of his wife which he said fell out accidentally, and there was no evidence he was lying (para 21.22, GOC2);

748. As to the conclusion that Mr Poole’s photo fell out accidentally and there was no evidence he was lying about this, Mr Poole himself said it was an accident. It is unclear to me what evidence specifically would suggest that he was lying about it.

749. (It is not relevant to the finding in the internal process, but the evidence of other witnesses, including the Claimant's own witnesses in the Tribunal gave evidence that to some extent supported that it was an accident.)

750. I do not find that this was a detriment. It was a conclusion open to Mr Williams.

{4.25.17} accepting Mr Poole's account at face value but dismissing C's account despite the fact that she repeatedly provided evidence to back up her complaints (para 21.23, GOC2);

751. The Claimant submits that each and every item of complaint in relation to Will Poole was simply and roundly dismissed. That is not accurate.

752. Mr Poole had been spoken to about his inappropriate conduct in saying which had lead to the Claimant no longer reporting to him. This is mentioned in the appeal outcome letter.

753. The investigation found that he had referred to women as "birds".

754. There were some allegations where Mr Williams preferred Mr Poole's evidence which he was entitled to do.

755. I did not find that this allegation is made out.

{4.25.18} finding that there was "no evidence" that Mr Poole obsessed over C's dating life or asked her inappropriate questions (para 21.24, GOC2);

756. It is unclear to me what evidence there was that Mr Williams ignored that Mr Poole obsessed over the Claimant's dating life or asked her inappropriate questions.

757. Some inappropriate remarks had been made in Madrid and acknowledged by Mr Williams. Those comments did not relate to the Claimant's dating life.

758. I do not find this allegation is made out.

{4.25.19} finding that there was no suggestion that R1 was "looking to hire a 'top shagger'" despite the finding that R2 had used that term (para 21.25, GOC2);

759. The grievance outcome letter of 25 January 2024 contained this conclusion:

there was no suggestion that Lascaux was looking to hire a "top shagger", but Luke Stovell did use the term on one occasion in jest in an imitation of Mungo Luke Stovell has been remind not to use terms that might be offensive to some people.

760. This conclusion contains a tacit acceptance that this was terminology that was offensive to some people.

761. Essentially, however Mr Williams accepted Mr Stovell's explanation that this really was no more than a joke. It was open to him to find that.

762. I acknowledge the point made by Mr Gilroy in submissions that it would be difficult to see how Mr Williams could realistically give his co-partner a talking to on this point.
763. Nevertheless it was open to Mr Williams to accept the explanation, which was close to the explanation put forward in the Tribunal hearing which I largely accepted, i.e. that it was a joke (albeit a crass one) and it did not represent the reality of the First Respondent's recruitment policy, which was that more female employees joined the organisation than male and neither of the males fit this particular stereotype.
764. I did not find that this was a detriment and in any event not because of the protected act, but because this was Mr Williams' genuine conclusion.

{4.25.20} falsely finding that C had not raised with R3 issues of inappropriate misogynist and racist language used by employees (para 21.26, GOC2);

765. I do not understand this allegation given that in response to ground 2 of the dismissal appeal outcome letter was details the allegations of sexual harassment and thanks the Claimant for bringing it to his attention and mentions the actions taken thereafter.
766. This allegation does not succeed.

{4.25.21} finding that Mr Poole's comments in Madrid in May 2023 were made "in the course of a light-hearted and jokey relationship with you" and "did not upset you at the time ..." (para 21.27, GOC2);

Jokey relationship

767. That there was a light-hearted and jokey relationship between the Claimant and Mr Poole at that time I find is amply supported by the evidence in this Tribunal such as WhatsApp messages. The nature of the relationship would have been known to Mr Williams given that he worked in the office. This element of the allegation was an accurate assessment and did not amount to a detriment.

Not upset at the time

768. As to the conclusion that it did not upset the Claimant at the time, this is a conclusion that is difficult to understand. That the Claimant had subsequent conversations with Mr Poole once she had become quite drunk and emotional and he was trying to reassure her and make amends, does not detract from the fact that she was upset.
769. The Claimant was placed in a difficult situation which is that inappropriate comments had been made by her line manager. She was conflicted between the desire to attain a professional relationship with him and a feeling of being upset, which Mr Williams failed to appreciate.
770. There was simplistic view taken of the Claimant's reaction later on that evening in Madrid essentially that she was drunk and being obnoxious without cause. That might be an understandable conclusion for Mr Williams based on his own

observation in Madrid. By the time of the appeal process however, he knew that the Claimant had complained to him about Mr Poole's comments on 30 May, complained to Ms Butterworth on 7 June (a protected act) and had raised a candidate being handed to her "sexual abuser" on 28 June, and had complained in the meeting on 1 November and grievance on 3 November (both protected acts). Ms Butterworth plainly understood at the time that this was an inappropriate and upsetting comment and on balance I find that view must have been clear to Mr Williams.

771. While ordinarily there is a margin of appreciation for the conclusion of a manager in internal process and it is possible for different conclusions to be reached based on the evidence, I find that conclusion that this "did not upset you at the time" was more than trivially influenced by the making of the protected acts.

772. **This part of the allegation succeeds.**

{4.25.22} dismissing C's appeal against dismissal (para 21.33, GOC2);

773. The Third Respondent Mr Williams was the same decision maker as at the dismissal. There had been further investigation and therefore greater detail before Mr Williams but the same essential factors lay before him. There were multiple factors in the history which led Mr Williams to the conclusion that there had been an irreparable breakdown in the working relationship. One of those factors I find was the allegations of discrimination/harassment, some of which had been raised on 7 June following the Madrid trip but more significantly had been stated in fairly uncompromising terms in the meeting on 1 November 2023.

774. As noted above, the reasons put forward for the dismissal were flimsy and historic and would not have been considered at all had it not been for the Claimant making a protected act in the meeting on 1 November 2023.

775. Essentially nothing changed on appeal.

776. I find that a material part of the reason for dismissing the appeal against dismissal was the making of the protected act on 1 November 2023. The Second and Third Respondents made a decision on 1 November and in reality there was no going back on that decision.

777. **This allegation succeeds.**

{4.26.1} concluding that the C had not been dismissed to avoid paying her bonus in addition to retaliation for her grievance (para 21.28, GOC2);

778. The Claimant's ground 3 of appeal was that the dismissal was motivated by a wish to avoid paying a sizeable bonus. This ground was refused on the basis that the reasons for the dismissal with those set out in the dismissal letter dated 6 November 2023. The Respondents did not accept that she had been dismissed in retaliation for her grievance.

779. I accept Mr Gilroy's submission on the balance of probabilities that the likely size of the Claimant's bonus in 2023 was one of the factors in the minds of the Second and Third Respondent. Bonuses were due to be assessed in December. I accept that on any reasonable basis the Claimant's bonus would have to be substantial for 2023, even taking account of the fact that her "pipeline" activity had slowed down in the second half of the year. Even if it were lower than the bonus awarded in the previous year it would still be a substantial figure.
780. I also find that the Claimant's grievance was a factor in the Second and Third Respondents' minds when they dismissed her.
781. There was a lack of candour on this point in the disciplinary appeal and grievance outcome document.
782. The Claimant was very unlikely to get a straightforward and candid answer to these aspects of her appeal against dismissal and grievance, given that it would amount to a potential admission for either legal liability in relation to the unpaid bonus and/or for victimisation. Few employers would likely to make such an admission whether or not there had been a protected act.
783. **I find the content of this allegation is a circumstance which directly flows from the victimisation dismissal (allegation 13.1.2) rather than being a separate detriment.**
784. **This will form part of the effects of victimisation for which compensation will be assessed.**

{4.26.2} concluding there was nothing to suggest C's sex or age played a role in the decisions as to whether she would be promoted (para 21.29, GOC2);

785. The Respondents' answer to Ground 3 of the Claimant's grievance i.e. that the Claimant had been fairly recently promoted and did not have the requisite experience, but that they were attempting to provide management experience I find reflects a fair summary of the circumstances as seen by the Respondents rather than a detrimental untruth.

786. This allegation does not succeed.

{4.26.3} dismissing C's complaint about Client A, and/or misunderstanding or misrepresenting her grievance about Client A, by wrongly stating that C refused to work on the Client A account (para 21.30, GOC2);

787. This was a complaint about Mr Stovell's actions rather than Client A.
788. I did not find that the Third Respondent misunderstood or misrepresented the Claimant's complaint about Client A because of the protected acts. This was some time after 7 June. The complaint was not "dismissed" in that Ms Butterworth spent time talking to the Claimant and separately to Mr Stovell and there was a meeting on 20 September to discuss matters. There was an exchange of views. There were matters that the Second Respondent wanted to discuss with the Claimant.

789. I did not come to the conclusion that the Claimant's complaint was dismissed, misunderstood or misrepresented. In any event I did not find that the Claimant's treatment in this respect was substantially influenced by the making of protected acts.

{4.26.4} dismissing C's complaint that she had been handled poorly in the 6 months prior to her dismissal due to complaints she had raised about Mr Poole (para 21.31, GOC2);

790. I found that Mr Williams simply did not accept the Claimant's contention that she had been handled poorly in the 6 months since her complaint about Mr Poole. He felt, genuinely, that the Claimant's conduct had required management intervention.

791. This was not because of the protected acts.

{4.26.5} dismissing C's grievance (para 21.31, GOC2)?

792. Elements of the grievance form different allegations above. It is repetitious to deal with the grievance globally separately to the different elements.

793. Mr Williams was not bound to uphold the Claimant's grievance.

794. Allegation 14/{4.25.21} "didn't upset you at the time", which was part of the grievance outcome **has succeeded**. Other elements are dealt with above, e.g. campaign of harassment, bonus.

795. Leaving allegation 14/{4.25.21} aside, I found that Mr Williams genuinely did not accept the elements of the Claimant's grievance about the management of the firm and the culture.

796. This was not because of the protected acts.

Claims against R1

797. All of the allegations which are well founded succeed against the First Respondent as the Claimant's employer.

Claims against R2

16. The claims against R2 are as set out at paragraphs 3, 4, 5, 7, 8, 10, 11, 12, 13 and

798. I find that the Second Respondent Mr Stovell is liable by operation of section 110 of the Equality Act for the following acts of victimisation:

798.1. the dismissal (allegation 13.1.2);

798.2. failing to deal with the Claimant's allegations of discrimination/harassment at the meeting on 1 November 2024 (allegation 13.1.1/{7.20}).

Claims against R3

17. The claims against R3 are as set out at paragraphs 3, 4, 5, 7, 8, 10, 11, 12, 13 and 14 above.

799. I find that the Third Respondent Mr Luke Williams is liable by operation of section 110 of the Equality Act for

799.1. the dismissal (allegation 13.1.2);

799.2. failing to deal with the Claimant's allegations of discrimination/harassment at the meeting on 1 November 2024 and 3 November 2024 (allegation 13.1.1/{7.20});

799.3. dismissing C's claim that the allegations against her had never been made against her prior to her dismissal (allegation 14/{4.25.12});

799.4. finding that Mr Poole's comments in Madrid did not upset the Claimant at the time (allegation 14/{4.25.21});

799.5. dismissing the Claimant's appeal against dismissal (allegation 14/{4.25.22}).

Claims against R4

18. The claims against R4 are as set out at paragraphs 3, 4, 5, 7, 8, 10, 11, 12, 13 and 14 above, and paragraph 19 below.

19. Did R4 cause and/or induce R1 and/or R2, and/or R3 to commit contraventions of the EqA in relation to C, within the meaning of ss.111(2) and/or (3) of the EqA in failing to deal with the complaints and concerns raised with her by C on 7 June 2023, 1 November 2023, and 3 November 2023 and/or by failing to ensure that her grievance and/or dismissal appeal were dealt with fairly and lawfully (GOC1 paras 16.11, 16.22, 19, 21, 22 and 24 & GOC2 para 31)?

800. I did not find that the Fourth Respondent Ms Butterworth caused or induced the other three Respondents to commit contraventions of the Equality Act 2010 for the reasons given above. I find that the Second and Third Respondents were responsible for decisions in relation to the dismissal and the meeting on 1 November and the Third Respondent alone in relation to the appeal against dismissal.

Accompaniment

20. Was the meeting on 1 November 2023 a "disciplinary hearing" within the meaning of s.10(1)(a) of the Employment Relations Act 1999?

801. This allegation was not pursued

Jurisdiction

22. R argues that the following allegations are an abuse of process on Henderson v Henderson grounds, as they relate to events which redated the First Claim:

22.1. the allegations set out at paragraphs 4.21 to 4.24 inclusive above, and

22.2. insofar as they relate to the same factual allegations as those set out at paragraphs 4.21 to 4.24 inclusive above, also paragraphs 7.33 and 14 above.

802. The Respondents argue that pursuant to the rule in **Henderson v Henderson**, (1843) 3 Hare 100, 67 ER 313 parties to litigation must bring forward their whole case, and, except in special circumstances, will not be permitted to bring fresh proceedings in a matter which could and should have been litigated in earlier proceedings, but were omitted through negligence, inadvertence or accident. The court must consider whether, in all the circumstances, there was an abuse.
803. Applying the principles summarised by Lord Bingham in **Johnson v Gore Wood** [2001] 1 All ER 481, first the proceedings are brought against the same respondents; and second the issue could with reasonable diligence have been raised in the first proceedings.
804. Further it is argued by the Respondents that the second ET1 involves unjust harassment of Respondents given the heavy-handed and disproportionate way in which it was pleaded.
805. The Claimant's disputes the abuse of process argument and if that argument is pursued, the Claimant will apply to amend the First Claim to incorporate the allegations set out at paragraphs 4.21 to 4.24 inclusive above. In so far as it is necessary for the Tribunal to consider any such application to amend, that application can be considered at the substantive hearing in this matter.
806. I have considered the **Johnson v Gore Wood** authority, which suggests that the appropriate approach to alleged abuse of process is a broad merits based approach, in place of the strict rule in **Henderson**.
807. In my assessment best practical approach here is to treat this as an application to amend. Both claims have been case managed and heard together. This is not a situation where litigation has been concluded and one of the parties has tried to resurrect a dispute bringing matters that ought to have been litigated first time around.
808. I have considered the principles in **Selkent** and the **Presidential Guidance**. The nature of the amendment is to introduce allegations about events which occurred immediately before the presentation of the first claim as new allegations of sex and race discrimination as well as victimisation detriment. As to the timing and the manner of the application, this application has been made at a time before the gathering of evidence, and at a time when the list of issues had yet to be finalised. This is not a situation in which the Respondents have

had to substantially duplicate effort, nor is it a situation which has led to delay or postponement. They have been able to deal with the allegations in evidence.

809. As to the applicability of time limits, my view is following **Galilee**, time limits and the extent to which allegations are brought out of time can be dealt with as part of the substantive decision.
810. My decision therefore is to reject the Respondents' Henderson argument and allow the content of the second claim to be granted as an application to amend, subject to the time points which are dealt with immediately below.

Time limits/jurisdiction

23. If and to the extent that any of the complaints under the EqA were lodged outwith the relevant primary time limit:

811. I have considered whether the discrimination, harassment and victimisation complaints were made within the time limit in section 123 of the Equality Act 2010.

First claim

812. The first claim was presented on 22 December 2023, following an ACAS early conciliation period 23 November – 22 December 2023. It follows that complaints within this claim were only in time insofar as they related to events which occurred on **24 August 2023** or later, or alternatively were a continuing act of discrimination as at 24 August 2023.
813. It follows that the dismissal on 6 November 2023 and appeal/grievance matters are all in time.

Second claim

814. The second claim was presented on 4 June 2024.
815. There was an ACAS Early Conciliation period 18 April – 15 May 2024.
816. As to whether time was extended during this second ACAS EC period, I have considered guidance of the Employment Appeal Tribunal in the case of **Compass Group UK & Ireland v Morgan** [2017] ICR 73 EAT and **The Commissioners for H M Revenue & Customs v Garau** UKEAT/0348/16/LA. I do not find that time was extended during this period, since there had already been an ACAS Early Conciliation period and no need for Early Conciliation.
817. It follows that complaints within this claim were only in time insofar as they related to events which occurred on **5 March 2024** or later, or alternatively were a continuing act of discrimination as at 5 March 2024.
818. It follows that the claim in relation to the grievance appeal hearing on 12 March 2023 and the outcome of the grievance appeal on 24 April 2024 is in time.

819. Mr Gilroy for the Claimant suggested that events in this claim for the purposes of time limits and jurisdiction might be put into three categories. First, events up to and including the work trip to Madrid (24 – 26 May 2023). Second, events after Madrid (May -June 2023). Third, events in November 2023 around the dismissal which were on any view in time. The Claimant relies upon a continuing act of discriminatory conduct and in any event a just and equitable extension.

820. The Respondents submit that many of the Claimant's allegations are out of time, do not form part of a continuing act, and there is no reason why it would be just and equitable to extend time. Specifically, it is submitted that allegations of sex and race discrimination do not post-date May 2023.

23.1. did the relevant conduct of R1, and/or R2, and/or R3, and/or R4 extend over a period such that is to be treated as having been done at the end of the period within the meaning of s.123(3) of the EqA?; alternatively

821. The Respondents submit that none of the allegations of racist or sexist comments to the Claimant post-dated May 2023. I accept that submission.

822. I did not find that there was a continuing discriminatory state of affairs such as to bring matters earlier than 24 August 2023 in time.

23.2. would it be just and equitable to extend time, applying s.123(1)(b) of the EqA)?

823. The burden is on the Claimant to show why time should be extended.

824. Time limits which go to jurisdiction in employment tribunal claims are short.

825. I take account of the fact that the Claimant is intelligent, and had the ability and resources to obtain special legal advice regarding employment law matters.

826. This is not a case where discrimination has been concealed from her and she discovered it much later on. As of 29 June 2023 she was mulling over instructing a lawyer in respect of discrimination relating to her Mexican heritage. She plainly had the resources to do so. Yet no claim was presented until nearly 6 months later.

827. One factor to be taken account of when considering extension of time is the extent to which a respondent may be prejudiced their ability to gather evidence because of time that has elapsed.

828. In this case the Claimant as made allegations which go back to 22 September 2021, which was over two years old at the time that the claim was presented. The passage of time makes the evidence on these matters stale. Many of the allegations relate to things said over drinks or social events. In some cases a lot of drink had been consumed and recollections are inevitably unreliable.

829. Other allegations are relate to things said: comments, jokes and the like, where exactly what was said and the context in which it was said is important. It

means that the Respondents are prejudiced in their ability to respond to these allegations.

830. The passage of time makes it hard for the Tribunal to make findings with confidence as to what was said and about the context.

Extension of time for the first claim

831. Although some of the key events on the work trip in Madrid in May 2023 appear to have occurred when various witnesses and parties were under the influence of drink, there was some contemporaneous messaging and some documentation of the events in aftermath.
832. As to the events which occurred after the trip to Madrid, in early June it was clear to the managers of the First Respondent, and in particular the Second, Third and Fourth Respondents that the Claimant was unhappy with events in Madrid and more broadly. Events from the aftermath of Madrid onward are better documented, and the following the grievance on 3 November 2023.
833. For these reasons, the lesser prejudice caused by the lapsing of time, and also because these events were not so historic at the time that the first claim was presented, I find that it is just and equitable to extend time so as to examine events from the Madrid work trip onward on the substantive merits. That includes events as far back as **Wednesday 24 May 2023**.
834. By contrast, I do not find that it is just and equitable to extend time in relation to the complaints brought about events that occurred before the work trip to Madrid, which started on 24 May 2023.

Extension of time for the second claim

835. The earliest disputed material events in the second claim are in December 2023. While the second claim was presented some 5-6 months later on 4 June 2024, the Respondents were by this stage fully aware that there was a legal dispute between them. Lawyers had been instructed and interactions between the parties substantially documented. I have not identified evidential prejudice to the Respondents.
836. I find that it is just and equitable to extend time in relation to the second claim to include events as far back December 2023 and to deal with this second claim on the substantive merits.

Matters relating to remedy

24. If C succeeds in any of her claims, the issues in relation to remedies include:

24.1. Could and would C have been lawfully dismissed and/or would she have resigned (other than by reason of any unlawful acts and/or omissions on the part of any of the Respondents) at the same time or shortly thereafter in any event?

837. I have dealt with the possibility of lawful resignation or lawful dismissal separately.

Resignation

838. Following **Software 2000 Ltd**, I find I am in a position to identify that the employment would have continued but only for a limited fixed period.

839. I find that from early May 2023 onward (before the trip to Madrid) the Claimant was intending to leave after her next bonus. I consider that it was extremely unlikely that she would have resigned before payments of bonus in the instalments in December 2023 and March 2024, assuming that the payments followed the pattern of the previous year. On 28 June 2023 the Claimant positively stated that she was not going to quit, but that she wanted to be dismissed. That was her reaction to the candidate 1 row. After Mr Stovell's email the following day matters blew over for a period of time, superficially at least.

840. I do not find the Claimant would have resigned in early November 2023 at around the time of her dismissal. It was her goal to receive one more bonus. As well as the clear contemporaneous messages during 2023 about the plan to leave after the next bonus, I find it significant that two close confidantes of the Claimant left early in 2024. Theo Williams resigned in January 2024 and Siyu Tian left the First Respondent on 8 April 2024. These were the two colleagues mentioned in her "one more bonus" message on 10 May 2023.

841. As to the Claimant's contention that she would not have left because of her immigration Visa status, I do not find that argument persuasive. She had financial resources. She had an impressive proven track record. This would not have been an impediment to moving on.

842. I find that in accordance with her stated plans in messages to colleagues, the Claimant would have **resigned in April 2024**, after payment of the March instalment of her bonus.

Lawful dismissal

843. Ms Stone submits that a fair dismissal would have required no more than a single meeting on 6 November 2023 following **Gallacher v Abellio Scotrail Ltd** UKEATS/0027/19/SS and **Matthews v CGI IT UK Ltd** [2024] EAT 38, in both of which the EAT upheld findings that a dismissal was fair despite there being no procedure at all.

844. Mr Gilroy submits that the Tribunal finds that there was no potentially fair reason for dismissal there can be no Polkey finding.
845. I accept the submission that there were no potential fair reasons for dismissal at that time and find that there was **no prospect of a lawful dismissal** within a short period of time, for the following reasons.
846. First, the two authorities can be distinguished. In Gallacher, by contrast with the present case the claimant herself recognised that there had been a breakdown in relationship with her line manager. That relationship was vital during a difficult period for the business. This was a rare case where no process was necessary. Matthews was another “rare” case where there was an irretrievable breakdown of relationship following an abortive redundancy process. In that case there was a complaint of victimisation which was dismissed, by contrast with the present case, where the purported “irretrievable breakdown” was substantially influenced by a protected act of raising discrimination and harassment.
847. Second, the Claimant herself repeatedly stated in the meeting on 1 November 2023 that she wanted to carry on working for the First Respondent. She did not accept an irretrievable breakdown, which is distinct from Gallacher.
848. Third, appellate authorities urge caution where there is an alleged breakdown in relationship (**Ezsias, Leach**), especially as in this case where a breakdown as “some other substantial reason” is being used as a pretext to conceal the real reason, which was in part the Claimant’s protected acts. This was, properly viewed a conduct case. Viewed as a conduct case, in Ms Bondi’s case many of the reasons relied upon to justify dismissal are a ragbag of significantly historic allegations in respect of which no action had been taken at the time. The proper approach should have been an investigation at which the evidence examined, the Claimant’s mitigation taken into account. In this case much of the evidence was flimsy, stale and the Claimant’s mitigation was significant: she had been harassed and believed that she’d been subject to discrimination, which was not without foundation. She was also being taking to task for conduct that many other employees of the First Respondent had exhibited without censure.
849. Fourth, the Respondents relied in part upon the circumstances of the Claimant requesting not to work for Mr Poole. This is part of a narrative showing the Claimant was difficult to manage leading to her dismissal. The line management change had been made directly after the unlawfully harassment by her then manager Mr Poole, reported by the Claimant at the time. That change was plainly connected to the harassment. Those circumstances cannot be a proper basis for a lawful dismissal.
850. Fifth, no warning had be given to the Claimant under any formal process. It is true to say that guidance about not forwarding emails to company emails on 20 September, refraining from distracting colleagues and sending emails to her personal email address. She received an email about office attendance by Mr Stovell on 29 June 2023.

851. Sixth, the Claimant had raised, orally on 1 November and in writing two days later some serious allegations of discrimination, the facts of some of which were known to the Second, Third and Fourth Respondent. This contained some potentially mitigating circumstances. The Claimant was entitled to have these matter investigated under the grievance policy. This would have taken some time. The grievance appeal outcome was not delivered until 24 April 2024.
852. Finally, viewed in the alternative as a performance case, any action by the employer would require guidance and the opportunity to improve. Viewed as a whole for 2023 the Claimant's performance was still very high. There had some tail off in activity from June to November but again there were mitigating circumstances. In the context of the Claimant's role there would realistically need to be a number of months to enable her to improve, especially given that commercial activity typically tails off in December.
853. My conclusion is that there was no proper basis for an fair dismissal with no prior warning on 1 November, nor even at a reconvened meeting on 6 November 2023 nor any time shortly thereafter.

24.2. Has C contributed to her dismissal, such that any compensation should be reduced by up to 100% for contributory fault?

854. The Tribunal should consider to what extent was the Claimant's behaviour was culpable and/or blameworthy and caused/contributed to her dismissal (**s 123(6) ERA 1996**)?
855. The Respondents submit that unexplained absences, poor attendance, refusal to follow instructions or engage with criticism and insubordination was plainly culpable and the appropriate reduction was 100%. It is submitted that the it is only the employee's conduct which is relevant, and not that of the employer: **Parker Foundry Ltd v Slack** [1992] ICR 302 per Woolfe LJ at [18-24].
856. I accept the principle that the Claimant had behaved in a blameworthy way over a period of time. She was not pursuing her responsibilities with the diligence she had in previous years. She was repeatedly late to the office, and she had been warned about this by Mr Stovell, albeit not as part of any process. There are repeated instances of disrespectful language and distracting junior colleagues.
857. Her message to Mr Medhurst suggests that she was deliberately on a course of action in which she was seeking dismissal. She was behaving in a provocative way.
858. What is "just and equitable" must require a Tribunal to take a broad view. As set out above under Issue 4.23, I found that there was some truth in the Respondents' view that the Claimant had "checked out", but not to the extent contended for by them. There were concerns about the pipeline, but the Claimant was now managing an associate, which required to spend time on management activity and some of the candidate activity recorded under Mr Illievski's name was under her direction.

859. Part of the picture was that the Claimant had been subject to unlawful harassment in May 2023 at the trip in Madrid. She had raised this with Mr Williams on 30 May, complained to Ms Butterworth on 7 June (a protected act) and had raised complaint about a candidate being handed to her “sexual abuser” on 28 June, and had complained in the meeting on 1 November and grievance on 3 November.
860. She was disgruntled with the Second and Third Respondents for a mixture of matters arising from that harassment and matters completely unrelated to it and pre-dating it. For example unrelated to the harassment, an important factor was that she unhappy that she was being told “not yet” for a promotion to Director.
861. It would not be just in the circumstances to reduce to zero the Claimant’s compensation as contended for by the Respondents when a part of the circumstances explaining the Claimant’s behaviour was the result of an unlawful act of harassment. I cannot lose sight of the fact that the Respondents followed no proper process at all prior to dismissal and were motivated in part by the Claimant’s protected acts and in part by the approaching bonus round.
862. Assessment of contributory fault is not a scientific exercise, but a matter of impression. I have considered the extent to which the dismissal was contributed to by the Claimant. The Claimant’s conduct would not justify dismissal, but it did set the stage for the meeting on 1 November 2023. Not all of her conduct can be explained her by a reaction to harassment.
863. I find that the Claimant had contributed to the circumstances of her dismissal by **25%**.

24.3. Should any compensation be reduced by up to 100% on just and equitable grounds?

Devis v Atkins

864. Following **Devis v Atkins** [1977] ICR 662 HL compensation for unfair dismissal may be reduced on a “just and equitable” basis for misconduct not know at the time of dismissal. In this respect the Respondents rely on:
- 864.1. C covertly recorded the 1 November 2023 meeting;
- 864.2. C’s messages disclosed in these proceedings portray an even starker pattern of insubordination, disrespect, and disloyalty. By way of example only, for months, C was sneaking out of the office during the day with others including junior colleagues to avoid detection, and spoke highly disrespectfully of her managers (eg calling R3 a “cunt” on 27 June 2023, on 28 June 2023 calling Mr Poole a “Fucking asshole” and R3 a “Fucking twat”, and referring to R2 and R3 as “pricks” on 20 September 2023 at 3527).
- 864.3. C forwarded business emails to her personal address, having been instructed not to do so (488, 614, 644 and 651 and A113) and retained

large quantities of confidential information relation to R1, while falsely representing (via her solicitors on 9 January 2024 at 1310-2) that she had returned them.

865. I am not persuaded that I ought to make a reduction following *Devis v Atkins* in addition to the general reduction for contributory fault above for the following reasons. I accept Mr Gilroy's submission that there were mitigating circumstances in relation to the covert recording. The Claimant was outnumbered and ambushed in that meeting. Other records of meetings have not contained the entirety what had been discussed. As it turns out the Claimant's concern that she might be misrepresented was demonstrated quite clearly in the appeal meeting when "fucking" was inaccurately recorded as having been said by her.
866. The behaviour described as insubordination, disrespect and disloyalty I have factored into the reduction for contributory fault above.
867. Using swear words in private message exchanges was commonplace in the First Respondent office, and was part of the culture all of the way up to the Second and Third Respondent. It is however blameworthy conduct which I have already factored into the reduction for contributory fault above.
868. As to forwarding business address to her personal address, the examples given above all predate the warning given to the Claimant on 20 September 2023.

Remedy

869. There is a separate case management order containing the remaining questions in the list of issues are matters to be dealt with at the remedy hearing and directions for the remedy hearing.

Employment Judge Adkin

Date 4 November 2025

WRITTEN REASONS SENT TO THE PARTIES ON

4 November 2025

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FOR THE TRIBUNAL OFFICE